

CHILD LABOR
IN
CITY STREETS

EDWARD N. CLOPPER

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CHILD LABOR IN CITY STREETS

BY
EDWARD N. CLOPPER, Ph.D.
SECRETARY OF NATIONAL CHILD LABOR COMMITTEE FOR MISSISSIPPI VALLEY

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PREFACE

This volume is devoted to the discussion of a neglected form of child labor. Just why the newsboy, bootblack and peddler should have been ignored in the general movement for child welfare is hard to understand. Perhaps it is due to "the illusion of the near." Street workers have always been far more conspicuous than any other child laborers, and it seems that this very proximity has been their misfortune. If we could have focused our attention upon them as we did upon children in factories, they would have been banished from the streets long ago. But they were too close to us. We could not get a comprehensive view and saw only what we happened to want at the moment—their paltry little stock in trade. Now that we are getting a broader sense of social responsibility, we are beginning to realize how blind and inconsiderate we have been in our treatment of them.

The first five chapters of the book review present conditions and discuss causes, the next two deal with effects, and the final ones are concerned with the remedy. The scope has been made as broad as possible. All forms of street work that engage any considerable number of children have been described at length, and opinions and findings of others have been freely quoted. I have attempted to show the bad results of the policy of *laissez-faire* as applied to this problem. Simply because these little boys and girls have been ministering to its wants, the public has given them scarcely a passing thought. It has been so convenient to have a newspaper or a shoe brush thrust at one, it has not occurred to us that, for the sake of the children, such work would better be done by other means. Although good examples have been set by European cities, we have not introduced any innovations to clear the streets of working children.

The free rein at present given to child labor in our city streets is productive of nothing but harmful results, and it is high time that a determined stand was taken for the rights of children so exposed. A few feeble efforts at regulation have been made in some parts of this country, but this is an evil that requires prohibition rather than regulation. There is no valid reason why just as efficient service in streets could not be rendered by adults. Certainly it would be far more suitable and humane to reserve such work for old men and women who need outdoor life and are physically unable to earn their living in other ways. We could buy our newspaper from a crippled adult at a stand just as easily as we get it now from an urchin who shivers on the street corner. It is only a question of habit, and we ought to be glad of the change for the good of all concerned.

E. N. C.

Cincinnati, 1912.

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CHAPTER I

THE PROBLEM OF THE STREET-WORKING CHILD—PUBLIC APATHY— RELATION TO OTHER PROBLEMS

The efforts which have so far been made in the United States to solve the child labor problem have been directed almost exclusively toward improvement of conditions in mines and manufacturing and mercantile establishments. This singling out of one phase of the problem for correction was due to the uneducated state of public opinion which made necessary a long and determined campaign along one line, vividly portraying the wrongs of children in this one form of exploitation, before general interest could be aroused. Within very recent years this campaign has met with signal success, and many states have granted a goodly measure of protection to the children of their working classes as far as the factory, the store and the mine are concerned. The time has now come for attention to be directed toward the premature employment of children in work other than that connected with mining and manufacturing, for there are other phases of this problem which involve large numbers of children and which, up to the present, have received but little thought from students of labor conditions. The three most important of these other phases are the employment of children in agricultural work, in home industries and in street occupations. This volume will deal with the last-named phase—with the economic activities of children in the streets and public places of our cities, their effects and the remedies they demand.

The street occupations in which children commonly engage are: newspaper selling, peddling, bootblackening, messenger service, delivery service, running errands and the tending of market stands. The first three are known as street "trades," owing to the popular fallacy that the children who follow them are little "merchants," and are therefore entitled to the dignity of separate classification. Careful usage would confine this term to newsboys, peddlers and bootblacks who work independently of any employer. Many children are employed by other persons to sell newspapers, peddle goods and polish shoes, and such children technically are street traders no more than those who run errands, carry messages or deliver parcels. Consequently the term "street trades" is limited in its application, and by no means embraces all the economic activities of children in our streets and public places.

Wisconsin has written into her laws a definition of street trading, declaring that it is "any business or occupation in which any street, alley, court, square or other public place is used for the sale, display or offering for sale of any articles, goods or merchandise."^[1] This covers neither bootblackening nor the delivery of newspapers.

In Great Britain the expression "street trading" has been officially defined as including: "the hawking of newspapers, matches, flowers, and other articles; playing, singing, or performing for profit; plying for hire in carrying luggage or messages; shoe blacking, or any other like occupations carried on in streets or public places."^[2]

Street traders and street employees may be classified by occupation as follows:—

STREET TRADERS (WORKING FOR THEMSELVES)	STREET EMPLOYEES (WORKING FOR OTHERS)
Newspaper sellers	Newspaper sellers (on salary)
Peddlers	Peddlers (on salary)
Bootblacks (on street)	Bootblacks (in stands)
	Market stand tenders
	Messengers
	Errand children
	Delivery children

This classification is based upon the well-known economic distinction between profits and wages. It is unfortunate that this distinction has been applied to juvenile street workers, for it has operated to the great disadvantage of the "traders." This class has been practically ignored in the general movement for child welfare, on the ground that these little laborers were in business for themselves, and therefore should not be disturbed. Recently the conviction has been dawning upon observant people that, in the case of young children at least, the effects of work on an independent basis, particularly in city streets, are just as bad and perhaps even worse than work under the direction of employers. The mute appeal of the street-working child for protection has at last reached the heart of the welfare movement, and the first feeble efforts in his behalf are now being put forth, regardless of whether he toils for profits or for wages.

This alleged distinction between street trading and street employment should be clearly understood, as any movement designed to remedy present conditions must be sufficiently comprehensive to avoid the great mistake of protecting one class and ignoring the other. On the one hand there is said to be an army of little independent "merchants" conducting business affairs of their own, while on the other there is an array of juvenile employees performing the tasks set them by their masters. For purposes of regulation this distinction is hairsplitting, narrow-minded and unjust, as it has been made to defeat in part the beneficent aim of the great campaign for child welfare, but nevertheless it must be reckoned with. Children under fourteen years of age at work in factories and mines are often properly called "slaves," and their plight is regarded with pity coupled with a clarion cry for their emancipation. But tiny workers in the streets are referred to approvingly as "little merchants" and are freely patronized even by the avowed friends of children, who thereby contribute their moral support toward continuing these conditions and maintaining this absurd fiction of our merchant babyhood. As an instance of this remarkable attitude, there was proudly printed in the *Pittsburgh Gazette-Times* of April 11, 1910, the picture of a four-year-old child who had been a newsboy in an Ohio town since the age of *thirty months*, and this was described as a most worthy achievement!

That the term "child labor," whose meaning has so long been popularly restricted to the employment of children in factories, mills, mines and stores, is properly applicable to the activities of children in all kinds of work for profit, is now virtually recognized by a few states which prohibit employment of children under fourteen years of age "in any gainful occupation." But unfortunately the courts have rigidly construed the word "employ" to mean the purchasing of the services of one person by another, hence newsboys, peddlers, bootblacks and others who work on their own account, do not enjoy the protection of such a statute because they are not "employed." Under this interpretation a fatal loophole is afforded through which thousands of boys and girls escape the spirit of the law which seeks to prevent their *labor* rather than their mere employment. It is for this reason that, in states having otherwise excellent provisions for

the conservation of childhood, we see little children freely exploiting themselves on city streets. This situation has been calmly accepted without protest by the general public, for, while the people condemn child labor in factories, they tolerate and even approve of it on the street. They labor under the delusion that merely because a few of our successful business men were newsboys in the past, these little "merchants" of the street are receiving valuable training in business methods and will later develop into leaders in the affairs of men. A glaring example of this attitude was given by a monthly magazine^[3] which fondly referred to newsboys as "the enterprising young merchants from whose ranks will be recruited the coming statesmen, soldiers, financiers, merchants and manufacturers of our land."

It is extremely unfortunate that this narrow conception has prevailed, as it raises the tremendous obstacle of popular prejudice which must be broken down before these child street workers can receive their share of justice at the hands of the law. The only fair and logical method of approach toward a solution of the child labor problem in all its phases is to take high ground and view the subject broadly in the light of what is for the best interests of children in general.

The state recognizes the need of an intelligent citizenship and accordingly provides a system of public schools, requiring the attendance of all children up to the age of fourteen years. In order that nothing shall interfere with the operation of this plan for general education, the state forbids the employment of children of school age. In respect of both these mandates, the state has really assumed the guardianship of the child; it has accepted the principle that the child is the ward of the state and has based its action on this principle. A guardian should be ever mindful of the welfare of his wards, and so, to be consistent, the state should carefully shield its children from all forms of exploitation as well as from other abuses.

However, in the matter of the regulation of child labor, a curious anomaly has arisen—no one may employ a child under fourteen years in a *factory* for even one hour a day without being liable to prosecution for disobeying the law of the state, because such work might interfere with the child's growth and education; all of which is right and indorsed by public opinion, but—merely because a child is working independently of any employer, he is allowed to sell newspapers, peddle chewing gum and black boots for any number of hours, providing he attends school during school hours! Could anything be more inconsistent? To this extent the state, as a guardian, has neglected the welfare of its ward.

This lack of consideration for street workers was emphasized in a British government report a number of years ago. Referring to the statutory provisions for preventing overwork by children in factories, workshops and mines, the report declared: "But the labour of children for wages outside these cases is totally unregulated, although many of them work longer than the factory hours allowed for children of the same age, and are at the same time undergoing compulsory educational training, which makes a considerable demand on their energies. We think this is inconsistent. In the interests of their health and education, it seems only reasonable that remedies which have proved so valuable in the case of factory children should in some form be extended to cover the whole field of child labour."^[4]

To insure a good yield, a field requires cultivation as well as planting; to effect a cure, a patient requires nursing as well as prescription. So with the aim of the state—to insure a strong, intelligent citizenship, its children must be cared for, as well as provided with schools. If a

patient is not nursed while the physician is absent, his treatment is of little avail; if children are not protected out of school hours, the purpose of the school is defeated. No manufacturer would allow his machinery to run, unwatched, outside regular work hours, for he knows how disastrous would be the consequences; yet this is precisely what the state is doing by ignoring the activities of children in our city streets—the delicate machinery of their minds and bodies is allowed to run wild out of school hours, and the state seems to think nothing will happen! These thoughts impel us to the conclusion that the state must watch over the child at least until he has reached the age limit for school attendance, and in the matter of labor regulation its care must not be confined to the prevention of one form of exploitation while other forms, equally injurious, are permitted to flourish unchecked.

Legislation regulating street trading by children in this country is now in the stage corresponding to that of the English factory acts in the early part of the nineteenth century,—the first meager restrictions are being tried. Several of the street occupations, viz. messenger service, delivery service and errand running, are ordinarily included among those prohibited to children under fourteen years by state child labor laws, because to engage in such work children have to be employed by other persons. These occupations are covered by the provision common to such laws which forbids employment of such children "in the distribution or transmission of merchandise or messages." The street "trades" of newspaper selling, peddling and bootblacking are, as yet, almost untouched by legislation in the United States, for there exist only a very few state laws and city ordinances relative to this matter, and these of the most primitive kind. The public does not yet realize the injustice of permitting young children to engage, uncontrolled, in the various street-trading activities. It was slow to appreciate the dangers involved in the unrestricted employment of children in factories, mills and mines, but when the awakening finally came, the demand for reform was insistent. This gradual development of a sentiment favoring regulation characterizes also the problem of street employment; the present stage is that of calm indifference, ruffled only by occasional misgivings. Even this is an encouraging sign, inasmuch as the factory agitation passed through the same experience, and emerged triumphant, crystallized in statute form.

It is hard to understand how the public conscience can reconcile itself to the chasm between the age limit of fourteen years for messenger service and freedom from all restraint in newspaper selling—both essentially street occupations. Child labor laws are framed in accordance with public sentiment, hence the people by legislative omission practically indorse street trading by little children while condemning their employment in other kinds of work. Thus the state virtually assumes the untenable position that it is right to allow a child of tender years to labor in the streets as a newsboy without any oversight or care whatever, and that it is wrong for him to work in the same field as a messenger, or an errand boy, or a delivery boy, although such occupations are subject to some degree of supervision by older persons. In other words, it is held that little children are capable of self-control in some street occupations, but not able to withstand the dangers of other similar street work, even under the control of adults! After having described the conditions prevailing in Philadelphia among newsboys, Mr. Scott Nearing says: "There are many causes leading up to this condition. Beneath all others lies the fundamental one—the lack of public sentiment in favor of protecting these children. Closely allied to this is another almost equally strong—the lack of public knowledge of the true state of affairs."^[5]

The Chicago Child Welfare Exhibit pointed out the fact that street trades are quite untouched by child labor legislation in the city and also in the state, declaring that in Illinois a boy or girl

too young to be permitted to do any other work may haunt the newspaper offices, the five-cent shows, the theaters and saloons, selling chewing gum and newspapers at all hours of the night.^[6]

Among the arguments advanced in support of the unsuccessful effort to secure legislation on street trading in Illinois in 1911 was the following: "Each boy or girl street trader is a merchant in his or her own right, and therefore before the law is not considered a wage earner, although there is merely a fine-spun distinction between the child who secures *wages* as the result of his work and one who obtains his reward in the form of *profits*. The effect on the child of work performed under unsuitable conditions, at unsuitable hours and demanding the exercise of his faculties in unchildish ways, is in no wise determined by the form in which his earnings are calculated. That the results of street trading are wholly bad in the case of both boys and girls is universally recognized."^[7] Miss Jane Addams has deplored this situation in a public statement: "A newsboy is a merchant and does not come within the child labor regulations of Illinois. The city of Chicago is a little careless, if not recreant, toward the children who are not reached by the operation of the state law."^[8]

Even in the few localities where regulation of street trading has been attempted, the delusion that there is some essential difference between child labor in factories and child labor in streets persists in the legislation itself. The latter form of exploitation is assumed to merit a wider latitude for its activity, hence it is hedged about by much less stringent rules. Attention is invited to this inconsistency by the report of a recent investigation in New York City: "We have in New York 4148 children between 14 and 16 years employed in factories with their daily hours of labor limited from 8 A.M. to 5 P.M., while in mercantile establishments there are 1645 more of similar age limit, none of whom can work before 8 in the morning or after 7 in the evening. But on the streets of New York City we have approximately 4500 boys licensed (to say nothing of the little fellows too young to be licensed) to sell newspapers. That means 4500 legalized to work at this particular trade from 6 o'clock in the morning until 10 o'clock in the evening (save during the school year, when they are supposed to attend school from 9 A.M. to 3 P.M.) any day and every day, seven days to the week if they so desire to do."^[9]

Broader Aspects of the Problem

Let us consider the matter from another point of view and discuss the opportunities for constructive work rather than confine our attention to the need of the merely negative remedy of restrictive legislation.

The street is painted as a black monster by some social workers, who can discern nothing but evil in it. Nevertheless the street is closely woven into the life of every city dweller, for his contact with it is daily and continuous. If it is all evil, it ought to be abolished; as this is impossible, we must study it to see what it really is and what needs to be done with it. It is the medium by which people are brought into closer touch with one another, where they meet and converse, where they pass in transit, where they rub elbows with all the elements making up their little world, where they absorb the principles of democracy,—for the street is a great leveler.

Dr. Delos F. Wilcox, in speaking to the subject "What is Philadelphia Doing to Protect Her Citizens in the Street?" recently said: "The street is the symbol of democracy, of equal opportunity, the channel of the common life, the thing that makes the city.... I fancy that the civic renaissance which must surely come, ... will never get very far until we have awakened to a realization of the dignity of the street—the common street where the city's children play, through which the milk wagon drives, where the young men are educated, along which the currents of the city's life flow unceasingly."^[10]

An English writer has expressed a similar thought: "We have spoken of the street as a dangerous environment from which we would gladly rescue the children if we could, and so it undoubtedly is in so far as it supplants the influence of the home, tends to nullify that of the school and lets the boys and girls run wild just when they most need to be tamed.... It is, in fact, so strange a mixture of good and evil, so complex an influence in the growth of boy and girl, of youth and man, among our great city population, that it is necessary to attempt to analyze it a little more exactly. It is for the majority the medium in which the social conscience is formed, and through which it makes its power felt. In it the all-powerful agents of progress, example, imitation, the spread of ideas and the discussion of good and evil are incessantly at work."^[11]

It is only natural that such a general agency for communication should have been abused. Its popularity alone would inevitably lead to such a result, with no restrictions imposed upon street intercourse. The very popularity of the games of billiards, pool and cards and of dancing led to their abuse and consequent disrepute in the eyes of many persons who were blinded to their intrinsic worth as diversions, by the abuses to which they were subjected. The marked success attending the proper use of all these amusements in social settlements and parish houses stimulates the imagination as to what might be accomplished with the street if its abuses also were eliminated.

It is of course absurd to pass judgment summarily upon the street, for the street can exert no influence of itself; the evil issues from its abuse by those who frequent it, and it is this abuse that should be suppressed. This immediately raises the question as to what constitutes this abuse. We must bear in mind that the real purpose of the street is to serve as a means of communication, a passageway for the transit of passengers and commerce. It was never intended for a playground, nor a field for child labor, nor a resort for idlers, nor a depository for garbage, nor a place for beggars to mulct the public. These fungous growths from civic neglect ought to be cut away. "A place for everything and everything in its place" would be an efficacious even if old-fashioned remedy: playgrounds for the children, workshops for the idlers, reduction plants for the garbage and asylums for the beggars. With these reforms effected and carefully maintained, the street would soon become much more wholesome and attractive.

These considerations have been advanced to indicate the intimate relation which exists between the problem of the child street worker and many other problems with which social workers are now struggling. Child labor in city streets must be abolished, but at the same time coöperation with other movements is necessary before a satisfactory solution of the problem can be assured.

For example, it would be a short-sighted policy to prohibit young children from selling goods in home market stands without reporting to the housing authorities cases in which large families live in one or two filthy rooms, displaying and selling their wares in the doorway and from the

window. Our Italian citizens are not committing race suicide, but in spite of their numerous progeny they crowd together in extremely limited space, combining their home life with the customary business of selling fruit. Their young children assist in tending the stands on market days and nights or sit on the sidewalk selling baskets to passers-by; at closing time their goods are often stored in the same room that serves for sleeping quarters, cots being brought out from some dark hiding place. In such circumstances the mere prevention of child labor is not sufficient—the housing conditions also should be remedied so as to give the children a more suitable place in which to play, study and sleep, a better home in which to use their leisure.

Again, a movement to prohibit street work by children should give impetus to that which seeks to make the public school a social center, and especially to that for public vacation schools. Many of the homes of city children very largely lack the element of attractiveness which is so essential in holding children under the influence of their parents, and this want must be filled as far as possible by making the school an instrument not merely for instruction, but also for the entertainment and socializing of the entire neighborhood.

Again, the regulating of street trading should be undertaken jointly with the movement to supply adequate playground facilities. Playgrounds are not a municipal luxury, but a necessary. Children must have some suitable place for recreation. It is not a function of the street to furnish the space for play, and as children cannot and should not be kept at home all the time, it follows that ground must be set apart for the purpose. On these points a British report says: "We have no doubt that insanitary homes and immoral surroundings, with the want of any open spaces where the children could enjoy healthy exercise and recreation, are strong factors in determining towards evil courses in the cases of the children of the poor."^[12] The need for more playgrounds in Chicago was partially supplied by having one block in a congested district closed to traffic during August, 1911, so that children could play there without risking their lives, from eight in the morning to eight in the evening. In providing this emergency playground, Chicago has set an example that will undoubtedly be imitated by other cities.

In this way the abolition of child labor in city streets would result in benefit not only to the children, but to the entire community as well. It would promote a general civic awakening that would make each town and city a better place to live in, a better home for our citizens of the future.

CHAPTER II

EXTENT TO WHICH CHILDREN ENGAGE IN STREET ACTIVITIES IN AMERICA AND EUROPE

There are no reliable figures either official or unofficial showing the number of children engaged in street activities in any city of the United States or in the country at large. The figures given by the United States Census of 1900 are so inadequate that they can hardly mislead any one endowed with ordinary powers of observation. It solemnly declares that in that year there was a grand total of 6904 newspaper carriers and newsboys, both adults and children, in the entire United States, of whom 69 were females.^[13] In all probability there was a greater number at that time in some of our larger cities alone. In the group called "other persons in trade and transportation" only 3557 children ten to fifteen years of age are reported, although this group embraces nine specified occupations, of which that of the newsboy is only one. Besides these, many other occupations (in which 63 per cent of the total number of persons reported are engaged) are not specified.^[14] Consequently the number of newsboys ten to fifteen years old reported by the enumerators for the entire country must have been ridiculously small.

Again, the total number of bootblacks ten years of age and upwards in the country was reported as 8230, they being included in the group called "other domestic and personal service." Only 2953 children ten to fifteen years of age were reported in this group, which includes five specified occupations, of which that of the bootblacks is only one, and many others (in which 67 per cent of the total number of persons reported are engaged) which are not specified.^[15]

The inadequacy of these figures to convey any idea whatsoever as to the extent of child labor in street occupations in this country is painfully apparent; they are quoted here merely to show the poverty of statistics on this subject. Their inaccuracy is practically conceded by the report itself in the following words: "The limitations connected with the taking of a great national census preclude proper care upon the question of child employment. There is great uncertainty as to the accuracy of a mass of information of this character taken by enumerators and special agents, who either do not appreciate the importance of the investigation or find it impracticable to devote the time to the inquiry necessary to secure good results."^[16]

There is reason to hope for more reliable data from the 1910 census; but unfortunately the figures will probably not be available until 1913. The enumerators employed by the Federal government for the Census of 1910, were instructed to make an entry in the occupation column of the population schedule for every person enumerated, giving the exact occupation if employed, writing the word "none" if unemployed, or the words "own income" if living upon an independent income. It was stated positively that the occupation followed by a child of any age was just as important for census purposes as the occupation followed by a man, and that it should never be taken for granted without inquiry that a child had no occupation.^[17]

However, upon inquiry by enumerators at the time of the census taking as to the occupation of children, many parents undoubtedly replied in the negative, even though their children may have been devoting several hours daily outside of school to street work, under the impression that this was not an occupation. Consequently it is safe to assume that the figures for street-working children in the United States according to the Census of 1910 when published will be under the true number. Nevertheless, they can hardly fail to reflect conditions far better than did the figures for 1900.

Chicago

It is only from the reports of occasional and very limited local investigations that material as to the actual state of affairs can be obtained. Social workers of Chicago had a bill introduced into the Illinois legislature at its session of 1911, providing that boys under ten years and girls under sixteen years should be prohibited from selling anything in city streets, and some material was gathered to be used in support of this measure. In connection with what has already been said in [Chapter I](#), it is interesting to note that although the provisions of this bill were very mild, and strong efforts were put forth by social workers to secure its passage, it was not allowed to become a law largely because of the absence of public opinion and partly because of the opposition by newspaper publishers and others who were afraid that their interests might suffer through the granting of protection to such little children.

In one of the schools of Chicago, pupils were found to be trading in the streets in addition to attending school in the following percentages:—

65 per cent of 5th grade children
35 per cent of 4th grade children
15 per cent of 2d grade children
12 per cent of 1st grade children

(Figures for 3d grade were not given.)

All of these children were attending school twenty-five hours a week, and many cases of excessive work out of school hours were found. Some allowance should be made for possible exaggeration on the part of these children, but nevertheless it is certain that many of them were working to an injurious extent. The hours given were as follows:—

1 boy over 50 hours
4 boys over 40 hours
5 boys over 35 hours
7 boys over 30 hours
18 boys over 20 hours

Their average earnings per week were found to be as follows:^[18]—

5th grade children	\$1.18
--------------------	--------

4th grade children	.85
3d grade children	.60
2d grade children	.43
1st grade children	.36

In referring to the weekly income of the children from this source, the Handbook of the Chicago Child Welfare Exhibit declared that it was "a pitiable sum to compensate for the physical weariness and moral risk attending street trades in a large city. School reports show that street trades, when carried on by young children, lead to truancy, low vitality, dullness and the breaking down of parental control. Since the children are on the streets at all hours, careless habits are developed which often lead to moral ruin to both boys and girls."^[19]

An instance was related wherein the teacher of a fifth grade in a Chicago school asked those of her pupils who worked for money to raise their hands. In the class of 38 pupils, 26 acknowledged that they were little breadwinners! One boy said he worked ten hours a day besides attending school; others had less striking records, spending from twenty to forty hours a week selling chewing gum and newspapers, blacking boots and pursuing the various other street occupations which the Illinois law leaves open to children of all ages.^[20]

Referring to the economic and home conditions surrounding young children in Chicago and the many phases of danger to their moral well-being, the Vice Commission of that city reported that its agents had found small boys selling newspapers in segregated districts and that one night an investigator had counted twenty newsboys from eleven years upwards so engaged at midnight and after. Besides these newsboys, many little boys and girls were found peddling chewing gum near disorderly saloons where prostitutes were soliciting. Numerous examples of employment in vicious environment are cited, principally of the peddling of newspapers and chewing gum by young children at all hours of the night in the "red light" districts, about saloons and museums of anatomy. Even in the rear rooms of saloons, boys were seen offering their wares and heard to join in obscene conversation with the patrons of these resorts.^[21]

A folder published in Chicago by the advocates of street-trade regulation calls attention to these conditions, and states, with regard to little newsgirls who sell papers in the vice regions: "It is not surprising if some of them, becoming so familiar with the practices of the district, take up the profession of the neighborhood. The Juvenile Protective Association reports one little girl who entered the life of a professional prostitute at the age of fourteen, after having sold newspapers for years in the district."^[22]

Another element of this problem, seldom considered, is described also in this folder—the vagrants, who constitute a large and growing class deserving the attention of both city and citizen. "Three classes of persons, who add little to the general circulation, while detracting much from the tone of the business and working a real injury to themselves, are engaged in selling newspapers; these are the small boy, the semi-vagrant boy, and the young girl. The business of selling newspapers in Chicago is so systematized that the 'vagrant' cannot prosper, and yet the 'vagrant' is in our midst. He can be found on State Street at 11 o'clock on a Saturday night with one newspaper under his arm—not attempting to sell it, but using it as a bait to beg from the passers-by. He can be found in the *American* news alley, sometimes fifty, sometimes a hundred strong, sleeping on bags, under boxes, or on the floor of the newspaper restaurant. With this boy, and with all those who are obviously too young to be permitted to engage in street

trading, it is our duty to deal if we are to preserve the attitude the American city takes toward the dependent child."

NATIONALITIES OF BOSTON CHILD STREET TRADERS

PLACE OF BIRTH			NUMBER	PERCENTAGE
America	{ Boston	1,556	1860	70.
	{ Elsewhere in Mass.	171		
	{ Other states	133		
Russia			473	17.5
Italy			161	6.
Other foreign countries			162	6.
Not given			8	.5
			2664	100.0

Boston

In Boston, during the year 1910, there were issued to newsboys, peddlers and bootblacks from eleven to thirteen years of age inclusive, 2664 licenses. Of these nearly all (2525) were issued to newsboys, while 114 were issued to bootblacks and 25 to peddlers. Of these license holders 904 were eleven years old, 900 were twelve years old, and 860 were thirteen years old. It is interesting to note that nearly three fourths of these children were born in the United States; the table on [page 33](#) shows their distribution among nationalities.

New York City

The actual number of children engaged in street activities at any given time is less than the number of licenses issued during the year, inasmuch as not all such children persist in pursuing this work, many of them working only a few weeks, while a few never enter upon the tasks which they have been licensed to perform. This is borne out by the experience of investigators in New York City; the report of a study made there recently says: "We are told by the department of education issuing newsboy badges that 4500 boys have these badges, yet when we secured the addresses of some of these from their application cards ... we found that not 30 per cent of the 100 cases investigated lived at listed addresses. Many such were bogus numbers, open lots, factories, wharves, and in some cases the middle of East River would wash over the house number given. When we did find a correct address, the children so located in six cases out of ten were not following the trade. In some instances they never sold papers, obtaining badges simply because other boys were applying for them, and after receiving a badge tucked it away in a drawer or maybe sold it or gave it away."^[23]

Cincinnati

In Cincinnati from June to December, 1909, 1951 boys from ten to thirteen years of age were licensed to sell newspapers, this number being about 15 per cent of the total number of boys of these ages in the city. Their distribution according to age was as follows:—

10 years	424
11 years	466
12 years	539
13 years	522
Total	<u>1951</u>

The Cincinnati figures do not include bootblacks, peddlers or market children, as no licenses were issued for such occupations, although they are specifically covered by the municipal ordinance regulating street trades.

The above data were available only because there has been some attempt in Boston, New York and Cincinnati to restrict the employment of children in street occupations; as in the great majority of cities and states there is absolutely no regulation of this kind, there are of course no figures to indicate conditions.

The Padrone System

In almost every city of the United States having a population of more than 10,000, there is to be found the padrone system, which is operated principally in the interests of the bootblacking business which the Greeks control. The peddling of flowers, fruit and vegetables in Chicago and New York is partly subject to the same methods. The labor supply furnished by this system for peddling and bootblacking consists generally of children from twelve to seventeen years of age.
^[24]

The Immigration Commission states in its report that there are several thousand shoe-shining establishments in the United States operated by Greeks who employ boys as bootblacks, and that with few exceptions they are under the padrone system.^[25] A few boys under sixteen years of age are employed under the Greek padrone system as flower vendors, and these are found chiefly in New York City. They are hired by florists to sell flowers in the streets and public places—largely old stock that cannot be handled in the shops. These boys usually live in good quarters, are well fed and receive their board and from \$50 to \$100 a year in wages. When not engaged in peddling, they deliver flowers ordered at the shops. The boys employed by the padrones to peddle candy, fruit and vegetables usually live in basements or in filthy rooms; here they are crowded two, three and sometimes four in one bed, with windows shut tight so as to avoid catching cold. The fruit and vegetables still on hand are stored for the night in these bedrooms and in the kitchen. In each peddling company there are usually three or four wagons and from four to eight boys.^[26]

Minor Street Occupations

There are a few so-called street trades in which a relatively small number of children are engaged which so far have not been mentioned in this volume. These are the leading of blind persons and the accompanying of beggars in general, little children being found valuable for such work because they help to excite the sympathy of passers-by. A few children also are employed as lamplighters to go about towns lighting street lamps in the evening and extinguishing them in the early morning. A class of street boys who have as yet received no name in this country, but in England are called "touts," haunt the neighborhood of railroad depots and lie in wait for passengers with hand baggage, offering to carry it to the train for a small fee.

Some children are used as singers or performers upon musical instruments, but this is in reality only another form of begging. The writer found one instance of a young boy who was employed by the public library of one of our large cities to gather up overdue books about the city and to collect the fines imposed for failure to return the same. Very frequently in the course of his work this boy had to enter houses of prostitution, as the inmates are steady patrons of the public library, reading light literature, and are quite negligent in the matter of returning the books within the prescribed time. Immediately upon the librarian's learning of the situation, he was relieved of this duty, and a man was detailed to perform the task. Such special occupations as these do not constitute a real factor in the problem because of the small number of children involved, and hence they are omitted from consideration.

Conditions in Great Britain

Turning to Europe we find much more information on this subject. In Great Britain the House of Commons in 1898 ordered an inquiry to be made into the extent of child labor among public school pupils, and the education department sent schedules to the 20,022 public elementary schools in England and Wales for the purpose of determining the facts. A little more than half of the schools returned the schedules blank, stating that no children were employed; this introduced a large element of error into the return, as many of the schoolmasters misunderstood the meaning of the schedules, and consequently quite a number of children who should have been included were omitted from the total. The 9433 schedules which were filled and returned showed that 144,026 children (about three fourths boys and one fourth girls) were in attendance full time at the public elementary schools of England and Wales and known to be employed for profit outside of school hours.

The ages of these children reported as employed were as follows:^[27]—

Under 7 years	131
7 years	1,120
8 years	4,211
9 years	11,027
10 years	22,131
11 years	36,775

12 years	47,471
13 years	18,556
14 and over	1,787
Not given	817
Total	144,026

The standards or school grades in which these working children were enrolled and the total enrollment for the year ended August 31, 1898, were as follows:^[28]—

WORKING CHILDREN		TOTAL ENROLLMENT
No Standard	329	
1st standard	3,890	2,875,088
2d standard	11,686	723,582
3d standard	24,624	679,096
4th standard	36,907	590,850
5th standard	37,315	421,728
6th standard	21,975	212,546
7th standard	6,382	66,442
Ex-7 standard	382	7,534
Not stated	536	
Total	144,026	5,576,866

The occupations followed by these children were divided into three main groups, and each of these groups was further divided into three classes. These divisions and the number of children in each were as follows:^[29]—

PIECEWORK, CHIEFLY BOYS		TIME-WORK, CHIEFLY BOYS		DOMESTIC EMPLOYMENT, GIRLS ONLY, WITH ONE OR TWO EXCEPTIONS	
Selling newspapers	15,182	In shops or running errands for shopkeepers	76,173	Minding babies	11,585
Hawking goods	2,435	Agricultural occupations	6,115	Other housework, including laundry work, etc.	9,254
Sports, taking dinners, knocking-up, etc.	8,627	Boot and knife cleaning, etc. (house boys)	10,636	Needlework and like occupations	4,019

The return revealed a surprising variety of occupations followed by these children—about 200 different kinds in all.

HOURS PER WEEK	NUMBER OF CHILDREN
Under 10	39,355
10-20	60,268
21-30	27,008
31-40	9,778
41-50	2,390
51-60	576
61-70	142

71-80	59
Over 81	16
Not stated	4,434
Total	144,026

The number of hours per week devoted by these children to the various employments will be found in the above table; it should be remembered that these hours were given to work in addition to the time spent at school.^[30]

It was recognized that the figures given by this parliamentary return did not represent the real situation, but nevertheless its revelations were sufficiently startling to show the need of further investigation. Accordingly in 1901 there was appointed an interdepartmental committee which after careful study reported that the figures in the parliamentary return were well within the actual numbers, but that the facts it contained were substantially correct.^[31] This committee estimated the total number of children who were both in attendance at school and in paid employments in England and Wales at 300,000;^[32] it declared that cases of excessive employment were "sufficiently numerous to leave no doubt that a substantial number of children are being worked to an injurious extent."^[33]

Referring to the amount of time devoted by the children to gainful employment outside of school, the committee reported, "On a review of the evidence we consider it is proved that in England and Wales a substantial number of children, amounting probably to 50,000, are being worked more than twenty hours a week in addition to twenty-seven and one-half hours at school, that a considerable proportion of this number are being worked to thirty or forty and some even to fifty hours a week, and that the effect of this work is in many cases detrimental to their health, their morals and their education, besides being often so unrelenting as to deprive them of all reasonable opportunity for recreation. For an evil so serious, existing on so large a scale, we think that some remedy ought to be found."^[34] The committee estimated the total number of children selling newspapers and in street hawking at 25,000.^[35]

With reference to conditions in Edinburgh, an English writer says, "Of the 1406 children employed out of school hours in Edinburgh, 307 are ten years of age or under. Four of them are six years old, and eleven are seven years of age. We hear of boys working seventeen hours (from 7 A.M. to 12 P.M.) on Saturday. For children to work twelve, thirteen and fourteen hours on Saturday is quite common. The average wage seems to be three farthings an hour, but one hears of children who are paid one shilling and sixpence for thirty-eight hours of toil."^[36]

In New South Wales boys are permitted to trade on the streets at the age of ten years, and up to fourteen years may engage in such work between the hours of 7 A.M. and 7 P.M. except while the schools are in session; after they are fourteen years old they may trade between 6 A.M. and 10 P.M. Such children are licensed, and during the six months ending March 31, 1910, 714 licenses were issued, 72 per cent of them being to children under fourteen years of age; 92 per cent of these children were engaged in hawking newspapers, the others being scattered through such occupations as peddling flowers, fruit and vegetables, fish, fancy goods, matches, bottles, pies and milk.^[37]

Conditions in Germany

In December, 1897, the German Imperial Chancellor, referring to the incomplete census returns as to child labor, requested the governments to furnish him with information as to the total number of children under fourteen employed in labor other than factory labor, agricultural employment and domestic service, and the kinds of work done. In this circular he said: "But, above all, where the kind of occupation is unsuitable for children, where the work continues too long, where it takes place at unseasonable times and in unsuitable places, child labor gives rise to serious consideration; in such cases it is not only dangerous to the health and morality of the children, but school discipline is impaired and compulsory education becomes illusory. For children cannot possibly give the necessary attention to their lessons when they are tired out and when they have been working hard in unhealthful rooms until late at night. I need only instance employment in skittle alleys late in the evening, in the delivery of newspapers in the early morning and the employment of children in many branches of home industry. The most recent researches undertaken in different localities show that the employment of children in labor demands earnest attention in the interests of the rising generation."^[38]

Inquiries extending over almost the whole German Empire were accordingly made by the different states from January to April, 1898. It was found that 544,283 children under fourteen years were employed in labor other than factory labor, agricultural employment and domestic service. This was 6.53 per cent of the total number of children of school age (8,334,919).

With regard to the effects of such work, this German report says: "As the children who carry around small wares, sell flowers, etc., go from one inn to another, they are exposed to evil influences, and are liable to contract at an early age, bad habits of smoking, lying, drinking.... The delivery of newspapers is a particularly great strain on the children, as it occupies them both before and after school hours."

Seven divisions of these children were made according to occupation, four of them relating to street work. Under the heading *Handel* were included children in many kinds of work, among them hawking fruit, milk, bread, brooms, flowers, newspapers, etc.; under *Austragedienste* were included only the delivery and carrying around of bread, milk, vegetables, beer, papers, books, advertisements, circulars, bills, coals, wood, boots and shoes, washing, clothes, etc.; under *Gewöhnliche Laufdienste* were included only errand boys and messengers; under *Sonstige gewerbliche Thätigkeit* were included, among other occupations, blacking boots, leading the blind, street singers and players, etc.

	BOYS	GIRLS	SEX NOT STATED	TOTAL	PERCENTAGE
Handel (retail trade)	7,507	4,540	5,576	17,623	3.31
Austragedienste (delivery service)	67,188	36,966	31,676	135,830	25.52
Gewöhnliche Laufdienste (general messenger service)	23,321	2,134	10,454	35,909	6.75
Sonstige gewerbliche Thätigkeit (other forms of labor)	6,281	2,387	3,119	11,787	2.21

Conditions in Austria

The Austrian Ministry of Commerce began an investigation of actual conditions in Austria late in 1907 in response to the agitation for a new law that would regulate child labor not only in factories, but also in home industries, in commerce, and even in agriculture. In his Report on Child Labor Legislation in Europe, Mr. C. W. A. Veditz refers to the findings of this investigation in a number of the provinces. In Bohemia, of 676 children in trade and transportation, but still attending school, 169 were engaged in peddling and huckstering; in delivering goods and going errands 1554 children were employed, being generally hired to deliver bread, milk, meats, groceries, newspapers, books, telegrams, circulars—in fact, all manner of goods.^[39] In the province of Upper Austria children are paid from two to seven crowns (40.6 cents to \$1.42) a month for delivering newspapers daily, while in the duchy of Salzburg the pay varies from twenty to fifty hellers (4 to 10 cents) a day for delivering bread or newspapers.

In the province of Lower Austria, "referring now to the other main occupations in which school children are employed outside of industry proper, the report [of the investigation] shows that ... those working in trade and transportation usually help wait on customers in their parents' stores; a number, however, sell flowers, shoe laces, etc., or huckster bread, butter and eggs, or carry passengers' baggage to and from railway stations. Most of those put down as delivering goods are engaged in delivering bread, milk, newspapers and washing."^[40] Children who sell flowers, bread or cigars in Vienna earn one to two crowns (20.3 to 40.6 cents) a day during the week, and on Sundays as much as three crowns (60.9) cents. "The children employed [in Lower Austria] to deliver goods and run errands are also usually employed by non-relatives and receive wages in money. Those who deliver milk, and who work one half to one hour a day, generally receive twenty hellers to one crown (4 to 20.3 cents) weekly; in exceptional cases two crowns (40.6 cents), and in some instances only food and old clothes. For delivering bread and pastry, wages are reported as thirty hellers (6 cents) a week and some meals, or fifty hellers to two crowns (10 to 40.6 cents) a week without meals; in exceptional cases, 10 per cent of the receipts. For delivering papers, which requires one to two hours a day, children receive two to ten crowns (40.6 cents to \$2.03) a month. For delivering of washing, thirty hellers (6 cents) for a two-hours' trip, or sixty hellers to two crowns (12 to 40.6 cents) a week. Children who carry dinner to mill laborers, requiring one half to one hour daily, get eighty hellers to five crowns (16 cents to \$1.02) a month. Messengers for stores, hotels, etc., get a tip of two to ten hellers (.4 to 2 cents) per errand, or, if employed regularly, twenty hellers to one crown (4 to 20.3 cents) a week."^[41]

"The delivery of milk, pastry, newspapers, etc., in which many children are employed in Vienna and other large cities, does not cause frequent absences, but is responsible for tardy arrival at school in the morning and for the fatigue that reduces attention and prevents mental alertness."^[42]

CHAPTER III

NEWSPAPER SELLERS

By far the majority of the children in street occupations are engaged in the sale or delivery of newspapers. The newsboy predominates to such an extent that he is taken as a matter of course. As Mrs. Florence Kelley says, "For more than one generation, it has been almost invariably assumed that there must be little newsboys." Ever since he became an institution of our city life, the public has been pleased to regard him admiringly as an energetic salesman of penetrating mind and keen sense of humor. There seems to be a tacit indorsement of the newsboy as such.

Ordinarily there are five classes of newsboys to be found in all large cities—(1) the corner boys, (2) those who sell for corner boys on salary, (3) others who sell for them on commission, (4) those who sell for themselves, and (5) those with delivery routes. The bulk of the business is handled by the first three of these classes, which are always associated together and found on the busy corners of the downtown sections of all our cities. The choice localities for the sale of newspapers, namely, the corners in the downtown sections where thousands of pedestrians are daily passing, come under the control of individuals by virtue of long tenure or by purchase, and their title to these corners is not disputed largely on account of the support they receive from the circulation managers of the newspapers. In former years the proprietorship of the corner was settled by a fight, but now it undergoes change of ownership by the formal transfer of location, fixtures and goodwill in accordance with the most approved legal practice.

In Chicago a system of routes has been established by the newspapers which send wagons out with the different editions published each day to supply the men who control the delivery and sale of newspapers in the various districts. These route men employ boys to deliver for them to regular customers and also to sell on street corners on a commission basis. In Boston, ex-newsboys known as "Canada Points" are employed by the publishers at a fixed salary to distribute the editions by wholesale among the twenty odd places in the city from which the street sellers are supplied.

Ages, Earnings and Character of the Work

The following individual cases will serve to illustrate the various forms this business takes. One nineteen-year-old boy paid \$65 for his corner in Cincinnati about five years ago; he now earns from \$4 to \$5 a day clear and would not sell the location for many times its cost. He works there from 11 A.M. to 6.30 P.M. on week days, starting an hour earlier on Saturdays, while on Sundays he delivers the morning newspapers over a route to regular customers. Two boys of about twelve years of age work for him, to one of whom he pays 25 cents a day and to the other

30 cents a day; their duties are to hawk the different editions and to dispose of as many copies as possible by hopping the street cars and offering the papers to pedestrians from 3.45 to 6.30 P.M. daily on week days. If they do not hustle and make a large number of sales, they lose their job.

A corner in another part of the city is "owned" by a thirteen-year-old boy who earns about 80 cents a day clear for himself in eight hours, and on Saturdays in nine hours. He has two boys working for him on commission, to whom he pays one cent for every four papers sold; they average about 15 cents a day apiece for three hours' work. When questioned, these commission boys admitted that they could make more money if working for themselves, but in that case would have to work until all the copies they had bought were sold, while on the commission plan they did not have to shoulder so much responsibility.

Regulations made by the circulation managers of newspapers concerning the return of unsold copies greatly affect the newsboys' business. Naturally these regulations are made with an eye to extending the circulation. Corner boys are allowed to return only one copy out of every ten bought, being reimbursed by the office for its cost. Consequently they urge their newsboy employees and commission workers to put forth every effort to dispose of the supply purchased. The independent sellers are never permitted to return any unsold copies, except in the case of certain energetic boys who can be relied upon to work hard in any event. These are known as "hustlers," and owing to their having won the confidence of the circulation manager they are granted the special privilege of returning at cost all copies they have been unable to sell.

In Boston, beginners are often on a commission basis; "in this way they secure the advice and protection of the more experienced while serving their apprenticeship. These *strikers*, as they are called, keep one cent for every four collected; few of them earn more than 25 cents a day, while many of them earn less than 10."^[43]

An eleven-year-old Jewish boy who has been a newsboy for several years now controls a comparatively quiet corner in Cincinnati, where he nets from 40 to 50 cents a day, working about three hours. This boy's father and mother are both living.

Submission to older persons is natural among children, and an interesting instance of tyranny over small boys by adults was found in the case of a newspaper employee who works inside the plant and employs several young boys to sell newspapers on the streets for him. These boys together earn about \$1.30 when working about seven hours, but only half of this amount goes into their pockets, the other half being paid to their "employer." In New York City certain busy sections having points of strategic value are under the control of men who employ small boys to do the real work for a mere pittance, usually the price of admission to a moving-picture show. However, under certain circumstances, these little fellows often display a sturdy spirit of independence. An amusing instance is innocently recorded by an old wartime report of a newsboys' home: "It had been decided to give the boys a free dinner on Sundays, on condition that they attend the Sunday School; but last Sunday they desired the Matron to say that they were able and willing to pay for the dinner."^[44]

Independent newsboys must not stand in the territory controlled by another; they must select some uncontrolled spot, or else run about hither and yon, selling where they can. Under the unwritten law of this business a boy who chances to sell in another's territory must give the corner boy the money and receive a newspaper in exchange; this results the same as if the corner

boy himself had made the sale. The earnings of these independent boys range from 15 to 65 cents daily out of school hours, while on Saturdays they make from \$1 to \$1.50 working from 11 A.M. to 6.30 P.M.

An eleven-year-old lad who has been a newsboy for three years, selling on his own account, disposes of most of his copies in saloons located in the middle of a busy square, earning from 50 cents to \$1.25 a day even when attending school. His mother and father are both living. Another example of this class is a sixteen-year-old boy who devotes all his time to the trade, his net income averaging about \$7.50 per week. His attitude toward regular work is both interesting and significant; he hopes to get a better job, but says that although he has hunted for one, so little is offered for what he can do (\$2 to \$3 per week) that it would hardly suffice for spending money. Discussing this difference between factory wages and street-trading profits, an English report says: "Working from 11 A.M. to 7 or 8 P.M., with intervals for gambling, newsboys over 14 years old can make from 10s. to 14s. a week if they have an ordinary share of alertness. In a factory or foundry, working from 6 A.M. to 6 P.M., a boy earns about 13s. a week. The comparison needs no comment. The excitement of their career tends to make them more and more reluctant to work steadily.... Many newsboys protest that they want more permanent work, but they rarely keep it when it is found for them."^[45] The life of the streets lacks the discipline involved in steady work and fixed earnings.

As an example of the route boy there is a fourteen-year-old lad in Cincinnati who has a list of fifty customers to whom he delivers newspapers regularly, earning in this way 25 cents daily, delivering after school hours. He declares that he finds it much easier to work on a route than to sell on the corners or at random.

The morning papers employ a man as circulation manager for the residence districts who controls all the corners in those sections. When a corner becomes vacant, he assigns a youth to it. These older boys are not to sell their corners nor to dispose of them in any way, nor are they allowed to have any one working for them; they must "hop" all the street cars passing their corners and are expected to put forth every effort to accomplish a great number of sales. They get their supply of copies at the branch office at 5 A.M., hurrying then to their corners, where they remain until nearly noon, averaging in this time from \$2 to \$3 per day clear. Nearly all of the afternoon papers sold in the residence districts are delivered by route boys; after having gone over their routes, some of these boys go to the busier localities and sell the sporting extra during the baseball season until about seven o'clock.

Environment

Strong emphasis was laid upon the evils of street trading by the New York Child Welfare Exhibit of 1911, the Committee on Work and Wages declaring that "The ordinary newsboy is surrounded by influences that are extremely bad, because (1) of the desultory nature of his work; (2) of the character of street life; and (3) of the lack of discipline or restraint in this work. The occupation is characterized by 'rush hours,' during which the boy will work himself into exhaustion trying to keep pace with his trade, and long hours in which there is little or nothing to do, during which the boy has unlimited opportunities to make such use of the street freedom as

he sees fit. During these light hours newsboys congregate in the streets and commit many acts of vandalism. They learn all forms of petty theft and usually are accomplished in most of the vices of the street. In building up their routes, the boys often include places of the most degrading and detrimental character. On the economic side, the loss is due to failure of the occupation to furnish any training for industrial careers."^[46]

The irregularity of newsboys' meals and the questionable character of their food form one of the worst features of street work and are a real menace to health. Many newsboys are in the habit of eating hurriedly at lunch counters at intervals during the day and night, while some snatch free lunches in saloons. In New York City their diet has been found to consist chiefly of "such hostile ingredients as frankfurters, mince pies, doughnuts, ham sandwiches, cakes and 'sinkers'."^[47] The use of stimulants is common, and the demand for them is to be expected because of the nervous strain of the work. Liquor is not consumed to any appreciable extent by street-trading children, but coffee is a favorite beverage. In the largest cities, where "night gangs" are found, from four to six bowls of coffee are usually taken every evening. Tobacco is used in great quantities and in all its forms; many boys even appease their hunger for the time by smoking cigarettes, and the smallest "newsies" are addicted to the habit. Evidence that this is not a recent development among street workers is found in a report made nearly a quarter of a century ago, which, with reference to newsboys, says "many of them soon spend their gains in pool rooms, low places of amusement and for the poisonous cigarette."^[48]

An English report on the street traders of Manchester says: "Drunkenness is rare among these boys ... they are in many ways attractive; but the closer our acquaintance grows with them the more overwhelming does this propensity to gambling appear. Indeed, it may reasonably be said that the whole career of the street trader is one long game of chance.... They tend to become more and more unwilling to work hard; they are the creatures of accident and lose the power of foresight; they never form habits of thrift; and their word can be taken only by those who have learnt how to interpret it."^[49]

There are tricks in newspaper selling as well as in other trades, and children are not slow to learn them. A careful observer cannot fail to note that certain newsboys seem always to be without change. Their patrons are generally in a hurry and willingly sacrifice the change from a nickel, even priding themselves on their unselfishness in thus helping to relieve the supposed poverty of the newsboys. As a matter of fact, such an act does real harm, for it arouses the cupidity of boys and leads them to believe that honesty is not the best policy. The temptation for newsboys to develop into "short change artists" is an ever present one, for the bustle of the street creates a most favorable condition for the practice of such frauds. Yet in spite of the many temptations which assail them, numbers of newsboys are scrupulously exact in the matter of making change, even under the most trying circumstances. Another common form of deceit, used to play upon the sympathy of passers-by, is practiced after nightfall by boys of all ages in offering a solitary newspaper for sale and crying in plaintive tone, "Please, mister, buy my last paper?" A kind-hearted person readily falls a victim to this ruse, and as soon as he has passed by, the newsboy draws another copy from his hidden supply and repeats his importuning. Commenting on these features of street trading, Dr. Charles P. Neill, United States Commissioner of Labor, has said: "Unless the child is cast in the mold of heroic virtue, the newsboy trade is a training in either knavery or mendicancy. Nowhere else are the wits so sharpened to look for the unfair advantage, nowhere else is the unfortunate lesson so early

learned that dishonesty and trickery are more profitable than honesty, and that sympathy coins more pennies than does industry."^[50]

Hours

Work at unseasonable hours is most disastrous in its effects upon growing children, and the newspaper trade is one that engages the labor of boys in our larger cities at all hours of the night. This fact is not generally known. A prominent social worker recently said: "I was astounded to find the other day that my newspaper comes to me in Chicago every morning because two little boys, one twelve and the other thirteen, get it at half-past two at night. These little boys, who go to school, carry papers around so that we get them in the morning at four o'clock all the year around. They are working for a man with whom we contract for our newspapers. I was quite shocked in St. Louis twice this fall (1908) to find a girl five or six years of age selling newspapers near the railroad station in the worst part of town after dark. We hear a great deal of sentimental talk about newsboys' societies doing so much for newsboys, but they do not seem to care anything for work of this kind."^[51] In passing it may be remarked that in the city of Toledo there is an active association organized for the benefit of newsboys, which openly encourages street work by boys of from eight to seventeen years. The manager insists that such work affords the means of alleviating the poverty in the families of these boys, but upon inquiry it was found that he had never heard of the provision for the financial relief of such cases of child labor, which is made by the Ohio law, and which had been, at the time, most successfully administered for three years by the Board of Education of his own city.

The Chicago newspapers have their Sunday editions distributed on Saturday night, consequently the newsboys are up all night so as to assure prompt service to patrons. In the absence of public opinion in the matter, this abuse flourishes unrestricted, and the children's health is sacrificed to meet the demand for news. Agents of the Chicago Vice Commission reported having seen boys from ten to fifteen years of age selling morning papers at midnight Saturday in the evil districts of the city.^[52]

The early rising of newsboys to deliver the morning week-day editions also contributes to the breaking down of their health. The old adage is a mockery in their case. There is abundant testimony relative to the evil effects of such untimely work. "Children who go to school and sell papers get up so early in the morning that they are so stupid during the day they cannot do anything. That was clearly demonstrated to me during my experience in teaching school."^[53]

Another teacher said: "I have had instances in school where children have gone to sleep over their tasks because they got up at two or three o'clock in the morning to put out city lights and to sell papers. In those instances we wanted the parents to take the children away from their work. Where they would not do it, we prosecuted them for contributing to the delinquency of their children."^[54]

The delivery of newspapers by young boys in the strictly residence sections of cities appears to be unobjectionable, yet even this simple work should be under restriction as to hours, because otherwise the boys would continue to rise at unseemly hours of the night in order to reach the

branch offices in time to get the newspapers fresh from the press. In fact, every phase of street work should be under control. Dr. Harold E. Jones, medical inspector of schools to the Essex County Council, has testified that among the most injurious forms of labor performed by boys is the early morning delivery of newspapers and milk.^[55] In his Report on Child Labor Legislation in Europe, Mr. C. W. A. Veditz states, "Delivering milk before school in the morning must be condemned, because it fatigues the children so that they become, to say the least, intellectually less receptive."^[56]

In his article on "The Newsboy at Night in Philadelphia,"^[57] Mr. Scott Nearing gives a graphic account of conditions in the City of Brotherly Love. Although this description was written some years ago, local social workers find that the same conditions still obtain, as there is neither law nor ordinance to bring about a change. In this city the closing of the theaters at eleven o'clock marks the beginning of Saturday night's work. The last editions of the evening newspapers are offered at this time, often as a cloak for begging. After the theater, the restaurant patrons are available as customers until midnight. Then the morning papers begin to come from the press, and the newsboys abandon their begging and gambling and rush to the offices for their supplies. A load of forty pounds is often carried by the smallest newsboys, hurrying along the streets in the early morning hours. The cream of the business is done at this time, for most of the purchasers are more or less intoxicated and therefore inclined to be generous with tips and indifferent as to change; sometimes a newsboy takes in as much money on Saturday night and Sunday morning as during the entire remainder of the week. In relating his experiences, Mr. Nearing says, "On one night we saw fifteen boys in a group just as the policeman was chasing them out of Chinatown at half-past three Sunday morning; the youngest boy was clearly not over ten and the oldest was barely sixteen." At this hour the officers of the law interfere and quell the revels of the district. The open gratings in sidewalks through which warm air comes from basements, are then sought, and here the boys pass the time dozing until dawn, when they go abroad again to cry the Sunday papers.

Home Conditions—Poverty

One of the reasons why the public is so indulgent toward the street worker is that it takes for granted that the child is making a manly effort to support a widowed mother and several starving little brothers and sisters. Mrs. Florence Kelley calls this "perverted reasoning" and scores the public which "unhesitatingly places the burden of the decrepit adult's maintenance upon the slender shoulders of the child."^[58] Poverty has been made an excuse for child labor from time immemorial by those who profit by the system. Newspapers are not an exception to the rule; the newsboys extend their circulation and incidentally give them free advertising in the streets—hence they see nothing but good in the newsboys' work and fight lustily to defend what they claim to be the mainstay of the widows. That this popular impression and appealing argument are false and without justification has been shown by students of the problem everywhere. The following table gives the family condition of Cincinnati newsboys:—

Both parents dead	12
Father dead	239
Mother dead	69

Both parents living	1432
Total	1752

Through a special inquiry it was found that in only 363 cases out of this total were the earnings of the children really needed. These 1752 children, ten to thirteen years of age, were licensed from July to December, 1909; their distribution as to age was as follows:—

10 years	303
11 years	348
12 years	564
13 years	537
Total	1752

Upon investigation of the home conditions of several hundred newsboys in New York City it was declared that "in the majority of cases parents are not dependent on the boys' earnings. The poverty plea—that boys must sell papers to help widowed mothers or disabled fathers—is, for the most part, gross exaggeration."^[59]

Concerning a study of Chicago newsboys, Myron E. Adams says, "A careful investigation of the records of the Charity Organization Society shows that of the 1000 newsboys investigated, the names of but sixteen families are found, and of these ... only four received direct help, such as coal, clothing or food."^[60]

Mr. Scott Nearing says: "In many cases the boys want to go on the streets in order to have the pocket money which this life affords, and the ignorant or indifferent parents make no objections, but take the street life as a matter of course. Sometimes, though not nearly as often as is generally supposed, there is real need for the selling."^[61]

The British interdepartmental committee appointed in 1901 to inquire into the employment of school children, denounced the tolerance of street trading on the ground of necessity: "We think that in framing regulations with regard to child labour and school attendance ... the poverty of the child or its parents ought not to be made a test of the right to labour.... We do not think it is needed; we think that all children should have liberty to work as much and in such ways as is good for them and no more."^[62]

Another argument in favor of street trading advanced by those who are interested in maintaining present conditions, is that it affords a splendid training for a business career because of the competition that rages among the boys. This is doubtless true, as far as it goes, but the great difficulty is that street trading leads nowhere. It is a blind alley that sooner or later leaves its followers helpless against the solid wall of skilled labor's competition. An occupation that fits a boy for *nothing* and is devoid of *prospects*, is a curse rather than a blessing in this day of specialization. In spite of the division of labor so elaborately realized to-day, a boy or girl who enters any of the regular industries has at least a fighting chance for acquiring a trade. If the child is honest, capable and diligent he will be promoted to a better position in time if misfortune does not overtake him. The trapper boy in a coal mine is in a fair way to become a miner. The lad who works in a machine shop has the opportunity to make a machinist of himself. The girl who begins as a wrapper in a dry goods shop may become a saleswoman, and then possibly a buyer for her department. Yet in most states children may not enter upon such work until they have reached the age of fourteen years, while some states prohibit boys under sixteen years from

being employed in mines or in connection with dangerous machinery either in machine shops or elsewhere. Bitter experience has taught us that these restrictions are right and just, and we now have no hesitancy in barring young children from such employment, regardless of the training it affords. Why, then, do we exempt many forms of street work from the operation of the law? Why do we allow little children to work at any age, both night and day, as newsboys, bootblacks and peddlers in the essentially dangerous environment of the street? Such employment offers but a gloomy future—the useless life of the casual worker. There is no better position to which it leads, no chance for the discovery and development of ability, no reward for good service. It seems incredible that we have been so engrossed with throwing safeguards about the children in regular industries that we have altogether neglected the street worker, for the arguments against child labor in factories, mills, mines and retail shops apply with even greater force to the work of children in our city streets.

Better Substitutes

There is no reason why newsboys should not be replaced as the medium for the sale and delivery of newspapers by old men, cripples, the tuberculous and those otherwise incapacitated for regular work. In London, the *Westminster Gazette*, the *Pall Mall Gazette*, the *Evening Standard* and the *Globe* (all penny papers) are sold in the streets by old men; the *Westminster Gazette* pays them a wage of 1s. for selling eighteen copies and after having disposed of this number they are given a commission of 8d. a quire of twenty-six copies, a few men selling from six to eight quires a day. This newspaper has followed this method for many years, and its general manager declares that it is the most satisfactory system that they have been able to evolve. Boys have no sense of responsibility, while old men cling to their posts very faithfully. He admitted that the *Westminster Gazette* employed some boys as carriers and that the whole subject lay somewhat heavily on his conscience because, "practically speaking, these boys have no future ... a few of them may become cyclists carrying the newspapers ... in a few years their usefulness as cyclists has gone ... then they simply drift away, we don't know where, but we do know that they drift to places like Salvation Army Shelters, etc. How they earn their living is always one of the mysteries of London.... But they have learned nothing from us, nothing that gives them any usefulness for any other occupation.... The great majority become casual labourers dependent entirely on casual work.... It is a life in which very little is gained, although one would suppose that the open air would be of great benefit. But one must remember the insufficient food that these street traders have, and the bad conditions of living and the irregular hours. Many of these boys, of course, are up all hours of the night.... It is quite as bad for a boy in the long run to be engaged as a carrier distributor as for him to sell newspapers in the street. There is no possible argument for the system except that one's competitors do it, and that so long as they do it we must do the same.... We get practically all our men from Salvation Army and Church Army Shelters. There is an abundant supply.... The ordinary man whom we employ is over fifty years of age and runs up to about seventy years.... I think if the police would give us every facility for introducing kiosks it would be a great improvement upon the present system. If boys were prohibited from selling newspapers altogether on the streets, it would automatically send the public to the kiosk; ... the public get into the habit of getting the newspapers from the boys."^[63]

It should be remembered in connection with the above statements that the *Westminster Gazette* is a penny paper, and its manager was of opinion that the half-penny papers could not afford to employ men because they depended largely for their circulation upon the persistence of newsboys in thrusting copies upon the attention of people in the streets; he believed that the use of old men would curtail their circulation because men are not so active as boys. On the other hand, news agents protested against the competition of street traders and maintained that they alone were fully able to meet the demands of the public. The departmental committee of 1910 reported: "There can, we think, be little doubt that an active child is an effective agent in promoting the circulation of half-penny papers, and that if the employment of children were forbidden, newspapers would have to rely upon facilities of a more staid and less mobile character. But we see no reason to think that purchasers of newspapers need be put to any inconvenience, since the news agents would be in a position considerably to extend their business, and it might reasonably be expected that the system of employing old men as salesmen would also be developed. It appears to us economically unjustifiable to use children to their own detriment for work which can be done by other means."^[64]

Referring to the great possibilities for good involved in confining the sale and delivery of newspapers to adults who need outdoor work and are unable to provide for themselves in other ways, the Secretary of the New York Child Labor Committee says: "Where such cities as Paris and Berlin do entirely without newsboys—corner stands taking their places—it would seem that the least that can be done in American cities is to adopt some adequate system of regulation. In this connection, the opportunity presented in newspaper selling to give work to the aged and handicapped—who otherwise would have to be supported by private charity—should not be overlooked."^[65]

The Newsboys' Court

In an effort to control to some extent the tendency of newsboys to become delinquent and to imbue them with a sense of personal responsibility, an interesting experiment in juvenile suffrage and jurisprudence has been undertaken in Boston.

During the year 1909, about three hundred newsboys were taken before the juvenile court of that city charged with violation of the local license rules. As the docket of this court was crowded, these newsboy cases were necessarily delayed, and as a result of this situation the boys conceived the idea of establishing a newsboys' court which should have jurisdiction in all cases of failure to observe the rules governing their trade. The following year a petition was presented to the Boston School Committee which was favorably acted upon by that body, and accordingly on the regular election day of that year the newsboys cast their ballots to select three juvenile judges of the court. These three boys, together with two adults appointed by the School Committee, compose the court. Election of these boy judges is held annually, and all licensed newsboys who attend the public schools are qualified electors. The court is empowered to investigate and report its findings with recommendations to the School Committee in all cases of infraction of the newsboy rules. Under the Massachusetts law the School Committee is authorized to regulate street trading by children under fourteen years of age, hence the newsboys are subject to purely local supervision. The supervisor of licensed minors, also an appointee of

the School Committee, can, in his discretion, take complaints in his department before the newsboys' court instead of the juvenile court. The newsboy judges are paid fifty cents for their attendance at each official session of the court. The charges made before the Trial Board, as the Boston newsboys' court is called, range from selling without a badge or after eight o'clock in the evening or on street cars, to bad conduct, irregular school attendance, gambling or smoking. The disposition of these cases varies from reprimands and warnings to probation or suspension of license for a definite period, or complete revocation of license.^[66]

Summary

Although the work of selling newspapers has been, to some extent, subdivided and systematized by circulation managers, it has so many features highly objectionable for children that a radical departure from present methods of handling this business should be taken. We know that the work of the newsboy lacks the oversight and discipline of adults, that it exposes the children to the varied physical dangers lurking in the streets, that the early and late hours cause fatigue, that the opportunities for bad companionship are frequent, that irregularity of meals and use of stimulants tend to weaken their constitutions, that it offers no chance for promotion and leads nowhere. We know further that the presence of the newsboy in our streets cannot be justified on the ground of poverty. It has been demonstrated in other countries that children are not essential to the sale and delivery of newspapers; in fact, it has been shown that selling at stands and the use of men instead of children in the streets are both feasible and satisfactory. Why cannot such practices be introduced into the United States? There can be but little doubt as to the advisability of this step, but the innovation will certainly not be made voluntarily by the newspapers. The law must force the issue by prohibiting street work by children.

CHAPTER IV

BOOTBLACKS, PEDDLERS AND MARKET CHILDREN

Bootblacks

The itinerant bootblack is gradually disappearing from our cities, but he is still found in Boston, Buffalo, New York City and a few other places. He is being supplanted by the worker at stands, which are conducted almost invariably by Greeks. As a result of this change the bootblacking business will soon cease to be a street occupation; it is discussed here because of the abuses it involves and because it is unregulated in many states, owing to its omission from the list of employments covered by child labor laws.

The Padrone System

The New York-New Jersey Committee of the North American Civic League for Immigrants reports that: "The condition of Greek boys and young men in such occupations as pushcart peddling, shoe-shining parlors and the flower trade is one of servitude and peonage. It has been found that many boys apparently from fourteen to eighteen years of age arrive here alone, stating that they are eighteen years old, but in reality less than this, and that they are going to relatives. They have been found working in the shoe-shining parlors seven days a week from 7 A.M. to 9 P.M. and living with the 'boss' in groups varying from five to twenty-five under unsanitary conditions, overcrowding and irregularity of meals wholly undesirable for young boys. They are isolated from learning English or from American contact, and receive for their work from \$7 to \$15 a month and board and lodging. The majority of the flower peddlers have been unable to obtain permits, with the result that the boys who work for them are arrested for violating the law. Boys who have been in the country from three months to a year state they have been arrested several times—their first experience in this country—and are already hardened so that they think nothing of paying fines."^[67]

The bootblack business is the chief industry to which the Greek padrone system is applied. The United States Immigration Commission found^[68] that boys employed as bootblacks live in extremely unwholesome quarters. Wherever the room is large enough, several beds are gathered together with three and sometimes four boys sleeping in each bed. In some places the boys merely roll themselves up in blankets and sleep on the floor. The bootblacking stands are opened for business about 6 o'clock in the morning, consequently the boys are obliged to rise about an hour earlier, and wherever their sleeping quarters are located at considerable distance from the

stands, they have to get up as early as 4.30. Arrived at the stands, they remain working until 9.30 or 10 at night in cities, and on Saturday and Sunday nights the closing hour is usually later. The boys eat their lunch in the rear of the establishment, this meal consisting generally of bread and olives or cheese. Supper is eaten after the boys reach "home," and after having eaten it they retire without removing their clothes. Even after their excessively long work day, two of the boys are required to wash the dirty rags used for polishing the shoes daily so they can be used the next day.

These boys are compelled to work every day in the year without vacation. The Immigration Commission found that they are under constant espionage, as at every stand the padrone places relatives who both work for him and act as spies on the other boys. Their employer instructs them to make false statements to questions asked by outsiders relative to their ages or conditions of work; many padrones also censor the letters written by the boys to their parents or others and examine all incoming mail, so as to forestall any efforts made by outsiders to induce the boys to leave for other places.

The majority of them cannot read or write their own language, and are unable to secure any education in this country because of their long work hours. According to the Immigration Commission their mental development is perceptibly arrested by the physical fatigue they suffer as a result of their long-sustained work without recreation. They receive no good advice, nor do they hear anything that would tend to elevate them morally. The Commission does not hesitate to brand these conditions as deplorable; it declares that the ravages on the constitutions of these boys laboring in shoe-shining establishments under this system are appalling. It attributes these effects to the following causes: long hours, close confinement to their work in poorly ventilated places, unsanitary living conditions, unhealthful manner of sleeping, excessive stooping required by their work, inadequate nourishment due to the "economy" of the padrones who furnish the food, the microbe-laden dust from shoes, the inhaling of injurious chemicals from the polish they use, the filthy condition of their bodies resulting from their failure to bathe and the lack of proper clothing for the winter season.

The Greek Consul General at Chicago, himself a physician, in a letter to the Immigration Inspector of that city under date of November 16, 1910, declared that as a result of his experience in examining and treating boy bootblacks he was convinced that all boys under eighteen years of age who labor for a few years in shoe-shining establishments, develop serious chronic stomachic and hepatic troubles which predispose them to pulmonary disease; he further declared that because of the conditions under which they work the majority of them ultimately contract tuberculosis, and that in his opinion it would be more humane and infinitely better for young Greeks to be denied admission into the United States than to be permitted to land if they are intended for such employment. Similar statements are made by other Greek physicians of Chicago.

The importation of Greek boys for use as bootblacks in the United States started about 1895, when the Greeks began to secure their monopoly of the industry by taking it away from the Italians and the Negroes, confining it, however, to stands or booths. Most of the early padrones have become financially independent. Their success attracted other Greeks to this industry, and in a short time almost every American city with a population of more than 10,000 had bootblack stands operated by them. Thus the traffic in Greek boys began to flourish.

The Bureau of Immigration helped to have a number of padrones indicted and convicted for offenses against the conspiracy statute and the Immigration Act, and these prosecutions made the importers very careful as to their manner of procedure. They now bring the boys here through the instrumentality of relatives in Greece in such a way that the padrones are almost beyond the reach of our criminal statutes.

In some cases it has been found that on leaving Greece for this country the boys are told to report to a saloon keeper in Chicago or in some other western city, hence they do not know their final destination. The saloon keeper has his instructions from the padrones and acts as their distributing agent. Padrones who operate in places distant from ports of entry easily avoid detection in this way.

In most cases these padrones derive an income from each boy of from \$100 to as high as \$500 a year. The Commission explains this as follows: The wages paid by the padrones now to Greek boys in shoe-shining establishments range from \$80 to \$250 per year, the average wages being from \$120 to \$180 per year. The boys are bound by agreement to turn their tips over to their padrones: in most cases as soon as the tipping patron has departed the boy deposits his tip in the register, while in other places tips are put into a separate box to which the padrone holds the key. In smaller cities and even in the poorest locations each boy's tips may exceed the sum of 50 cents per day, while in large cities they average higher. The Greek padrone, therefore, receives in return from tips alone nearly double the amount of wages paid. By deducting the wages and the annual boarding expenses for each boy—an expenditure seldom exceeding the sum of \$40 per year—there is still a sum left to the padrone to pay him for the privilege of allowing the boy to work in his place. In other words, from the total amount of tips—money that belongs to the boy by right—the padrone is enabled to pay the boy's annual wages and still have a respectable sum left, all this independently of the legitimate profits of his business.

Relatives of the padrones in Greece often pay the steamship passage of boys with the understanding that they are to go to the United States and serve the padrone for one year to reimburse him for the passage money advanced. A mortgage is placed on the property of the boys' father as security, purporting that the father is to receive in cash an amount equal to the wages commonly paid to Greek bootblacks for one year in the United States, but as a matter of fact a steamship ticket and \$12 or \$15 in money are all that is given. The cash is to serve as "show money" to help secure admission to this country past the immigration officers at the ports of entry. Advertising is systematically carried on throughout all the provinces of Greece with a view to exciting the interest of the parents so that they will send their boys to the United States, and no efforts are spared in letting it become known that there is a great demand here for boy labor at the bootblack stands. The padrones themselves even go to Greece every two or three years, and while there manage to become godfathers to the children of many families; this relationship gives them great influence, and through it they are able to secure many boys for their service.

Concerning the prevention of these abuses, the report says: "In the investigations conducted by the Bureau of Immigration many conferences were held with United States attorneys in various jurisdictions with the view of instituting proceedings against padrones, if possible, under the peonage statutes. The attorneys generally agreed that under the evidence submitted to them those laboring in shoe-shining establishments are peons, but as the elements of indebtedness and physical compulsion to work out the indebtedness are missing, peonage laws cannot apply.

"Our immigration laws as now on the statute books provide specifically for the exclusion of boys under sixteen years of age only when not accompanied by one or both of their parents. This provision cannot apply to those boys that come in company with their parents, nor to those who have their parents in the United States, nor to such as successfully deceive immigration officers by posing as the sons of immigrants in whose charge they come. If held for special inspection at the ports of entry, these aliens can only be excluded if it appears that they are destined to an occupation unsuited to their tender years. In the absence of any such evidence, the boards of inquiry generally admit. Once landed, it becomes a hard matter to trace them and almost impossible to secure evidence in the majority of cases, for the boys understand that they will be punished by deportation. This knowledge makes them persistent in withholding any information as to the manner of their entry into the United States."^[69]

Quite recently a young Greek bootblack who was working at a stand in an Indianapolis office building confessed to a truant officer that he was twelve years old, whereupon the chief truant officer of the city went to the place, but on his arrival the boy had changed his mind and declared that he was fourteen years old, and every one connected with the stand supported the statement. Nevertheless the chief truant officer proceeded with the case and found that the boy had been in this country only about six months, his parents being still in Greece. An older brother had a position as a railroad porter but did not stay with the little fellow even on the few occasions he was in the city. The boy lived at the home of the proprietor of the stand, whose relationship to him was a combination of employer and guardian. This man operated four stands in the city, and his dozen or more other employees all lived at the same place. The chief truant officer charged the man with having worked the boy from 7 A.M. to 9 P.M. seven days in the week, which was admitted before the Juvenile Court by the defendant, who also volunteered the information that the boy worked until 11 P.M. on holidays and on Saturdays. Of course the boy was being kept out of school.

In its issue of August 12, 1911, the *Survey* published a letter from a correspondent concerning a case of peonage among bootblacks in the city of Rochester, N.Y. This particular case was of a pale, thin, under-sized Greek lad who worked at a large stand in a local office building. He explained that he worked every day in the week from 7 A.M. to 9 P.M., including Sundays, and that on Saturdays the hours were lengthened to 11 P.M., adding that he had not been absent from his stand one day in four years except at one time when he was sick in the hospital.

A letter which was written by a Greek in Syracuse, N.Y., on May 4, 1911, to the editor of the Syracuse *Post-Standard* was printed in the same magazine.^[70] This letter recites the wrongs of the bootblacks and is reproduced below because of its value as one of the rare protests which come from the victims of the system:—

"Before I came to this country from Greece, I heard that this country is free, but I don't think so. It is free for the Americans, not for the shoe shiners. In this city are too many shoe shiners' stands, and the boys which work there—they work fifteen hours a day, and Sunday, and almost eighteen on Saturdays. They make only from \$12 to \$18 a month and board, but we don't have any good board neither, but our patrons give us bread, tea and a piece of cheese for dinner, supper, but no breakfast. We don't have any time to go to the church, not in school, and without them we won't be good citizens. They won't let us read newspapers, because they are afraid if we learn something we will quit, but we can't quit because we can't speak English, and we can't find another job. Now I don't mean the boys working in the barber shops. They make \$10 to \$18 a

week, and they don't work as hard as we do. We wish to work as they do. We want the public and Mr. Mayor to cut the hours from fifteen to ten, not Sundays, because we want time for school, and weekly work, not monthly. I think I wrote enough."

Peddlers and Market Children

The licensed peddlers of Boston are under orders not to engage little children to sell for them with or without compensation. "These peddlers have hitherto crowded the markets of this city by inviting children to help them in the business, frequently for no other compensation than the offal of their pushcarts or stands."^[71]

The peddling of chewing gum is a common form of street occupation for children. In reality it is merely begging in disguise. The Chicago Vice Commission reports that its agents found boys under fourteen years of age selling gum late at night in the segregated districts of the city. At intervals of from two to three hours their investigators returned to the same neighborhood and found these little children still engaged in this very questionable form of work. One agent reported having seen two little girls of about eleven years in the company of a small boy of about eight years selling chewing gum in front of a saloon in the vice district between nine and ten o'clock at night.^[72]

The following table gives the sex, age, nationality, standing in school, orphanage and occupation of seventeen children found by one person in a single trip through the markets of Cincinnati:—

BOYS	GIRLS	AGE	GRADE	NATIONALITY	FATHER LIVING		MOTHER LIVING		SELLING
					YES	NO	YES	NO	
1		9	2d	Italian	1		1		baskets
1		10	4th	American	1		1		fruit
1		10	3d	German		1	1		vegetables
1		10	2d	Italian		1	1		fruit
	1	10	4th	Italian	1		1		fruit
	1	10	3d	Italian		1	1		baskets
1		11	4th	Italian		1	1		fruit
1		11	3d	Italian	1		1		baskets
	1	11	6th	German	1			1	vegetables
1		12	4th	American	1		1		vegetables
1		12	3d	American	1			1	baskets
1		12	4th	American	1		1		sassafras
1		12	6th	Italian	1		1		fruit
1		13	5th	Italian	1		1		baskets
1		14	3d	American	1		1		sassafras
1		14	8th	American	1		1		vegetables
	1	14	4th	Italian		1	1		fruit

Of these seventeen children nine were Italians, six were Americans, two were Germans. Five of the children, all of whom except one were Italian, were engaged in selling baskets to the passers-by in markets. Six of the children, all of whom except one were Italian, were selling fruit. Six of the children were selling vegetables and herbs, all of them being Americans and Germans. The occupational characteristics of these different peoples are shown by their children, the Italians predominating in the sale of fruit, the Germans in the sale of the products of their market gardens, the Americans, all of whom were boys, in the sale of the herbs they had gathered or the vegetables cultivated on their home farms.

Of these seventeen children nine were in their normal grades at school, while eight were backward and none ahead of their proper grades. This large percentage of retardation is due principally to the lack of time for preparation of school lessons on the part of these children, as much of their afternoons and evenings is taken up either with the work of selling in the markets or with the work of assisting with the garden duties at home. Of the eight backward children, four were Italians and four were Americans. One of the backward Italian girls was fourteen years of age and had left school three weeks prior to the inquiry; she was the oldest of six children; her father was dead, and she was working for her mother in their fruit store selling the fruit from early morning until midnight every day in the week except Sunday. As she was the oldest child in the family, it is of course easily seen that her retardation in school was largely due to her having been kept at work in the shop during the afternoons and evenings while she was still attending school. An American boy, who, although twelve years of age, was only in the third grade at school, was employed by his parents to sell baskets in the market, in spite of the fact that his father had a store and was fully able to support the child properly. This boy was found, as were many other such children, selling baskets in the market at eleven o'clock at night after having been there since early in the morning. A thirteen-year-old Italian boy was only in the fifth grade; he was selling baskets in one market in the morning and in another market during the afternoon and evening; both of his parents were living, and his father had a "city job." There were six children in the family, two of whom were older and employed. The entire family of eight persons occupied two rooms.

It is noteworthy that the fathers of twelve of the children were living, only five being dead; while the mothers of fifteen were living, only two being dead. Not a single child was a full orphan. In the great majority of cases it was not necessary for these children to work so prematurely.

CHAPTER V

MESSENGERS, ERRAND AND DELIVERY CHILDREN

Accustomed to seeing messenger boys engaged during the day in the unobjectionable task of delivering telegrams to residences and business offices, one is likely to regard this service as an occupation quite suitable for children and to give it no further thought. However, the character of the work done by the messenger boy changes radically after nine or ten o'clock at night. At that hour most legitimate business has ceased, and the evil phases of city life begin to manifest themselves. From that time on until nearly dawn the messenger's work is largely in connection with the vicious features of city life. The ignorance of the general public as to the evil influences surrounding the night messenger service is strikingly illustrated by what one Indiana boy told an investigator; he declared that if his father knew what kind of work he was doing, a strap would be laid across his back and he would be compelled to abandon it. But the father did not know; he thought his boy was simply delivering telegrams.

The delivery of telegrams forms but a small part of the boy's work at night, because few messages are dispatched after business hours. Instead, calls are sent to the office for messengers to go on errands. The boys wait upon the characters of the underworld and perform a surprising variety of simple tasks; they carry notes to and from the inmates of houses of prostitution and their patrons, take lunches, chop suey and chile con carne to bawdyhouse women, procure liquor after the closing hour, purchase opium, cocaine and other drugs, go to drug stores for prostitutes to get medicines and articles used in their trade, and perform other tasks that oblige them to cultivate their acquaintance with the worst side of human nature. One instance was found in which the boy was required to clean up the room of a prostitute and to make her bed. The uniform or cap of the messenger boy is a badge of secrecy and enables him to get liquor at illegal hours or to procure opium and other drugs where plain citizens would be refused; hence these boys are thrown into associations of the lowest kind, night after night, and come to regard these evil conditions as normal phases of life. Usually the brightest boys on the night force become the favorites of the prostitutes; the women take a fancy to particular boys because of their personal attractiveness and show them many favors, so that the most promising boys in this work are the ones most liable to suffer complete moral degradation.

Messenger service not only gives boys the opportunity to learn what life is at night in "tenderloin" districts, but the character of the work actually *forces* them into contact with the vilest conditions and subjects them to the fearful influences always exerted by such associations. Some believe that this evil could be prevented by forbidding the office to allow messenger boys to go on such errands, but this is not practicable for two reasons: first, because an essential feature of the messenger service is secrecy—the office does not inquire into the nature of the errand to be performed, and even if it did so, a false statement could easily be made by the patron over the telephone; and second, it would be necessary to send a detective along with the boy on each trip to see that he observed the rules. Boys are eager to run errands for prostitutes

for various reasons, one being the extra income assured, as these women give tips with liberal hand.

Like other street occupations, the messenger service is a blind alley; it leads nowhere. A very few boys are promoted to the position of check boy in the telegraph office, and fewer still have an opportunity to learn telegraphy. Some of the boys become cab drivers because they have familiarized themselves with the city streets; others become saloon keepers because they have become well acquainted with this method of making a livelihood; some are attracted by the life of "ease" which opens before them and enter into agreement with prostitutes, upon whose earnings they subsist; others have the courage to get away from these influences and secure work as office boys or in some other line entirely different from the messenger service.

A considerable number of the inmates of state reform schools were formerly messenger boys, indicating that this service is one of the roads to delinquency. As the immoral influences surrounding this work are especially active among youths, the age limit for such employment at night should be made high enough to prevent their being so exposed. New York State was first to declare that if this work is to be done at night it must be done by men, and has fixed the age limit at twenty-one years. The late Judge Stubbs, of the Indianapolis Juvenile Court, speaking before the Conference of Juvenile Court Officers held in that city in November, 1910, said that messenger boys, and newsboys who sell papers in the downtown streets, were the boys most frequently charged with delinquency before his court, and declared that twenty-one years was low enough as an age limit for night messenger service.

Other temptations assail the messenger boy in his work, and are frequently yielded to. The old practice of raising the amount of charges on the envelope of a telegram is notorious and is still an ever present problem to the companies. When a boy has been detected in this petty crime and is questioned about it, he too often adds to the one misdeed the other equally grievous one of lying, whereupon his dismissal usually follows.

Under the direction of the writer an investigation of the night messenger service was made in 1910 in Ohio, Kentucky and Indiana, the following cases being typical of the conditions found in all cities. In one of the larger towns of Indiana, a fourteen-year-old messenger boy was interviewed one night by an agent of the National Child Labor Committee who had called up the telegraph office by telephone requesting that a messenger be sent to him. Early in the course of conversation, of his own volition, the boy referred to houses of prostitution. Upon being asked what he knew about such places, he replied: "Too much—I am there half the night. You see they call for messengers to run errands for them. Sometimes I get them drinks, opium, medicines from drug stores or anything they want. No matter what they ask us to do—it's our business to go ahead and do it." The boy led the agent to a disreputable negro district and described his activities in this region. "No night passes without my making a dollar down here," said he. "The niggers are great smokers of opium, and I get it for them; they give me a little jar, and I have it filled up for them. It costs them \$1.50, and I usually get the change from \$2." The agent feigned doubt so as to elicit more information, whereupon the boy offered to get some opium if he were given a tip. The agent gave the boy one dollar and told him he might keep the change; in ten minutes he returned with a card of opium which was subsequently analyzed in a laboratory and found to be the kind ordinarily prepared for smoking purposes. This experience was repeated again and again by agents of the National Child Labor Committee in different cities and proved

beyond the shadow of a doubt that these young boys are forced into familiarity with the most degrading conditions.

Another fourteen-year-old messenger boy in the same town told the agent that there were but few business calls at night, and that nearly all of their work was in connection with houses of prostitution. This boy spoke of the money he received in tips from inmates and patrons of these houses, of his receiving liquor and cigarettes from them, and remarked, "I do not have to do this work, but I like it; this job is too good to give up; I'm learning a lot of things." This little fellow described some extremely revolting scenes of which he had been witness in these houses, and upon being asked whether his manager was aware of the kind of places he was called to, he replied, "Sure he does, for he gets the message over the telephone, then he calls one of the boys and sends him to the house."

Another messenger in the same city, who was seventeen years old and had been in this service for four years, working daily until half past two in the morning, said, in talking about the use of drugs by prostitutes, "When they are so full of dope that they don't know what to do, they call up for a messenger, and sometimes I have had them send me out to a drug store for paris green; they want to kill themselves, they are crazy with opium; of course I take their money and never show up again." This boy also bought a small package of opium for the agent. He declared that he knew every house of prostitution in the city and was well acquainted with their proprietresses. To prove this, he wrote out a list of fourteen such places, putting down the streets and numbers at once from memory. These were subsequently referred to persons familiar with the city and verified.

It is very distressing to read the testimony of a fourteen-year-old messenger boy of another city who had been thrown by his work so much in contact with evil conditions that he had come to regard these as normal. Although only fourteen years of age, he had lost all faith in womankind. In walking through the segregated district with the agent, this boy called out in advance the number of each house of prostitution, thus showing his familiarity with the whole region. In his childish, schoolboy hand, he wrote on a slip of paper a list of the bawdyhouses, putting down very promptly from memory the names of the proprietresses, the names of the streets and numbers of the houses.

Another fourteen-year-old messenger boy in this city related many disgusting details of his experiences in the service at night—of prostitutes smoking, cursing and sprawling on the floor dead drunk. He stated that he had never smoked before he became a messenger, but that when he saw the women using tobacco in all the houses, he thought there could be no harm in it. "If ladies do it, why shouldn't I? So I began, and now I smoke a pack of cigarettes a day. I get twenty for a nickel and smoke all night. If I didn't, I suppose I'd fall asleep. I once lit a cigarette from an opium pipe in one of the houses—but no more opium for me." When asked whether his manager knew that he was sent to these houses, he replied: "Sure he does, he's the one that sends us; if we don't go, we get fired. He knows all the women, too, because he jokes with them over the telephone when they call up for a boy."

A fifteen-year-old night messenger, when asked what he did with the money he received as tips, replied: "Last week I lost a dollar in a crap game, and I go to moving-picture shows during the day and buy different things; I suppose if my people knew the kind of work I was doing, I would get a thick leather strap over my back. They have an idea that the messenger business is

just taking telegrams to reputable people. There are very few business calls at night at our office; almost all of them come from houses of prostitution. This is going to be a very busy week with us because a convention starts to-morrow, and the delegates will want us to take them to the houses."

Another Hoosier messenger was only sixteen years of age, although he had been in the service of one company for four years and had previously been discharged from another company for having defrauded a patron. This lad was a typical boy of the street; his features were drawn, black lines were below his eyes, and his walk could be described best as a drag. "I know every single house of prostitution in this city," said he. "I have been in every one. I get drinks in most of them, and many a time I was drunk for a whole day in some woman's room." This boy, having been in the service several years, spoke of the ravages dissipation had wrought on the women of the underworld. He had known many of them when they were just starting in their life of shame, and remarked their rapid decline. Voluntarily he spoke of the venereal diseases from which he had suffered. He said that he had been discharged from his first job as a messenger for having defrauded patrons. To illustrate how the scheme worked, he said: "A woman wanted me to carry a package to some place and asked me what it would cost; I said one dollar, and she said she wouldn't pay it because it was too much. I told her to speak to the manager and gave her the telephone number where my pal was waiting for the call. She asked him whether he was the manager, and he said, 'Yes'; then she asked how much the charge was, and he answered one dollar. Then I went on the errand, and we split the difference. Somehow the manager got wise, and out we went." This boy's conversation was a continuous flow of vulgarity. When the agent mentioned gambling, the boy drew from his pocket two sets of dice and said they were "ready at any time to do business. When the first of the month comes around, I am generally short or ahead \$5. I lost \$8 once. When I have no ready cash, I play on account of my salary."

An eighteen-year-old messenger said: "I have been in this business here for five years, and a night never passes that I don't go to a house of prostitution; that's our main business at night. They could not afford to have a messenger service in this town at night if it were not for the red light district. We have to do all their work, because they trust us." This boy spoke of the venereal diseases other boys in the service had, and admitted that he had contracted them twice himself.

Another eighteen-year-old messenger boy, who has been in the service four years and is afflicted with an exceptionally bad venereal infection, said among other things, "There are lots of messengers who are kept by women. The boys work only for appearances. I knew two messengers who worked with me who were kept by two prostitutes for a year, then they gave up the job at the same time and took the prostitutes to Chicago, where the women worked for them. One of these boys is only about nineteen years old now. You don't learn anything in the messenger business except to knock down (overcharge a patron) and to go around with prostitutes and gamblers. It kills a fellow. I know, because I went down the line, and I'm coming out the wrong end." When asked why he didn't quit the job, he replied: "You don't suppose I want to work for \$3 or \$4 a week? I'm used to making pretty good money and having a good time." He said that he made from \$40 to \$75 a month according to the tips he received, and spent it as fast as he got it. Most of it went in gambling.

A fourteen-year-old messenger boy in another city who works from 6 P.M. to 7 A.M., in speaking of the use of whisky in houses of prostitution, said: "We get it for them; the saloons know the messengers, and we stand in with them; the more a house sends for whisky the better

they stand in with the saloon keeper. If the proprietress gets locked up, she will always be bailed out by the saloon keeper, but if she don't buy enough stuff from him, he will refuse to do it. When a proprietress is put in jail, the cops ring up for a messenger from the station house, and they send me to the cell where the woman is, and she always gives me a note to take to the saloon keeper and he goes down and gets her out." This boy said his manager knew the kind of places he visited, but was not in the office all night. During the late hours of the night the telegraph operator and the clerk were left in charge, and the boy remarked that they had told him to try to get a woman into the office if he found one on the street, and related instances in which this had been done. He was paid a salary of \$22 a month.

Another fourteen-year-old messenger in this town is paid \$17 a month salary and makes \$10 or \$12 a month in tips.

A thirteen-year-old messenger in another city, after having related some of his experiences in the segregated district, said: "I tell you, it's mighty dirty work for a boy to be in, but I suppose a fellow has to learn these things somehow, and I may as well learn them in the messenger service as in any other way. I smoke perique so I can sleep in the daytime."

A fourteen-year-old messenger in the same city, employed from noon to midnight, had been in the service only one week when interviewed by the agent; among other things he said: "All the last week I have been doing nothing but go to the red light district. I didn't know what this messenger business was until I got into it, and I am going to quit just as soon as I see a little more of that kind of thing."

In a certain Indiana city there was found a "kid line" messenger service, so called because the proprietor was a mere boy who was formerly in the service of another messenger company. He had two day boys, but at night answered the calls himself. He was fourteen years old and told the agent that he had lived in the "red light" district more than at his home on account of the number of calls he had to answer there, but of course this was exaggeration intended to convey the fact that most of his business was with that region. When he entered into business for himself, he went to all the prostitutes in the "red light" district and told them that he was commencing on his own account and that he wanted them to be his customers. "I get a good deal of their business. I get it because I know how to treat them. I can get them beer on Sunday and can sneak it into their houses. I know all the women and can introduce you to any of them, and can get you any amount of beer or whisky that you want. When I was working for the—— messenger company there was another boy on the force who tried to take all the good calls; he divided his tips with the manager, so he was sent to all the houses where good tips were given. There was one prostitute who liked me pretty well and gave me ten or fifteen cents for myself every time I went to her house. I started to answer a call there one night, and the other boy ran after me. We got to the place at the same time and had a fight in the hall; the men and women in the place gathered around us and offered to give us two dollars each if we would scrap for them, so we started right in, and before I was through with him he had two black eyes and his face was bleeding, then he pulled out a knife, but they took it away from him, and the next day I was fired. There is a young girl in one of the houses who is a chambermaid and wants me to live with her, and maybe I will but I'm afraid my mother will get wise."

The fifteen-year-old messenger of another office showed the agent the list of about one hundred calls sent in the previous night, nearly every one of which came from the "red light"

district.

After weighing such evidence we can readily comprehend the justice of the opinion rendered by Dr. Charles P. Neill in the following words: "The newsboys' service is demoralizing, but the messenger service is debauching.... And, saddest of all, this service appeals strongly to the children. The prurient curiosity of the developing boy would itself incline him to like these calls to houses of prostitution, but they quickly learn also that women who live in these sections are more generous with their earnings in the way of tips than are the people in the more respectable sections of the city.... It can be said that all the boys who go into the messenger service do not go to the bad, but it can be said with equal truth that it ruins children by the dozens, and that if any boy comes out of this service without having suffered moral shipwreck he can thank the mercy of God for it, and not the protecting arm of the community that stands idly by and makes no attempt to save him from temptation."^[73]

In 1908 Congress passed a child labor law for the District of Columbia which provided, among other restrictions, that no messenger boy under sixteen years should be employed between 7 P.M. and 6 A.M.,—*sixteen years*, the beginning of the period of adolescence, when boys have the greatest need of protection from the vices running riot in cities!

The Chicago Vice Commission devotes several pages of its report to a recital of the experiences of messenger boys in connection with their work in the segregated districts. One of the telegraph companies maintains a branch office close to one of these districts, where eight boys from fifteen to eighteen years of age are employed as messengers. These boys are called upon to work at all hours of the day and night, their tasks being the same as those of the messengers in other cities. A number of specific instances of the wretched environment into which these boys are thrown, are given. One of them who works from midnight until 10 A.M. was sent by a prostitute to a drug store for a package of cocaine hydrochloride, for which he paid \$5.78, receiving \$1 from the prostitute as a tip for the service. Another messenger was sent out on a similar errand by another prostitute two weeks later and purchased for her a hypodermic needle for a syringe; he was charged \$2 for this needle, the cost to the druggist being 19 cents. A few days later a boy was called by another prostitute who confided to him that she had discontinued the use of messenger boys for purchasing "dope" because she found that they talked too much and could not be trusted, adding that she now had a newsboy, who sold papers at a near-by corner, buy the cocaine for her. A woman who lives in an apartment house and is the owner and proprietor of houses of prostitution in the restricted district, is in the habit of sending in an order for cocaine to a druggist, who calls a messenger boy to deliver it to her residence. This messenger opened one of the packages and, suspecting that it was cocaine, sniffed a little of it himself. He confessed that he had done this quite often since, and it appeared that he had derived a good deal of pleasure from it. The same messenger is sent about three times monthly by a certain man to a Chinaman, from whom he buys a package of opium for \$4. On returning from one of these trips he watched the man open the package, take a quantity of the stuff, roll it and heat it, but at this point the messenger was told to leave the room. Another messenger boy has been employed at this particular branch office for more than three years, although he is now only seventeen years old; his earnings average about \$10 per week, including tips. He is of small stature, not mentally bright and at present is afflicted with syphilis of three months' duration. Another messenger is a boy of foreign parentage, only fifteen years of age, who said he had recently been called quite often to a certain house of prostitution where an inmate gave him a box with a note to a druggist; the contents cost \$1.75, but upon returning to the woman he would

declare that he had paid \$2.50, thus obtaining 75 cents on false pretenses, and in addition a tip of half a dollar. On one of his trips for this prostitute he had opened the note and found that it was a requisition for cocaine; on returning he placed some of the contents upon his tongue, but did not like the sensation and never repeated it. He is in the habit of picking up discarded cigarettes and smoking them. In spite of his age, he knows the name of nearly every prostitute in this district and can recognize these women at sight; he stated that whenever he entered a house of prostitution they would nearly always kiss him, and at different times he had had sores on his lips.

Another boy who was attending high school was employed as a messenger in the downtown district during Christmas week of 1910. He was sent to deliver a message in a house of prostitution, and the girl who received it offered to cohabit with him free of charge as a Christmas present, stating that it was customary to do this for messenger boys on Christmas Day.

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A number of other messengers told of similar experiences, stating that they were often called to houses of prostitution to perform small personal services for the inmates. As to regulation of the service, a police order was issued in Chicago in April, 1910, to the effect that no messenger or delivery boy under eighteen years was to be allowed in the segregated districts at any time.

In arguing against the further restriction of the night messenger service, the telegraph companies and other interested organizations insist that the majority of these boys are working to support their widowed mothers or incapacitated fathers; a recent government report says, in referring to the table of families in which there are messengers and errand and office boys ten to fourteen years of age, classified by percentage of older breadwinners, for Boston, Chicago, New York and Washington, "These statistics point to the conclusion that the greater part of the families now furnishing children from ten to thirteen years of age and fourteen years for the occupation of messengers and errand and office boys are by no means either entirely or largely dependent upon the earnings of such children for the family support."^[75] The restriction advocated does not contemplate the prohibition of this work to boys of fourteen years and upwards in the *daytime*; its object is to shield the youths from the vile associations necessarily connected with this work at *night*.

Night Service by Men—Not by Boys

Mr. Owen R. Lovejoy of the National Child Labor Committee, in speaking of the study of the night messenger service undertaken by this organization, says: "The evidence collected justified the committee in cooperating with its affiliated organizations to secure legislation, and, counting on the *moral interest of the public* to promote the effort, we made the question one for practical and immediate decision. Results apparently justify the policy chosen. A bill was unanimously passed by the legislature of New York State [in 1910], excluding any person under twenty-one years of age from this occupation between ten o'clock at night and five o'clock in the morning."

Massachusetts in 1911 forbade the employment of messengers under twenty-one years of age between the hours of 10 P.M. and 5 A.M., except by newspaper offices. Utah fixed the same age

limit for this work in cities of first and second classes between 9 P.M. and 5 A.M. New Jersey did likewise as to cities of the first class, fixing the age limit at eighteen years for smaller places, the prohibited hours being from 10 P.M. to 5 A.M.

Wisconsin also passed a law in 1911, prohibiting the employment of any one under twenty-one years of age as a messenger between 8 P.M. and 6 A.M. in cities of the first, second and third classes. Ohio, in 1910, fixed the age limit for messenger service between 9 P.M. and 6 A.M. at eighteen years.

Michigan now prohibits the employment of messengers under eighteen years between 10 P.M. and 5 A.M., as do also New Hampshire, Oregon, Tennessee and California.

Other states having the advanced type of child labor law prohibit the employment of children under fourteen years in the messenger service during the day and under sixteen years at night. The states of Alabama, Arkansas, Florida, Mississippi, Nevada, New Mexico, North Carolina, Rhode Island, South Carolina, Texas, Virginia and Wyoming do not yet provide any age limit for this work.

The evil effects of the messenger service have also been noted in Great Britain. A schoolmaster of Edinburgh says, "Insolence, coarse intonation, swearing, lying, pilfering and lewdness are the chief products of message going by boys."^[76]

A London health officer has testified as follows: "There is a very large employment of boy labour now, boys employed as messengers and errand boys, which teaches them nothing useful for their future life; and when they have outgrown the age at which they can be employed in this way, the risk of drifting into the ranks of the unskilled labourer is a very large one."^[77]

"The government post office telegraph messengers are not employed unless they have passed the seventh standard at school and each candidate has to provide a satisfactory certificate of health from his own medical attendant. A boy of fourteen must also be over four feet eight inches in height. The minimum starting wage in London is seven shillings a week, rising by a shilling a week annually to eleven shillings. On reaching the age of sixteen the boy has to pass a further examination in order to qualify for retention. The various *private* telegraph companies offer much the same terms, though in some cases they are able to get boys slightly cheaper, as the qualifying standard is not such a high one. It is only during the rare periods when the supply of boy labour is more plentiful than usual that the private telegraph companies will refuse a boy on account of his size. The varied nature of the work they are called upon to perform is an undoubted attraction in the eyes of many.... That it is bad for them morally is less open to doubt. Even when they are more actively employed the most that they can hope to learn is a very small amount of discipline. A more serious point is the future of the boys when they cease to be messengers."^[78]

"It is well to point out that the commonest of these occupations, that of errand boy or messenger boy, is seldom a desirable one, quite apart from the fact that it generally leads nowhere. It lacks almost necessarily what the boy most needs—the compulsory training of the habit of disciplined effort."^[79]

As Mrs. Florence Kelley says, "The test of the work, however, should be not whether boys can do it, but what it does to boys."^[80]

CHAPTER VI

EFFECTS OF STREET WORK UPON CHILDREN

All the evil effects of street work upon children observed by students of the problem have been here divided into three groups, under the headings of physical, moral, and material deterioration. It must be understood that this is a summary of such effects and that while the influences of the street are unquestionably bad, any one child exposed to them is not likely to suffer to the full extent suggested below. However, deterioration in one form or another is invariably noted in children who have been engaged in street work for any length of time, and this is sufficient proof of the undesirability of such employment for our boys and girls.

EFFECTS OF STREET WORK ON CHILDREN	
Material Deterioration	{ Form distaste for regular employment. Small chance of acquiring a trade. Drift into large class of casual workers.
Physical Deterioration	{ Night work. Excessive fatigue. Exposure to bad weather. Irregularity of sleep and meals. Use of stimulants—cigarettes, coffee, liquor. Disease through contact with vices.
Moral Deterioration	{ Encouragement to truancy. Independence and defiance of parental control. Weakness cultivated by formation of bad habits. Form liking for petty excitements of street. Opportunities to become delinquent. Large percentage of recruits to criminal population.

These are the insidious influences permeating street work and rampant in all our cities. They are minimized and even denied by certain ignorant or interested parties who base their assertions upon the fact that prominent men of to-day were once newsboys or bootblacks, and therefore jump to the conclusion that their success is due to the training received in this way when young. The truth is more likely to be that such individuals have succeeded, not because of this early training, but in spite of it. Boys of exceptionally strong character will force themselves out of such an environment unscathed, but the great majority of children have not sufficient mental and moral stamina to withstand these influences. The minority will take care of itself under any circumstances,—it is with the weaker majority that we must deal. The problem is an urgent one, but generally ignored, for, as Myron E. Adams says, the public sees the street worker at his best and neglects him at his worst.

The charge that in street work a child has small chance of acquiring a suitable trade is one of the worst counts in the indictment. Street work leads to nothing else; the various occupations are

so many industrial pitfalls, and the children who get into them must sooner or later struggle out and begin over again at some other line of work, if they would succeed.

"These children (street traders) furnish a very large proportion of recruits to the criminal population. Those who do not graduate into crime form a liking for the petty excitements of the street and a distaste for regular employment. They lack skill and perseverance, shun the monotony of a permanent job, and as they grow older either follow itinerant and questionable trades or become ill-paid and inefficient casual laborers. Therefore these young people are a source of waste to society rather than of profit."^[81]

The large percentage of former newsboys among the inmates of boys' reformatories recently induced an active social worker to send an inquiry to the superintendents of such institutions and to juvenile court judges in different parts of the country relative to the effect of newspaper selling on schoolboys. The statements received in reply are set forth in a leaflet which was published in 1910.^[82]

These officials are practically unanimous in condemning street trading by boys, declaring that newsboys are generally stupid and almost always morally defiled; that the pittance they earn is bought at great sacrifice; that the spending of their earnings without supervision is the worst thing that can befall them; that the life leads to gambling, dishonesty and spendthrift habits; that it is a dead-end occupation leading to nothing; that it abounds in evil temptations; that the boys are comparatively idle and see and hear the worst that is to be seen and heard on the street; that the work subjects boys to bad influences before they are strong enough to resist them; that delinquency results from their enforced association with all classes of boys; and concluding that every possible protection should be thrown about the young boy. Some of these officers gave due consideration to the advantages of street trading, and one made the naïve statement that newspaper selling was not a bad business for a boy who could withstand its temptations.

Although the law of New York State provides a modicum of regulation for street trading, nevertheless it has not been effective because of extremely indifferent enforcement. Like almost all other street-trading laws in the United States, it places the age limit at the ridiculous age of ten years. A movement was started recently in Buffalo to remedy the situation, and the following statement was published:—

"During the past year we have sought to discover, not by theorizing, but by uncovering the facts, what is the effect of street work on the boy. School records of 230 Buffalo newsboys were secured. Eighteen per cent were reported as truants; 23 per cent stood poor or very poor in attendance and deportment. Twenty-eight per cent stood poor or very poor in scholarship, while only 15 per cent of the other children in the same schools failed in their work. An investigation at the truant school showed that 46.6 per cent of the boys there had been engaged in the street trades. On the basis of these facts and studies made in connection with the schools, juvenile courts and reformatories elsewhere, we hope to secure legislation raising the age below which boys may not engage in the street trades to twelve years, and making it illegal for boys under fourteen to sell after 8 P.M. We are also striving to secure better enforcement of this law in Buffalo and other cities."^[83]

This folder also states that circular letters were sent to all Buffalo school principals asking about the effect on scholarship of the early morning delivery of newspapers by their pupils, and

also to physicians inquiring about the effect of such work on physical development. The hours for such newspaper delivery were from 4.30 A.M. to 7 A.M. Eight principals and six physicians denounced such work to every one who favored it. Referring to the occupational history of reformatory inmates, a recent report for New York City says: "The parental school (school for truants) statistics show that 80 out of its 230 inmates were newsboys, while 60 per cent of the entire number have been street traders. The Catholic Protectorate, full of Italians (noted as street traders), gives us a record of 469 or 80 per cent out of their 590 boys interviewed, who have followed the street profession, and 295 or 50 per cent had been newsboys selling over three months. The New York Juvenile Asylum gives us 31 per cent of its inmates as newsboys and 60 per cent as street traders. The House of Refuge repeats the same story: 63 per cent of those committed to that institution had been street traders, of whom 32 per cent were newsboys. If 63 per cent of the House of Refuge inmates have been street traders, and if the majority of such have begun their so-called criminal careers, which end invariably in the state penitentiary, why do we permit children to trade on our streets?"^[84]

Another American writer says: "Whatever the cause, the effect on the newsboy is always the same. He lives on the streets at night in an atmosphere of crime and criminals, and he takes in vice and evil with the air he breathes. If he grows into manhood and escapes the tuberculosis which seizes so many of these boys of the street, the things that he has learned as a professional newsboy lead in one direction,—toward crime and things criminal. The professional newsboy is the embryo criminal."^[85]

The dangers to the morals of children are particularly emphasized by those who have given this subject any attention. Mr. John Spargo says: "Nor is it only in factories that these grosser forms of immorality flourish. They are even more prevalent among the children of the street trades,—newsboys, bootblacks, messengers and the like. The proportion of newsboys who suffer from venereal diseases is alarmingly great. The superintendent of the John Worthy School of Chicago, Mr. Sloan, asserts that 'one third of all the newsboys who come to the John Worthy School have venereal diseases and that 10 per cent of the remaining newsboys at present in the Bridewell are, according to the physician's diagnosis, suffering from similar diseases.' The newsboys who come to the school are, according to Mr. Sloan, on an average of one third below the ordinary standard of physical development, a condition which will be readily understood by those who know the ways of the newsboys of our great cities—their irregular habits, scant feeding, sexual excesses, secret vices, sleeping in hallways, basements, stables and quiet corners. With such a low physical standard the ravages of venereal diseases are tremendously increased."

^[86]

The economic aspect of this work is magnified by most people beyond its true proportion; the earnings of street-working children are not needed by their families in most cases, and even in those instances where their poverty demands such relief it is wrong to purchase it at the price paid in evil training and bad effects of every kind. Commenting on this point the chief truant officer for Indianapolis says: "A large number of truants are recruited from that large unrestricted class whose members are to be found competing with one another on our street corners from early until late. The pennies which many of them earn are a material aid in replenishing the depleted resources of some of our homes. Yet, it is a question whether such child laborers will not in the future bequeath to society an abundant reward of human wreckage which may be traced to such traffic and its many temptations."^[87]

As to the bad judgment of parents in seeking the premature earnings of their children, a Chicago physician says: "The average newsboy, if he works 365 days a year, does not earn over a hundred dollars; if he becomes delinquent it costs the state at least two hundred dollars a year to care for him. When we remember that twelve out of every one hundred boys between ten and sixteen become delinquent, and that over 60 per cent of these boys come from street trades, it does not take long for a business man to figure out that it is rather poor economy to let a ten-year-old boy go into at least this field of labor.... From an economic standpoint the family that sends out a ten-year-old boy to sell papers loses a great deal more in actual money from the boy's lack of future earning capacity than the boy can possibly earn by his youthful efforts. In other words, this sort of labor from an economic standpoint is an absurdity."^[88]

In its splendid report on street trading, the British departmental committee of 1910 stated: "We learnt that much of this money, so readily made, is spent with equal dispatch. The children spend it on sweets and cigarettes, and in attending music halls, and in very many cases only a portion, if any, of the daily earnings is taken home.... In many towns the traders are drawn from the poorest of homes, but numerous witnesses have emphatically stated that their experience leads them to think that cases where real benefits accrue to the home are rare."^[89]

The lack of proper training during childhood almost invariably brings about a tragedy in the lives of working people. The premature employment of children at any kind of labor which interferes with their education and their training in work for which they are fitted is most disastrous in its effects and far outweighs in future misery the little income thus secured in childhood. A careful student of the working class declares: "Many bright and capable men and women in this neighborhood [Greenwich Village, New York City] would undoubtedly have been able to occupy high positions in the industrial world if they had not been *forced into unskilled work when young*."^[90]

With reference to the effects of street trading an English writer says: "It is difficult to imagine a life which could be worse for a young boy. Apart from the moral dangers, it is a means of earning a livelihood which perhaps more than any other is subject to the most violent fluctuations. But the uncertainty of the income is a trifling evil by comparison with the certainty of the bad moral effects of street trading on boys and youths. The life of the street trader is a continual gamble, unredeemed by any steady work; it is undisciplined and casual, and exposed to all the temptations of the street at its worst. The great majority of the boys who sell papers drift away into crime or idleness or some form of living by their wits."^[91] The same writer also declares: "Few things could have a worse effect than this street trading on those engaged in it. It initiates them into the mysteries of the beggar's whine and breeds in them the craving for an irregular, undisciplined method of life."^[92] And the editor of these English studies adds: "It is part of the street-bred child's precocity that he acquires a too early acquaintance with matters which as a child he ought not to know at all. His language and conversation often reveal a familiarity with vice which would be terrible were it not so superficial."^[93]

Speaking of immorality in the narrow sense of the word, the same writer says: "We do not believe that immorality of this kind is universal among the boys and girls of the labouring classes, nor do we believe that the town youth is any worse than his brother and sister of the country. Coarseness and impurity are not the distinguishing mark of any one class or any one place. We question whether comparison of sins and self-indulgence would work out at all to the disadvantage of the town labouring class as a whole. It must be remembered that one

commonplace factor, the glaring publicity of the street, is all on the side of the town youth's virtue. The street has its safeguards as well as its dangers."^[94]

With reference to the blind alley character of street work, another English writer avers: "As in London, the labours of the school children [in Manchester] are in no wise apprenticeship or preparation for their future lives. The grocer's little errand boy will be discharged when he grows bigger and needs higher wages; the chemist's runner is not in training to become a chemist. The three farthings an hour on the one hand, and the physical, moral and intellectual degeneration on the other, are all that the little ones here, as elsewhere, get out of toil from which many a grown man would shrink."^[95]

Another English student of labor conditions declares: "Teachers—together with magistrates, police authorities, ministers of religion and social workers—are practically unanimous in condemning street trading as an employment of children of school age. In this occupation children deteriorate rapidly from the physical, mental and moral point of view."^[96]

Still another writer says: "One great evil which results from this life of street trading in childhood is the fact that it is fatal to industrial efficiency in after life."^[97]

The testimony of Sir Lauder Brunton, M.D., given in 1904, on the occasion of the inquiry into physical deterioration in Great Britain, is to the point, in spite of the fact that the committee directing the inquiry stated that "The impressions gathered from the great majority of the witnesses examined do not support the belief that there is any general progressive deterioration."^[98] Sir Lauder Brunton's testimony was as follows: "The causes of deficient physique are very numerous ... it is very likely that in order to eke out the scanty earnings of the father and mother the child is sent, out of school hours, to earn a penny or two, and so it comes to school wearied out in body by having had to work early in the morning, exhausted by not having had food, and then is sent to learn. Well, it cannot learn."^[99] Later the same witness testified, "One of the very worst causes [of physical deterioration] is that children in actual attendance at school, work before and after schooltime."^[100]

In a special inquiry into the physical effects of work upon 600 boys of school age made in 1905 by Dr. Charles J. Thomas, assistant health officer to the London County Council's education department, it was found that many of the children suffered from nervous strain, heart disease and deformities as a result of prolonged labor. Of the 600 boys, 134 were shop boys, 63 were milk boys, 87 were newsboys and the others were scattered among various employments. It was found that work during the dinner hour and also the long work-day on Saturday were particularly harmful. As to fatigue among the newsboys, of those working 20 hours or less, 60 per cent were affected; of those working between 20 and 30 hours, 70 per cent; while of those working more than 30 hours per week, 91 per cent showed fatigue. As to anæmia, among the newsboys, of those working 20 hours or less it appeared among only 19 per cent; but of those working 20 to 30 hours, 30 per cent showed it; while of those working over 30 hours per week, 73 per cent were afflicted in this way. As to nerve strain, of those working 20 hours or less 16 per cent were suffering from it; of those working 20 to 30 hours, 35 per cent; while of those working over 30 hours, 37 per cent showed nerve strain. As to deformities, none were noted among boys working less than 20 hours a week, but 10 per cent of those working 20 to 30 hours or more were found to be afflicted. All elementary schoolboys showed deformities to the extent of 8 per cent, but of those engaged in different kinds of work from 20 to 30 hours a week, 21 per cent showed

deformities. Flatfoot was found to be the chief deformity produced by newspaper selling, this being caused by the boys' having to be on their feet too much.^[101]

One of the most decisive blows delivered against street work by children in Great Britain was the statement of Thomas Burke of the Liverpool City Council, a son of working people, who had lived in a crowded city street for twenty years, had attended a public elementary school until fourteen years of age, where the number of child street traders was very large, and had become convinced that "work after school hours was decidedly injurious to health and character." Referring to the material condition of his street-trading acquaintances, he said: "Almost all the boys sent out to work after school hours from the school referred to have failed in the battle of life. Not one is a member of any of the regular trades, while all who were sent to trade in the streets have gone down to the depths of social misery if not degradation ... a great proportion of those who did not work after school hours, or frequent the streets as newspaper sellers, occupy respectable positions in the city."^[102]

Miss Ina Tyler of the St. Louis School of Social Economy in a study of St. Louis newsboys made in 1910, found that of 50 newsboys under 11 years of age, 43 gambled, 42 went to cheap shows and 23 used tobacco; while of 100 newsboys 11 to 16 years of age, 86 gambled, 92 went to cheap shows and 76 used tobacco.^[103]

Among the conclusions of the British interdepartmental committee of 1901 is the following: "Street hawking is not injurious to the health if the hours are not long, and the work is not done late at night; but its moral effects are far worse than the physical, and this employment in the center of many large towns makes the streets hotbeds for the corruption of children who learn to drink, to gamble and to use vile language, while girls are exposed to even worse things."^[104]

The British departmental committee of 1910 declared: "In the case of both boys and girls the effect of this occupation on future prospects cannot be anything but thoroughly bad, except, possibly, in casual and exceptional cases. We learn that many boys who sell while at school manage to obtain other work upon becoming fourteen, but for those who remain in the street the tendency is to develop into loafers and 'corner boys.' The period between fourteen and sixteen is a critical time in a boy's life. Street trading provides him with no training; he gets no discipline, he is not occupied the whole of his time; for a few years he makes more money and makes it more easily than in an office or a workshop, and he is exposed to a variety of actively evil influences."^[105]

An important division of the study of street-working children concerns their standing in the schools. In New York City a few figures are available through a study recently made there. The distribution of 200 newsboys under fourteen years of age among the school grades is shown in the following table:^[106]—

AGES	GRADES								SPECIAL	TOTALS
	1	2	3	4	5	6	7	8		
7	2									2
8		3	2							5
9		1	6	1						8
10			6	3	3					12

11	5	7	10	7	4	1		2	36
12	1	1	19	21	9	7	1	3	62
13			15	10	23	17	7	3	75
Totals	2	10	22	48	41	36	25	8	200

Applying the rule that in order to be normal a child must enter the first grade at the age of either six or seven years and progress with enough regularity to enable him to attend the eighth grade at the age of either thirteen or fourteen, it is found that of the 177 newsboys ten to thirteen years of age inclusive, 118 are backward, 57 are normal and 2 are beyond their grades. This is shown in the following table:—

AGES	BACKWARD	NORMAL	AHEAD	TOTAL
10	6	6	0	12
11	22	11	1	34
12	42	16	1	59
13	48	24	0	72
Totals	118	57	2	177
Percentages	67%	32%	1%	100%

This table shows that of the 177 newsboys ten to thirteen years of age, 67 per cent are backward and 32 per cent are normal, while only 1 per cent are ahead of their grades. Boys of these ages are subject to the restrictions prescribed by the state law as to hours, and it is probable that the percentage of retardation would have been even greater if work at night had not been to some extent prevented.

A report of New York City conditions made in 1907, before the newsboy law was enforced, says: "The shrewd, bright-eyed, sharp-witted lad is stupid and sleepy in the schoolroom; 295 newsboys compared with non-working boys in the same class were found to fall below the average in proficiency. They were also usually older than their classmates, that is, backward in their grades."^[107]

Referring to Manchester newsboys above the age of fourteen years, an English report^[108] says: "They are not stupid, or even markedly backward, judged by school standards.... As they grow older they sink to a lower level, both morally and economically—in fact, little better than loafers, without aspiration, and content with the squalor of the common lodging-houses in which they live, if only they have enough money for their drink and their gambling." Concerning the younger newsboys the same report continues: "Those who are the children of extremely poor, and often worthless parents, are often upon the streets selling their papers during school hours, and their attendance at the schools, in spite of prosecution of their parents, is so irregular that they make very little progress. These boys take to the streets permanently for their livelihood; a few of them continue, after the age of fourteen, to earn their living by selling newspapers, but most of them sink into less satisfactory kinds of occupation." In connection with these statements it should be remembered that they portray conditions existing prior to the adoption in 1902 of local rules on street trading. With reference to the alleged cleverness of street Arabs, a British

observer draws this distinction: "Street-trading children are more cunning than other children, but not more intelligent."^[109]

In St. Louis there was no regulation until the Missouri law of 1911 was passed; and in 1910 Miss Ina Tyler, in a study of 106 newsboys of that city, found the following conditions:—

YEARS	NUMBER BELOW NORMAL SCHOOL GRADE			
10	10	out of	16	62%
11	12	out of	16	75%
12	16	out of	28	57%
13	25	out of	33	75%
14	<u>11</u>	out of	<u>13</u>	<u>84%</u>
	74		106	70%

These figures were copied by the writer from charts displayed at the child labor exhibit of the National Conference of Charities and Correction in St. Louis in 1910, but efforts to ascertain the method of determining these percentages were unavailing. Therefore they cannot be compared with the figures in the preceding tables, because it is by no means certain that the standard ages for normal school standing were adopted in the compilation of this table.

In Toledo, Ohio, there is no regulation governing street work by children, although a local association makes an effort to look after the welfare of newsboys. In October, 1911, the writer visited the four public common school buildings nearest the business district of this city and found 287 children in attendance who were regularly engaged in some form of street work out of school hours. The great majority of them were newsboys. The distribution of these children according to age and grade is given below:—

AGES													
Grade	5	6	7	8	9	10	11	12	13	14	15	16	Totals
1	1	8	5	4	4	1							23
2			7	12	8	2	3		2				34
3			1	5	8	22	4	7	3	1			51
4				3	7	17	9	11	6	2	1	2	58
5						8	10	10	7	5	4		44
6							7	7	16	3	4		37
7							1	5	6	9	3	1	25
8									5	7	3		15
Totals	1	8	13	24	27	50	34	40	45	27	15	3	287

Adopting the same method for determining retardation as in the case of the New York figures, we find that of these 287 street-working school children of Toledo, 55 per cent are backward, 43 per cent are normal and 2 per cent are ahead of their grades. Or, selecting the children ten to thirteen years of age, as was done with the New York figures, we have the following results:—

AGES	BACKWARD	NORMAL	AHEAD	TOTAL
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10	25	25		50
11	16	17	1	34
12	28	12		40
13	34	11		45
Totals	103	65	1	169
Percentages	61%	38%	1%	100%

These percentages show that conditions in Toledo are only slightly better than in New York City. This is surprising because of the great difference in the working conditions of the two cities, the metropolitan street children being subjected to far greater nervous strain because of the more congested population and heavier street traffic.

RETARDED CHILDREN IN ELEMENTARY SCHOOLS (TOLEDO), 1910-1911

Grades

	FIRST	SECOND	THIRD	FOURTH	FIFTH	SIXTH	SEVENTH	EIGHTH	TOTAL	PERCENT OF ALL RETARDATIONS
	NORMAL AGE 7-8	NORMAL AGE 7-8	NORMAL AGE 8-9	NORMAL AGE 7-8	NORMAL AGE 10- 11	NORMAL AGE 11- 12	NORMAL AGE 12- 13	NORMAL AGE 13- 14		
Retarded 1 year	325	449	500	483	528	507	366	209	3,367	53.5
Retarded 2 years	91	170	215	346	384	324	194	72	1,796	28.5
Retarded 3 years	33	53	101	152	219	119	33	17	727	11.5
Retarded 4 or more years	16	42	74	131	105	19	3	5	395	6.2
Total retarded	465	714	890	1112	1236	969	596	303	6,285	
Enrollment each grade	3114	2680	2548	2400	2209	1856	1284	901	16,992	
Per cent each grade	14.9	26.6	34.8	46.3	55.9	52.2	46.4	33.6	36.9	

RETARDED STREET WORKERS IN FOUR TOLEDO COMMON SCHOOLS, OCTOBER, 1911

Grades

	FIRST	SECOND	THIRD	FOURTH	FIFTH	SIXTH	SEVENTH	EIGHTH	TOTAL	PERCENT OF ALL RETARDATIONS
	NORMAL AGE 7-8	NORMAL AGE 7-8	NORMAL AGE 8-9	NORMAL AGE 7-8	NORMAL AGE 10- 11	NORMAL AGE 11- 12	NORMAL AGE 12- 13	NORMAL AGE 13- 14		
Retarded 1 year	4	8	22	9	10	16	9	3	81	51.6

Retarded 2 years	4	2	4	11	7	3	3		34	21.7
Retarded 3 years	1	3	7	6	5	4	1		27	17.2
Retarded 4 or more		2	4	5	4				15	9.5
Total retarded	9	15	37	31	26	23	13	3	157	
Enrollment street workers	23	34	51	58	44	37	25	15	287	
Per cent	39.1	44.1	72.5	53.4	59	62.1	52	20	54.7	

A comparison between the table given in the report of the Toledo Board of Education for 1911 showing the total number of retarded children in the elementary schools, and a similar table compiled from the figures for the street-trading children in four Toledo schools given on pages 154 and 155, is most significant. The retardation among the total number of pupils enrolled is to be found on page 154.^[110]

The corresponding figures for the 287 street-trading children in the four schools are to be found on page 155.

It is especially noteworthy that the percentage of retardation among the street workers is very much greater than among the total number of pupils, in every grade except the eighth, while for all the grades it is 17.8 per cent greater. This becomes all the more significant when it is remembered that the figures for the total enrollment include the street workers; hence the excess of retardation among the latter makes the showing of the former worse than if they were excluded, and consequently the comparison on page 155 does not appear to be as unfavorable to the street workers as it is in reality.

On consideration of the figures in the tables on pages 154 and 155, the conclusion is inevitable that street work greatly promotes the retardation of school children. There are, of course, other factors which contribute to bring about this condition of backwardness, such as poverty, malnutrition and mental deficiency, but there can be no doubt that the evil effects of street work are in large measure responsible for the poor showing made in the schools by the children who follow such occupations.

The many quotations in this chapter from authoritative sources with reference to the harmful effects of street work upon children constitute a most severe indictment. Students of labor conditions, specialists and official committees bitterly denounce the practice of permitting children to trade in city streets, and cite the consequences of such neglect. Material, physical and moral deterioration are strikingly apparent in most children who have followed street careers and been exposed to their bad environment for any length of time. We have provided splendid facilities for the correction of our delinquent children through the medium of juvenile courts, state reformatories and the probation system, but surely it would be wise to provide at the same time an ounce of prevention in addition to this pound of cure. Social workers have returned a true bill against street work by children. What will the verdict of the people be?

CHAPTER VII

RELATION OF STREET WORK TO DELINQUENCY

The most convincing proof so far adduced to show that delinquency is a common result of street work is set forth in the volume on "Juvenile Delinquency and its Relation to Employment,"^[111] being part of the Report on the Condition of Woman and Child Wage Earners in the United States, prepared under the direction of Dr. Charles P. Neill, United States Commissioner of Labor, in response to an act of Congress in 1907 authorizing the study. The object of this official inquiry into the subject of juvenile delinquency was to discover what connection exists between delinquency and occupation or non-occupation, giving due consideration to other factors such as the character of the child's family, its home and environment. This study is based upon the records of the juvenile courts of Indianapolis, Baltimore, New York, Boston, Newark, Philadelphia and Pittsburgh, showing cases of delinquency of children sixteen years of age or younger coming before these courts during the year 1907-1908. The total number of delinquents included in the study is 4839, of whom 2767 had at some time been employed and 2072 had never been employed. The entire number of offenses recorded for all the delinquents was 8797, the working children being responsible for 5471 offenses, or 62.2 per cent, while the non-working children were responsible for 3326 offenses, of 37.8 per cent. This shows that most juvenile offenses are committed by working children. The ages of the children committing the offenses recorded, ranged from six to sixteen years, and the report adds, "When it is remembered that a majority, and presumably a large majority, of all the children between these ages are not working, this preponderance of offenses among the workers assumes impressive proportions."^[112]

With reference to the character of the offenses it was found that the working children inclined to the more serious kinds. Recidivists were found to be far more numerous among the workers than among the non-workers. Summing up the results of the discussion to this point the report says: "It is found that the working children contribute to the ranks of delinquency a slightly larger number and a much larger proportion than do the non-workers, that this excess appears in offenses of every kind, whether trivial or serious, and among recidivists even more markedly than among first offenders."^[113]

With reference to the connection between recidivism and street work the report says: "The proportion of recidivism is also large among those who are working while attending school, and the numbers here are very much larger than one would wish to see. Some part of the recidivism here is undoubtedly due to the kind of occupations which a child can carry on while attending school. Selling newspapers and blacking shoes, acting as errand or delivery boy, peddling and working about amusement resorts account for over two-thirds of these boys (478 of the 664 are in one or another of these pursuits). These are all occupations in which the chances of going wrong are numerous, involving as they usually do night work, irregular hours, dubious or actively harmful associations and frequent temptations to dishonesty. In addition, something may perhaps be attributed to the overstrain due to the attempt to combine school and work. When a child of 13, a bootblack, is 'often on the street to 12 P.M.,' or when a boy one year older works six hours daily outside of school time, 'often at night,' as a telegraph messenger, it is evident that his school work is not the only thing which is likely to suffer from the excessive strain upon the immature strength, and from the character of his occupation."^[114]

While reflecting on the excess of working children among the delinquents, one may be inclined to attribute this to bad home influences; but the report shows that only one-fifth of the workers as opposed to nearly one-third of the non-workers come from distinctly bad homes, while from fair and good homes the proportion is approximately 76 per cent to 65 per cent. Consequently, the working child goes wrong more frequently than the non-working child in spite of his more favorable home surroundings.^[115]

Of the total number of delinquent boys, both working and non-working, under twelve years of age, 22.4 per cent were workers, while of those twelve to thirteen years old, 42.4 per cent were workers, and of those fourteen to sixteen years old, 80.8 per cent were workers. As comparatively few children under twelve years are at work, the

fact that more than one-fifth of the delinquent boys in this age group are working children "becomes exceedingly significant." Of all children twelve to thirteen years of age, the great majority are not employed because of the fourteen-year age limit prevailing in all the states studied except Maryland; hence the larger proportion of working offenders cannot be explained by the influences of age. The increase of working delinquents above fourteen years is to be expected, because so many children go to work on reaching that age.

Remembering that the proportionate excess of workers varies from two to nine times the ratio of non-workers, it is evident that this excess cannot be explained by a corresponding excess of orphanage, foreign parentage, bad home conditions or unfavorable age. As the report says, "It seems rather difficult to escape the conclusion that being at work has something to do with their going wrong."^[116]

The strongest argument against street work by children is to be found in the following table^[117] of occupations pursued by the largest number of delinquents and giving the percentage of total delinquents engaged in each.

As the report says, the following classification shows that the largest number of delinquent boys were found in those occupations in which the nature of the employment does not permit of supervision—namely, newspaper selling, errand running, delivery service and messenger service. Boys engaged in these occupations, together with bootblacks and peddlers, all work under conditions "which bring them into continual temptations to dishonesty and to other offenses."^[118]

BOYS INDUSTRY OR OCCUPATION	PER CENT OF TOTAL DELINQUENT BOYS	GIRLS INDUSTRY OR OCCUPATION	PER CENT OF TOTAL DELINQUENT GIRLS
Newsboys	21.83	Domestic service:	
Errand boys	17.80	Servant in private house	32.18
Drivers and helpers, wagon	7.30	In hotel, restaurant or boarding house	5.44
Stores and markets	4.23	Home workers	16.33
Messengers, telegraph	2.59	Total in domestic service	53.95
Iron and steel	1.84		
Textiles, hosiery and knit goods	1.84	Textiles, hosiery and knit goods	12.36
Bootblacks	1.77	Stores and markets	5.44
Peddlers	1.71	Clothing makers	4.95
Building trades	1.64	Candy and confectionery	4.45
Theater	1.57	Laundry	1.98
Office boys	1.43		
Glass	1.30		

The offenses with which the boys were charged are divided in the report into sixteen classes. The messenger service furnishes the largest proportionate number of offenders charged with "assault and battery" and "immoral conduct"; the delivery service those charged with "burglary"; bootblacking those charged with "craps and gambling," "incurigibility and truancy"; peddling those with "larceny and runaway," and "vagrancy or runaway." The report calls attention to the greater tendency of messengers to immorality, and remarks that it is easy to see a connection between bootblacking and the offenses in which bootblacks lead. The report continues: "It is worthy to note that neither the newsboys nor errand boys, both following pursuits looked upon with disfavor, are found as contributing a *leading* proportion of any one offense. They seem to maintain what might be called a high general level of delinquency rather than to lead in any particular direction, errand boys being found in fourteen and newsboys in fifteen of the sixteen separate offense groups."^[119]

For the purpose of clearly defining the connection between occupation and delinquency, and determining whether the delinquency inheres in the occupation or in the conditions under which it is carried on, there were selected six kinds of employments which are generally looked upon by social workers as morally unsafe for children, and a comparison was made of conditions as to the parentage, home surroundings, etc., prevailing among the workers in these occupations, the working delinquents generally, and the whole body of delinquents, both working and non-working. Of the delinquent boys under twelve years engaged in these six groups of employments (delivery and errand boys, newsboys and bootblacks, office boys, street vendors, telegraph messengers and in amusement resorts), nearly three-fourths were found to be newsboys and bootblacks. As four-fifths of the working delinquents under twelve years of age in all occupations are found in these six groups, it is evident that this class is largely responsible for the employment of young boys, and "comparing these figures with those for the working delinquents in all occupations we find that 58.6 per cent, or nearly three-fifths of all the working delinquents up to twelve, come from among the newsboys."^[120]

It was found that 54.6 per cent of all the working delinquents had both parents living, while newsboys and bootblacks, street vendors and telegraph messengers were found to be more fortunate in this respect than the great mass of working delinquents, even surpassing the whole body of delinquents, working and non-working. As the report says, "One so frequently hears of the newsboy who has no one but himself to look to that it is rather a surprise to find that the orphaned or deserted child appears among them only about half as often relatively as among the whole group of workers."^[121]

Of the delinquent delivery and errand boys, 78.9 per cent were found to have fair or good homes, of the newsboys and bootblacks 75.8 per cent, of the street vendors 65 per cent, and of the telegraph messengers 78.9 per cent, and in this connection the report declares, "Certainly the predominance of these selected occupations among the employments of delinquents cannot be explained by the home conditions of the children entering them."^[122]

The findings with respect to the messenger service fully corroborate the charges brought against it by the National Child Labor Committee. The report says: "Turning to the messengers, it is seen that they are in every respect above the average of favorable conditions. Moreover, it is well known that boys taking up this work must be bright and quick; there is no room in it for the dull and mentally weak. Plainly, then, in this case the occupation, not the kind of children who enter it, must be held responsible for its position among the pursuits from which delinquents come ... the chief charges brought against it are that the irregular work and night employment tend to break down health, that the opportunities for overcharge and for appropriating packages or parts of their contents lead to dishonesty, and that the places to which the boy is sent familiarize him with all forms of vice and tend to lead him into immorality."^[123] Referring again to the messenger service, the report says: "The unfortunate effects of the inherent conditions of the work are, however, manifest. Its irregularity, the lack of any supervision during a considerable part of the time, the associations of the street and of the places to which messengers are sent, and the frequency of night work with all its demoralizing features, afford an explanation of the impatience of restraint, the reckless yielding to impulse shown in the large percentage of incorrigibility and disorderly conduct. A glance at the main table shows that the two offenses next in order are assault and battery and malicious mischief, both of which indicate the same traits. On the whole, there seems abundant reason for considering that the messenger service deserves its bad name."^[124]

With reference to errand and delivery boys, the report finds that as the level of favorable conditions keeps so near to the average, it seems necessary to attribute the number of delinquents furnished by this class more to the conditions of the work than to the kind of children taking it up.

The occupational influences of amusement resorts, street vending and newspaper selling "are notoriously bad, but a partial explanation of the number of delinquents they furnish is unquestionably in the kind of children who enter them. It is a case of action and reaction. These occupations are easily taken up by immature children, with little or no education and no preliminary training. Such children are least likely to resist evil influences, most likely to yield to all that is bad in their environment."^[125]

Having shown that a connection can be traced between certain occupations and the number and kind of offenses committed by the children working in them, the report next determines to what extent a direct connection can be traced between occupation and offense. If a working child commits an offense, first, during working hours, second, in some place to which his work calls him, and third, against some person with whom his work brings him in contact, a connection may be said to exist between the misdemeanor and the employment. The report insists that

either all three of the connection elements must be present, or else the offense must be very clearly the outcome of conditions related to the work, before a connection can be asserted; and it reminds the reader that the number of connection cases shown represents an understatement, probably to a considerable degree, of the real situation. The number of boy delinquents in occupations which show more than five cases of delinquency chargeable to occupation was found to be 308; of these, 100 were errand or delivery boys, 129 were newsboys, 16 were drivers or helpers, 13 were street vendors and 10 were messengers.

The number of boy delinquents working at time of last offense and the number whose offenses show a connection with the occupation are compared, by occupation, in the following table,^[126] p. 173.

OCCUPATION OR INDUSTRY	BOY DELINQUENTS WORKING AT TIME OF LAST OFFENSE	BOY DELINQUENTS WHOSE OFFENSES SHOW A CONNECTION WITH OCCUPATION	
		NUMBER	PER CENT OF BOY DELINQUENTS IN OCCUPATION WORKING
In amusement resorts	40 ^[127]	7	17.5
Domestic service	50 ^[128]	14	28.0
Driver or helper	107	16	14.9
Errand or delivery boys	261	100	38.3
Iron and steel workers	27	7	25.9
Messengers	38	10	26.3
Newsboys and bootblacks	346 ^[129]	129	37.2
Street vendors	25	13	52.0
Stores and markets	62	12	19.3

"Among the errand and delivery boys the percentage (of connection cases) is large and the connection close. Larceny accounts for over nine-tenths of these cases, the larceny usually being from the employer when the boy was sent out with goods, though in some cases it was from the house to which the boy was sent. It will be remembered that in respect to parental and home condition, age, etc., the delinquent errand boys came very close to the average, and their antecedents gave no reason to expect they would go wrong so numerously. That fact, together with the large proportion of connection cases, seems to indicate that the occupation is distinctly a dangerous one morally."^[130]

As the various forms of immorality are practiced in secret, the report truly says that the evils which are most associated with a messenger's life could hardly appear in these studies. "A trace of them is found in the case of one boy sentenced for larceny. After his arrest it was found that he was a confirmed user of cocaine, having acquired the habit in the disreputable houses to which his work took him. Perhaps something of the same kind is indicated by the fact that one of the few cases of drunkenness occurring among working delinquents came, as a connection case, from this small group of messengers. For the most part, however, the connection offenses (by messengers) were some form of dishonesty, usually appropriating parcels sent out for delivery, though in some cases collecting charges on prepaid packages was added to this."^[131]

The newsboys almost equal the errand boys in their percentage of connection cases, though their offenses have a much wider range; in fact, the connection cases for newsboys include a greater variety of offenses than any other occupation studied. Beggary appears for the first time, there being two cases, in both of which the selling of papers was a mere pretext, enabling the boys to approach passers-by. Street vendors were found to show the highest percentage of connection cases, larceny being the leading offense.

The report concludes: "It is a striking fact that in spite of the incompleteness of the data, a direct connection between the occupation and the offense has been found to exist in the cases of practically one-fourth of the boys employed at the time of their latest offense. It is also a striking fact that while the delinquent boys working at the time of their latest offense were scattered through more than fifty occupations, over six-sevenths of the connection cases are found among those working in street occupations, and that more than three-fifths come from two groups of workers—the errand or delivery boys, and the newsboys and bootblacks. It is also significant that the connection cases form so large a percentage of the total cases among the street traders, the messengers, and the errand or delivery boys, their proportion ranging from over one-fourth to over one-half, according to the occupation."^[132]

In considering the effect of night work upon the morals of children, the report says, "The messengers and newsboys show both large numbers and large percentages of night work, thus giving additional ground for the general opinion as to the undesirable character of their work"; and again, "In the following occupations the cases of night work are more numerous than they should be in proportion to the number ever employed in these pursuits: bootblacks, bowling alley and pool room, glass, hotel, messengers, newsboys and theaters and other amusement resorts."^[133]

More than one-fourth of the working boy delinquents were found to be attending day school. More than half of these pupils were newsboys and bootblacks. It was found that the more youthful the worker, the stronger is his tendency toward irregular attendance at school.

Eighty-three boy delinquents were devoting eleven or more hours per day to work, and of these, 31 were errand or delivery boys, 7 were hucksters or peddlers, 6 were messengers and 2 were newsboys or bootblacks.

"For both sexes, the workers show a greater tendency than the non-workers to go wrong, even where home and neighborhood surroundings appear favorable, but this tendency is not so marked among the girls as among the boys."^[134]

This report of the government investigation furnishes most conclusive evidence as to the evil character of street trading in general. It bears out the description so aptly made by a recent writer: "The streets are the proverbial schools of vice and crime. If the factory is the Scylla, the street is the Charybdis."^[135]

Another American writer has lately declared: "A prolific cause of juvenile delinquency is the influence of the street trades on the working boy. No other form of work has such demoralizing consequences.... These boys are brought into the juvenile court, and their misdemeanors are often so great that reformatory treatment is necessary for them. Accordingly they represent a large proportion of the boys in the different institutions. The demoralization produced by the street trades affects others than those engaged in such trades, but the latter are the chief sufferers; therefore the importance of legislation which will shut off this source of infection."^[136]

A Chicago physician took occasion to look into the records of the juvenile court of that city in 1909, and found that the first 100 boys and 25 girls examined that year were representative of the 2500 delinquents brought into the court during the preceding year. Not less than 57 of these boys had been engaged in street work—43 as newsboys, 12 as errand boys and messengers and 2 as peddlers. Only 13 out of the entire number had never been employed. Sixty of them were physically subnormal; the general physical condition of the girls was found to be much better than that of the boys of the same age, although 40 per cent of the girls were suffering from acquired venereal disease.^[137]

In the autumn of 1910 there were 647 boys confined in the Indiana state reformatory, which is known as the Indiana Boys' School, at Plainfield. Of this number 219, or 33.8 per cent, had formerly been engaged in street work. To determine the relative delinquency of street workers and boys who have never pursued such occupations, it would be necessary to compare these 219 delinquents with the total number of street workers in Indiana and also to compare the total number of inmates who had never followed street occupations with the total number of boys within the same age limits in Indiana. A comparison of the two percentages would be illuminating, but is impossible because it is not known how many street workers there are in the state. However, it is safe to assume that the number of street-working boys in Indiana is much less than one third of the total number of boys. If we accept this as true, then the figures indicate that street work promotes delinquency, because one third of all the delinquents in the state reformatory had been so engaged. The frequent assertion that, merely because a large

percentage of the inmates of correctional institutions were at some time engaged in street work, such employment is therefore responsible for their delinquency, cannot be accepted alone as proof of the injurious character of this class of occupations, as it is not known how long each offender was engaged in such work, nor are the other causes contributing to the delinquency of each boy properly considered or even known. This defect is avoided in the government's Report on Juvenile Delinquency and its Relation to Employment, which, with reference to the common practice of jumping at conclusions in this way, says, "This appears to show that selling newspapers is a morally dangerous occupation, but the danger cannot be measured, since it is not known what proportion of the working children are newsboys, or what proportion of the newsboys never come to grief."^[138] The following tables are of interest as showing in detail the facts as to Indiana's delinquent boy street workers, who are confined in the state reformatory:—

STREET WORKERS IN INDIANA BOYS' SCHOOL, 1910

Table A. Distribution among Street Occupations

COMMITTED FOR	MESSENGERS		NEWSBOYS	BOOTBLACKS	PEDDLERS	DELIVERY BOYS	CAB DRIVER	TOTAL
	Day	Night						
Larceny	3	22	88	3	6	3		125
Incorrigibility		5	30	1	3		1	40
Truancy		2	27		3			32
Assault and battery		2	5	1				8
Burglary		1				2		3
Forgery		2						2
Manslaughter			1					1
Other charges	1	2	5					8
Totals	4	36	156	5	12	5	1	219

Table B. Ages when at Work at these Occupations

	UNDER 10	10	11	12	13	14	15	16	TOTALS
Day messengers				1	1	2			4
Night messengers	1	2	2	5	12	11	3		36
Newsboys	29	29	28	36	19	14	1		156
Bootblacks	3		1		1				5
Peddlers	1	4		2	3	1		1	12
Delivery boys		2		1	1			1	5
Cab drivers					1				1
Totals	34	37	31	45	38	28	4	2	219

Table C. Ages at Time of Commitment

COMMITTED FOR	UNDER 9	9	10	11	12	13	14	15	16	17	TOTAL
Larceny	1	2	8	16	16	24	28	19	10	1	125
Incorrigibility		1	4	4	2	7	7	7	8		40
Truancy		2	3	6	4	7	6	3	1		32

Assault and battery					1	1	5	1				8
Burglary							2			1		3
Forgery							1	1				2
Manslaughter							1					1
Other charges					3	1	2	2				8
Totals	1	5	15	26	26	40	52	33	19	2		219

Table D. Nationality and Orphanage of Street Workers

OCCUPATIONS	AMERICAN	NEGRO	GERMAN	IRISH	POLISH	FRENCH	SCOTCH	ITALIAN	JEWISH	FATHER LIVING		MOTHER LIVING	
										Yes	No	Yes	No
Day messengers	3				1					4		3	1
Night messengers	25	5	3	1	1		1			30	6	30	6
Newsboys	69	59	13	8	3	2		1	1	107	49	119	37
Bootblacks	4	1								5		5	
Peddlers	6	2	1	1	1	1				7	5	11	1
Delivery boys	2	3								4	1	5	
Cab driver	1										1	1	
Totals	110	70	17	10	6	3	1	1	1	157	62	174	45

Table E. Hours and Earnings of Street Workers
(In only 91 cases were the hours given, and earnings in only 116 cases.)

OCCUPATIONS	HOURS							DAILY EARNINGS				
	Day			Night								
	All	Morning	Afternoon	All	Before midnight	After midnight	Totals	Under 50 cents	50-75 cents	75 cents-\$1.00	\$1.25-\$1.50	Totals
Day messengers	3						3	1	1	1		3
Night messengers				6	2	1	9		8	4	1	13
Newsboys	29	10	11	1	4	1	56	47	23	5	3	78
Bootblacks	5						5	1	3			4
Peddlers	11				1		12	6	3	3		12
Delivery boys	5						5		3	2		5
Cab driver					1		1			1		1
Totals	53	10	11	7	8	2	91	55	41	16	4	116

Table F. Non-Street Workers in Indiana Boys' School, 1910

COMMITTED FOR	AMERICAN	NEGRO	GERMAN	IRISH	POLISH	ENGLISH	JEWISH	SWEDISH	FRENCH	MEXICAN	ITALIAN	HUNGARIAN	TOTALS
Larceny	156	40	12	7	10	3	1		2	1	1	1	234
Truancy	66	10	4	3	3								86
Incorrigibility	53	7	4	5	3	1	1	1					75
Burglary	5	1				1					1		8

Assault and battery	2	2	1	1									6
Other charges	11	5	2	1									19
Totals	293	65	23	17	16	5	2	1	2	1	2	1	428

Table G. Non-Street Workers in Indiana Boys' School, 1910

COMMITTED FOR	AGES AT COMMITMENT											TOTALS
	UNDER 9	9	10	11	12	13	14	15	16	17	OVER 17	
Larceny	9	7	10	20	25	33	46	47	28	9		234
Truancy	7	10	10	10	17	14	10	5	3			86
Incorrigibility	1	7	4	9	8	10	14	8	12	2		75
Burglary			1	2		2	1	1			1	8
Assault and battery						1	1	2	1		1	6
Other charges	2	3	2	3	1	1	1	3		3		19
Totals	19	27	27	44	51	61	73	66	44	14	2	428

Table H. Behavior in Institution

	STREET WORKERS	NON-STREET WORKERS
Good	39 or 18%	95 or 22%
Average	175 or 80%	321 or 75%
Bad	5 or 2%	12 or 3%
Totals	219	428

By far the largest number of street-working delinquents had been newsboys, these being followed by messengers, peddlers, bootblacks and delivery boys in the order given. From a hasty glance at these tables one might conclude that street workers are not so liable to become delinquent as those who never follow street occupations, because of the smaller number of the former; but it should be remembered that the ratio of street-working inmates to the entire number of street-working boys in Indiana is much greater than the ratio of the other inmates to the whole body of non-street-working children in the state.

In comparing Tables C and G it is seen that the street workers and the non-street workers were committed for practically the same offenses, and that their distribution according to offense does not vary widely. It is significant that a much smaller proportion of the street workers were committed to the institution under the age of ten years, than of the non-street workers, indicating that street occupations (which are not usually entered upon before the age of ten years), if followed for a year or two, contribute largely to the promotion of delinquency.

From a comparison of Tables D and F it will be observed that the prevalence of delinquency among the street workers cannot be explained on the ground of orphanage, as only 28 per cent were fatherless and 21 per cent motherless, while of the non-street workers 30 per cent were fatherless and 25 per cent were motherless. This indicates (1) that street work in the great majority of cases is not made necessary by orphanage, and (2) that street work causes delinquency in spite of good home conditions so far as the presence of both parents contributes to the making of a good home. Furthermore, it will be noted in Table E that nearly half of the children for whom figures on income could be obtained earned less than fifty cents per day—a small return on the heavy investment in the risk of health and character.

The difference in behavior at the institution between the street workers and the others is shown in Table H to be almost negligible, the latter making a slightly better showing.

An English writer says: "There is no difficulty in understanding how street trading and newspaper selling lead to gambling. We are told by those who are best able to judge, that of the young thieves and prostitutes in the city of Manchester, 47 per cent had begun as street hawkers. For the younger boys and girls such an occupation, especially at night, turns the streets into nurseries of crime. The newspaper sellers are not exposed to quite the same dangers, but they are nearly all gamblers. They gamble on anything and everything, from the horse races reported hour by hour in the papers they sell, to the numbers on the passing cabs, and they end by gambling with their lives."^[139]

CHAPTER VIII

THE STRUGGLE FOR REGULATION IN THE UNITED STATES

The economic activities of children in city streets, commonly called street trades, are not specifically covered by the provisions of child labor laws except in the District of Columbia and the states of Massachusetts, Missouri, New York, Oklahoma, Colorado, Utah, Nevada, New Hampshire and Wisconsin. The laws of many other states as well as of those mentioned, however, prohibit children under fourteen years of age from being employed or permitted to work in the distribution or transmission of merchandise or messages. If newspapers are merchandise, then children under fourteen years would not be allowed to deliver newspapers under the provision just stated. This raises a nice question as to what is included in the term "merchandise." That there is any distinction between newspapers and merchandise is practically denied by the street-trades laws of Utah and New Hampshire which provide that children under certain ages shall not sell "newspapers, magazines, periodicals or *other* merchandise in any street or public place"; the question of delivery, however, is left open by these laws. The Court of Appeals of the District of Columbia, in the case of *District of Columbia vs. Reider*, sustained the juvenile court of the District in its decision that newspapers are not merchandise and consequently that children under fourteen years of age engaged in delivering newspapers are not affected by the law.^[140] The judge of the trial court stated in his opinion, "No one will seriously contend that the nature of the employment in the case at bar is at all harmful to the child." The case at bar was the prosecution of a route agent for a morning newspaper on account of having employed a minor under fourteen years of age to deliver newspapers. This opinion is typical of the misplaced sympathy so commonly bestowed upon these young "merchants" of the street. In the case cited, the court permitted itself to be drawn aside into an interpretation of the letter of the law instead of viewing the matter in the light of its spirit. The purpose of such a law is to *prevent the labor* of children, not to distinguish between closely related forms of labor. Its object is to afford protection, not to provoke discussion of purely technical points. The *labor* of delivering merchandise does not differ in any respect from the *labor* of delivering newspapers (the possibly greater weight of merchandise does not alter the case, inasmuch as it is usually carried about in wagons); and as the child labor law of the District of Columbia forbids the delivery of merchandise by children under fourteen years at any time, it follows that the delivery of newspapers by such children should not be allowed, because the intent of the law is to protect them from the probable consequences of such work. Moreover, the District of Columbia law prohibits children under sixteen years from delivering merchandise before six o'clock in the morning; yet, under the interpretation given by the juvenile court, it is perfectly proper for a child even under the age of *fourteen* years to perform the *labor* of delivery before that hour, provided he handles newspapers instead of packages. The inconsistency of this is only too apparent. The spirit of the law is lost sight of in the close interpretation of its wording. This is one of the obstacles always encountered in the movement for child labor reform after prohibitory legislation has been enacted.

American legislation on street trading still clings persistently and pathetically to the theory that uncontrolled labor is much better for children than labor under the supervision of adults, and consequently authorizes very young children to do certain kinds of work in the streets on their own responsibility, while forbidding them to work at other street occupations even under the control of older and more experienced persons. This official incongruity must ultimately be rescinded and replaced by more rational and comprehensive legislation. The fallacy of permitting such a distinction on the ground that the child is an independent "merchant" in the one case and an employee in the other, must also be abandoned in favor of a more enlightened policy.

Present Laws and Ordinances

The following table shows all the laws and ordinances governing street trading by children in existence in the United States in 1911.

The city council of Detroit passed an ordinance in 1877 which forbids newsboys and bootblacks to ply their trades in the streets without a permit from the mayor. No age limit is fixed, no distinction is made between the sexes and no hours are specified. Applicants for the permit are customarily referred to the chief truant officer for approval, and as a rule permits are not issued to boys under ten years of age or to girls. An annual license fee of ten cents is charged, and the license holder is supplied with a numbered badge which must be worn conspicuously. Owing to its manifest weakness, this ordinance is of little avail.

It will be observed from the following table that the common age limit for boys in street trading is ten years. When we pause to reflect on the import of this, it is hard to realize that intelligent American communities actually tolerate such an absurdly meager restriction; yet the movement for reform has progressed even this far in only a very small part of the country—in most places there is no restriction whatever! Some day, and that not in the very remote future, we shall look back upon the authorized exploitation of the present period with the same degree of incredulity with which we now regard the horrors of child labor in England during the early part of the nineteenth century.

STATE LAWS

STATES	AGE LIMIT	LICENSES	HOURS	ENFORCEMENT	PENALTIES
Colorado, 1911	Girls, 10; any work in streets			Factory inspectors	\$5-\$100 fine for first offense, \$100-\$200 fine or imprisonment 90 days for 2d offense for employers. \$5-\$25 fine for parents
District of Columbia, 1908	Boys, 10; Girls, 16; bootblackening, selling anything	Boys, 10-15	6 A.M. 10 P.M.	Factory inspectors	Left to discretion of juvenile court
Missouri, 1911	Boys, 10; girls, 16; selling anything			Factory inspectors	Max. fine \$100 or max. imprisonment one year, for child
Nevada, 1911	Boys, 10; girls, 10; selling anything				Child dealt with as delinquent
New Hampshire, 1911	Boys, 10; girls, 16; publications or other mdse. Boys, 10; girls, 10; bootblackening			Factory inspectors; truant officers	\$5-\$200 fine or imprisonment 10-30 days, for employers and parents
New York, 1903	Boys, 10; girls, 16; publications	Boys, 10-13	6 A.M. 10 P.M.	Police and truant officers	Dealt with according to law
Oklahoma, 1909	Girls, 16; publications			Commissioner of Labor	\$10-\$50 fine or imprisonment 10-30 days for child
Utah, 1911, 1st & 2d class cities	Boys, 12; girls 16; publications or other mdse. Boys, 12; girls, 12; bootblackening	Boys, 12-15 Boys, 12-15 Girls 12-15	Not after 9 P.M.		\$25-\$200 fine or imprisonment 10-30 days, for employers and parents
Wisconsin, 1909, as amended 1911, 1st class cities	Boys, 12; girls, 18; publications. Boys, 14; girls, 18, all others	Boys, 12-15	5 A.M. 6.30 P.M., winter 7.30 P.M., summer; publications	Factory inspectors	\$25-\$100 fine or imprisonment 10-60 days for parents permitting, and others employing, child under 16 to peddle without permit. Same for newspapers allowing boys under 16 about office between 9 A.M. and 3 P.M. on school days
Massachusetts, 1902 as amended, 1910	Mayor and aldermen or selectmen may make regulations of bootblackening and sale of newspapers, merchandise, etc; may prohibit such sale or trades; or may require license to be obtained from them. School committees in cities have these powers as to children under 14 years.				Max. fine \$10 for child; max. fine \$200 or max. imprisonment 6 months for parent allowing, person employing, or any one furnishing articles to, a child to sell

CITY ORDINANCES

CITIES	AGE LIMIT	LICENSES	HOURS	ENFORCEMENT	PENALTIES
Boston, 1902, by school committee	Boys, 11; girls, 14; bootblackening, selling anything	Boys, 11-13	6 A.M. 8 P.M., winter 9 P.M., summer	Supervisor of licensed minors, police and truant officers	Revocation of license and fine as stated for Massachusetts

Cincinnati, 1909	Boys, 10; girls, 16; bootblackening, selling anything	Boys, 10-13	6 A.M. 8 P.M.	Police, truant and probation officers	Fine \$1-\$5 for child
Hartford, 1910	Boys, 10; girls, 10; selling anything	Boys, 10-13 Girls, 10-13	Not during school hours or after 8 P.M.		Revocation of license by school superintendent
Newark, 1904	Boys, 10; girls, 16; newspapers	Boys, 10-13	Not between 9 A.M. and 3 P.M. nor after 10 P.M.	Police and truant officers	Child placed on probation or committed to Newark City Home at expense of parent

In an attempt to minimize the bad effects of street trading most of the communities which have enacted laws or ordinances on the subject provide for the issuance of licenses to boys, and in some cases also to girls, in the belief that in this way the work of the children can best be brought under some degree of control. However, this is merely temporizing, although it affords an opportunity to gather facts and undoubtedly marks a step toward a better solution of the problem. This is brought out clearly by a recent British report on street trading: "Our general impression, gathered in towns in which by-laws had been made, was that, though in exceptional cases much good had resulted from their adoption, on the whole this method of dealing with what we have come to consider an unquestionable evil, has not proved adequate or satisfactory. In many instances it has been pointed out to us that a system of licensing and badging is but a method of legalizing what is indisputably an evil, and that a set of by-laws, however rigorously enforced, can at best only modify the difficulties of the position."^[141]

The social workers of Chicago, keenly alive to the menace of the situation, bewail the lack of protection for street workers in the following words: "The child labor law and the compulsory school law and the juvenile court law form the body of protective legislation which has been developing in behalf of the children of Illinois during the past twenty years. By none of the three, however, except in so far as street trading by a child under ten is counted an element in dependency, is the street-trading child safeguarded against parental neglect or greed, the vicious sights and sounds of the city street and the demoralizing habit of irregular employment."^[142]

Opposition to Regulation

The opposition to bringing the street trades under some degree of restriction has come, as might be expected, from very interested sources. In Illinois the newspaper publishers figured prominently in the movement to prevent the passage of the street-trades measure introduced in the legislature of that state at its session of 1911. This has not always been the case, however, as the circulation managers of the five leading daily newspapers of St. Louis wrote letters to the legislature of Missouri favoring the passage of that section of the child labor bill of 1911, which provided that boys under ten years and girls under sixteen years should not sell anything in any street or public place within the state. This provision was enacted into law, but it is safe to say that if the rational age limit of sixteen years for boys had been advocated instead of ten years, the newspapers would have been most active in opposing this section. In Cincinnati the circulation managers of the newspapers most affected by the street-trades ordinance passed by the City Council in 1909 agreed to its provisions before the measure was submitted to the Council, and consequently it passed without opposition.

In New Haven and Hartford repeated attempts have been made to secure regulation of street trading by means of city ordinances, and at two sessions of the state legislature bills have been introduced which provided for such restriction, but all these efforts have been persistently fought by a leading newspaper of Hartford in which city it has always been customary to have girls as well as boys selling newspapers on the street. In 1910, a city ordinance was passed in Hartford providing that boys and girls under ten years should be prohibited from trading in the streets and that between the ages of ten and fourteen years they should be licensed and not allowed to sell after 8 P.M. The newsgirls were not banished from the street because it was held that they were "a pretty good sort of girl after all," and that so long as it could not be proved that they were *demoralized* by the work, they should be permitted to go on with it. In other words, the city clings to the fine old American policy of delaying action until some calamity makes it necessary.

The objections offered by interested parties to the by-laws drafted by the London County Council at a hearing held in 1906, show that the law of self preservation operates in England as in other quarters of the Earth. News

agents, employing little boys to deliver newspapers, declared that conditions were not bad; that the work was healthful; that the wages were a great help to poor parents; that they could not afford to employ older boys; that the lads should be allowed to begin at 6 A.M. and work not more than ten hours a day outside of school with a maximum weekly limit of twenty-five hours; that to prohibit the delivery of newspapers before 7 A.M. and after 7 P.M. would be a great injustice to the trade; that boys wouldn't stay in bed even if 7 A.M. were fixed as the hour for beginning work; that such work does not interfere with schooling; that the boys are well looked after; in short, that the by-laws would ruin them and bring starvation to the children. One news agent in declaiming against the hours fixed for the delivery of newspapers, insisted that the restriction would throw boys out of employment and send them to trade in the streets with their undesirable associations, apparently unmindful of the fact that delivery boys themselves worked in that environment. The dairymen were horrified at the limit placed on hours, urging that the little boys in their employ should begin to deliver milk at 5 A.M., as early work was beneficial and the wages useful to poor parents. Shopkeepers denounced the by-laws as too drastic, because they would prevent such light work as errand running at noon and casual employment in the evening after 7, resulting in hardship to both parents and children; one acknowledged that if he were prevented from employing cheap labor his business would suffer; another said that he employed a boy at noon and also from 5.30 to 9 P.M., the work being light and the parents satisfied, and that the training was good for boys. A fruiterer actually declared that the limit of eight hours on Saturday would make a boy valueless to him; another said he employed a boy for one hour in the morning, from 6 to 9 in the evening, and also on Saturday morning and evening, in running errands, and that the work was not heavy; another employed boys after school from 6 to 9.30 P.M., insisting that the work was good for them, as it kept them from the street and gave them an insight into business habits.^[143] It should be remembered that all this work was performed by the children in addition to attending school both morning and afternoon.

The testimony given before the British Interdepartmental Committee of 1901 by the secretary of an association representing many thousand retail shopkeepers, would be amusing if it were not so sinister. He presented the subject of child labor in a most favorable aspect, declaring that the wages were needed on account of poverty in the families; that the work was light and had a *very beneficial* effect on health because it was done in the open air; that good meals were given in addition to cash wages and were *very beneficial*; that the effect on the boys' character was *very beneficial*, as the work cultivated businesslike habits and kept the boys from running the streets, frequently affording promotion to the higher grades of shopkeeping.^[144] Another British Committee, investigating conditions in Ireland, reported, "We found but one witness (a newspaper manager of Belfast) to testify that the present conditions of selling papers in the street were satisfactory and cannot be improved; and that instead of tending to demoralize, they have the opposite effect."^[145]

Ways and Means of Regulating Street Work

As to the control of street trading by children there are two methods by which the desired end may be approached. First, a mutual agreement as to self-imposed restrictions among the managers of all the business interests in connection with which children work on the streets. This method, however, can be dismissed from consideration at once on account of its impracticability. Street work embraces many different kinds of commercial activity, and as one manager is the competitor of all others in the same line of business and is free to adopt such lawful means of placing his wares on the market as he sees fit, it would be clearly impossible to force any one into such an agreement against his will. Moreover, new competitors may enter the field at any time who would not be bound by the agreement of the others, and consequently this would soon be broken by the force of competition following the intrusion of these new parties.

Second, regulation by constituted legislative authority. This is the more feasible method, and such regulation may be obtained from either of two sources—the municipality or the state. There is a question as to which of the two is the better for the purpose. Regulation by the state has the advantage of making the provisions apply uniformly to all cities within its borders and is obtained by no more effort than is required to get an ordinance through the Council of a single municipality. On the other hand, the municipal ordinance has the advantage of being secured by residents of the community who are intelligently concerned in the local problem and who will therefore take an active interest in having its provisions enforced. However, the good features of both these methods are united in the English plan, a modification of which has been adopted by Massachusetts. According to

this plan the state fixes a minimum amount of restriction and authorizes local authorities, including boards of education, to increase the scope of restriction, and provides penalties for violation of the same.

As to the degree of regulation, an ultra-conservative measure would prohibit boys under ten and girls under sixteen years from selling anything at any time in the streets or public places of cities, while the age limit for boys is raised to fourteen years for night work. The issuance of licenses to boys ten to fourteen years of age who wish to engage in street trading is the usual accompaniment of such restriction, and while ordinarily of little avail, it could be made of some assistance to truant and probation officers in their efforts to enforce the compulsory education and delinquency laws. The age limit for boys has been advanced to eleven years by the School Committee of Boston, and to twelve years for newsboys and fourteen years for other street workers by the state of Wisconsin. But all efforts to secure such regulation should be based upon the principle that street trading is an undesirable form of labor for children, and consequently should be subject to at least the same restrictions as other forms of child labor.

Probable Course of Regulation in Future

American child labor laws usually contain a provision to the effect that no child under sixteen years shall engage in any employment that may be considered dangerous to its life or limb or where its health may be injured or morals depraved. This is sonorous, but ineffective,—the particular kinds of improper work should be specified. In this list of undesirable forms of labor, street work should be included. Great Britain has had far more experience in the matter of regulating the work of children than any state of this country, and, in the light of all this experience, her departmental committee of 1910 has emphatically declared that street trading by boys under seventeen and girls under eighteen years should be absolutely prohibited. This should be our ideal in America. Commenting on the banishment of young girls from the streets of New York City, Mrs. Florence Kelley says, "If the law against street selling and peddling by girls to the age of sixteen years can be thus effectively enforced in a city in which the depths of poverty among the immigrants are so frightful as they are in New York, there is no reason for assuming that it is impossible to prohibit efficiently street selling by boys."^[146] Girls under eighteen years should never be allowed to go out in the streets for commercial purposes, no matter how innocent these purposes may be in themselves. One of the most important features of the movement in America should be the absolute prohibition of such work by minors under eighteen years at night; this is urged because it is in harmony with the provisions of our most advanced child labor laws and is fully justified because of the evil character of the influences rampant in cities after dark, and because such night work affords children a constant opportunity to cultivate their acquaintance with, if not to know for the first time, conditions from which every effort should be made to isolate them. For night messenger service the age limit should be twenty-one years.

The enforcement of such regulation as is now provided by the few states and cities which have given this subject any attention, is variously intrusted to factory inspectors, police, truant and probation officers, but in Boston the school committee has delivered this task into the hands of one man who is known as the supervisor of licensed minors. The Boston plan for enforcement seems to have given better results than the common system of intrusting the enforcement to officers already overburdened with other duties, but it is clearly impossible for one officer to handle the situation unaided in a large city—the plan would be considerably improved by the appointment of several assistants.

"The licensing by the Boston School Committee of minors of school age to trade in the streets of Boston came about through an act of legislature in 1902. The need of supervision of minors licensed under this act became very apparent, as their numbers increased and their street influences reacting on their school life became better understood. To meet this need a supervisor of licensed minors was appointed whose duties are to secure the strict enforcement of the law, regulations governing the various forms of street work of children of school age, also to have general supervision of the details of the licensing department."^[147]

Human nature in children is not in the least unlike human nature in adults. Just as we need an interstate commerce commission backed by the federal government to supervise the large business affairs of men, so do we need a supervisor of children's commercial activities in city streets, clothed with authority by the municipal government.

The Boston plan is now being advocated for New York City: "In the street trades the Committee recommends that the principle of supervision of licensed minors, as practised for a number of years in Boston, be adopted, and that an office be created in the Department of Education that shall have supervisory control of all minors engaged in street trades. It recommends furthermore that the minimum age limit for licensing boys be raised from ten to fourteen years, and that the legal limit for selling at night be reduced from 10 to 8, to correspond more nearly with the provisions of labor legislation dealing with children in factories."^[148]

The first attempt to control the situation in New York City was intrusted to the police, but the results were not satisfactory, as they looked upon the matter with indifference. Subsequently the truant officers also were charged with this duty, and in 1908 four men were assigned to give their entire attention to this work between 3 P.M. and 11 P.M., and at present eight men are so engaged, but no very marked improvement is noticeable. In Rochester the enforcement of the state law was brought about through the efforts of the women of that city; both business women and shoppers were asked to consider themselves members of a vigilance committee and to notify the board of education and the police department by telephone whenever any violations of the law were observed upon the streets. Within five days so many complaints had been received that both the superintendent of schools and the president of the board of education arranged a meeting at which their attention was invited to the widespread disregard of the law. As a result, steps were taken at once to insure enforcement, and finally the board of education appointed one truant officer, and the commissioner of police detailed a policeman especially for the work of reporting violations.

In addition to providing an improved method of enforcement, efforts have been made in Boston to deal more effectively with the difficult problem of keeping street traders out of saloons, the licensing board having issued an order to all holders of liquor licenses to prohibit minors from loitering upon the licensed premises, more especially newsboys and messenger boys.

The efforts of the school committee to regulate street trading in Boston have been further supplemented by organizing a Newsboys' Republic, which is described as follows: "Perhaps the most important result of supervision so far has been the gradual introduction of a plan for self government among the licensed newsboys through the so-called Boston School Newsboys' Association. This association is pledged to the enforcement of the license rules and the suppression of smoking, gambling and other street vices, more or less common among the street boys of certain neighborhoods. The association is run by the boys themselves, through officers of their own choosing, consisting of one newsboy captain and two lieutenants for each school district; also a chief captain and general secretary and an executive board of seven elected from the ranks of the captains. The general duties of the captains and lieutenants are, first, to see that all licensed newsboys of their respective school districts live up to their license rules, and the principles of the association. Secondly, to see that all boys not licensed shall not interfere with or in any way hurt the business of the licensed newsboys. These duties are performed through weekly inspections on the street, supplemented by monthly inspection at schools, at which time branch meetings of all the boys in each district are frequently held."^[149]

CHAPTER IX

DEVELOPMENT OF STREET TRADES REGULATION IN EUROPE

Great Britain

Attention was called to the problem of street trading by children in England for the first time, in a comprehensive way, in 1897. A few close observers of social conditions noticed that the situation was so grave as to demand an immediate remedy, and accordingly, upon their initiative, an organization was effected for the purpose of studying the subject. This organization took the form of a private association known as the Committee on Wage-Earning Children. The committee conferred with the officers of the board of education and succeeded in arousing their interest to the extent of securing a promise for the collection of a return from the elementary schools of England and Wales concerning the labor of public school pupils, their ages, and other relevant information. In 1898, the House of Commons ordered this inquiry to be made, and in June of that year copies of a schedule were sent by the educational department to all the public elementary schools in England and Wales. Many schoolmasters misunderstood the meaning of this schedule and failed to report the children of their schools who were actually engaged in various forms of work outside of school hours. Only about half of the schedules were filled and returned, but these showed that 144,026 children were following some kind of gainful occupation in addition to attending school. Many schoolmasters reported pitiable cases of child exploitation, as, for example, the following: "Boys helping milkmen are up at 5 o'clock in the morning, whilst those selling papers are about the streets to a very late hour at night. During lessons many fall off to sleep, and if not asleep the effort to keep awake is truly painful both to boy and teacher. The educational time, as a consequence, is materially wasted."^[150] "These are sad cases, viz. one boy (aged eleven, in Standard III) works daily, as a grocer's errand boy, for 1s. 6d. a week, from 8 to 9 A.M., from 12 to 1.30 P.M., and from 4.30 to 7.30 P.M. On Saturday from 8 A.M. to 10 P.M. Another boy, aged ten in Standard III, works also as a grocer's errand boy for 1s. 6d. per week, from 8.30 to 9 A.M., from 12 to 1.30 and from 5 to 8 P.M., and on Saturday from 8.30 A.M. to 11 P.M." And all this in addition to twenty-seven and one half hours of school every week! A boy who works for 56-3/4 hours a week, selling papers, is employed as follows: "Monday to Friday, from 7 A.M. to 8.45 A.M., from 12 to 1 P.M., and from 4 to 10 P.M., and on Saturday from 7 A.M., to 10 A.M., from 12 to 2 P.M. and from 3 to 11 P.M." "This is a very bad case: called at 2 and 3 o'clock A.M., the boy (aged eight) is so tired that he is obliged to go to bed again, and is often absent from school, and made to work in the evening as well."^[151] Many schoolmasters also testified to the need of a remedy; one of these wrote on the schedule: "May I be allowed to express my gratitude to the education department for making this inquiry, and express the hope that the department will be able to frame some regulation to meet and relieve the onerous conditions under which many of the young have to gain education. Without exaggeration I can truthfully assert that there are to-day in our national and board schools thousands of little white slaves."^[152]

Nothing more came of the movement until January, 1901, when the Secretary of State for the Home Department appointed an interdepartmental committee "to inquire into the question of the employment of children during school age, and to report what alterations are desirable in the laws relating to child labour and school attendance and in the administration of these laws." After making careful investigation this committee declared: "In the case of street-trading children very strong powers of regulation are required. These children are exposed to the worst influences; they enter public houses to ply their trade, they are kept up late at night and exposed to inclement weather, and the precarious nature of their trade disinclines them to steady work, and encourages them to dissipate their earnings in gambling ... there should be power to prohibit street trading by children; to make regulations as to the age and sex of street traders, and the days and hours on which they may ply their trade; to grant licenses to those permitted to trade and to require the wearing of badges or uniforms; to forbid street traders to enter public houses or to importune or obstruct passengers; and generally to control their conduct and to cope with the evil in every reasonable way."^[153] The committee further reported: "Our main recommendation is that the overworking of children in those occupations which are still unregulated by law should be prevented by giving to the county and

borough councils a power to make labour by-laws; ... further we suggest that the gaps that may be left by local by-laws should be filled up by a general prohibition of night labour by children and of labour manifestly injurious to health."^[154] This committee reported that the number of children in England and Wales attending school and also in paid employment was far greater than as reported by the parliamentary return, estimating that the total number was no less than 300,000 in 1898.^[155]

One of the witnesses before this committee was a London truant officer of eighteen years' experience, who testified that every month he met with hundreds of cases of milk boys who "go to work at 5 A.M. and knock off at 8.30 and get to school at 9.45. At twelve they return to work, and after school at 4.30 they go again and wash up. The latest hour they work is about 8 P.M. I have frequently seen these children fast asleep in school. It is a common thing to see children of tender age outside the different theatres trying to sell newspapers at 11 o'clock at night. The percentage of cases in which this work is necessary is very small; it simply means that a little more money is spent in the public houses."^[156] The report of this committee contains a great mass of testimony from persons in many walks of life, nearly all of whom declared that street trading by children is bad and should be regulated. They differentiated between the hawking of articles in the streets and their delivery for employers, and one of the witnesses from Liverpool testified that the local regulation of street trading by children in that city did not apply to bootblacks nor to boys who carried parcels because they were not selling anything.^[157]

In 1902, an interdepartmental committee was appointed to study the subject in Ireland, and in its report stated: "The principal dangers to which they [street traders] are exposed are those arising from late hours in the streets, truancy, insufficient clothing, entering licensed premises to find sale for their goods, obstructing, annoying or importuning passengers, begging, fighting with other children, playing football or other games in the streets, using bad language, playing pitch and toss (a gambling game), smoking—all of which are matters of common observation, and have been testified to by many of the witnesses. In our opinion these evils can be lessened, if not entirely removed, by the simple system of regulation, licenses and badges."^[158]

The direct result of the reports of these committees was the passage by Parliament of the Employment of Children Act, 1903. Section 3 of this act provides, first, that no child under eleven years shall engage in street trading; second, no child under fourteen years shall be employed between 9 P.M. and 6 A.M.; third, no factory or workshop half-timer shall be employed in any other occupation; fourth, no child under fourteen years shall handle heavy weights likely to result in injury; fifth, no child under fourteen years shall engage in any injurious employment. Sections 1 and 2 of this act give to local authorities power to make by-laws regulating the employment of children. The provisions of Section 2 concerning street trading are in substance as follows: any local authority may make by-laws with respect to street trading by persons under the age of sixteen years and may prohibit such street trading subject to age, sex or the holding of a license; may regulate the conditions on which such licenses may be granted and revoked; may determine the days and hours during which and the places at which such street trading may be carried on; may require such street traders to wear badges and may regulate generally the conduct of such street traders; provided that the right to trade shall not be made subject to any conditions having reference to the poverty or general bad character of the person applying for this right, and provided also that the local authority shall have special regard to the desirability of preventing the employment of girls under sixteen years in streets and public places.

Section 2 b of the Prevention of Cruelty to Children Act, 1904, imposes a penalty upon *adults* who cause, procure or allow boys under fourteen or girls under sixteen to trade in the streets between 9 P.M. and 6 A.M.

An official report made in 1907 gives the names of all counties, boroughs and urban districts in Great Britain which had up to that time made by-laws to regulate street trading by children. In England and Wales, 2 counties, 60 cities and boroughs and 4 urban districts had done so; in Scotland, 3 burghs and the school board districts of 11 burghs and 12 parishes; and in Ireland, 4 cities and boroughs and 1 urban district had made such by-laws.^[159]

By 1910, out of 74 county boroughs in England and Wales, not less than 50 had made street-trading by-laws, and these included most of the larger places; but out of 191 smaller boroughs and smaller urban districts only 41 had done so; while among 62 administrative counties only 3 had made by-laws. In addition to these, 4 county boroughs and 2 of the smaller boroughs had made street-trading by-laws under local acts.

In Scotland, of the 33 county councils empowered to make by-laws, not one had done so by 1910; while of 56 burghs only 3 had passed by-laws; of 979 school boards only 27 had made such regulations. Edinburgh passed by-

laws under a private act.

In Ireland, out of 33 county councils not one had made by-laws; of the 43 councils of urban districts with a population of over 5000, only 5 had passed regulations.

In 1909 the Secretary of State for the Home Department appointed a departmental committee to inquire into the operation of the Employment of Children Act, 1903, and to consider whether any and what further legislative regulation or restriction was required in respect of street trading and other employments dealt with in that act. This committee confined its report, which was submitted in 1910, to the subject of street trading; and its great contribution to the cause of child welfare is its recommendation that street trading should be *prohibited* rather than regulated. The statute of 1903 prohibits all work by children under the age of eleven years, and its restrictions on street employment by children above that limit, out of school hours, are prohibitions of *night* work after nine o'clock, consequently a child above the age of eleven years who engages in street trading is restrained, during the day, only by such by-laws as may have been adopted by the local authority. The committee found that even in communities where by-laws had been adopted they were not always observed, and also that where no by-laws had been passed the minimum statutory restrictions were frequently ignored. The report declared that: "A considerable amount of street trading is still done by children under eleven. Special censuses taken in Edinburgh revealed the fact that children as young as seven were trading in the streets. The great bulk of the evidence received in and from Scotland points to the conclusion that the Act [of 1903] has been almost a dead-letter in that country.... Infringements of the Act in Ireland are no less common. In Waterford newspapers are sold by children of nine years old up to 11 P.M. and later."^[160] The issuance of licenses and badges was denounced as giving the stamp of official approval to what is recognized as an evil, the adoption of by-laws resulting merely in a partial improvement of conditions even when rigorously enforced.

After having devoted several months to the inquiry, during which evidence was gathered in London, Manchester, Edinburgh, Glasgow, Dublin, Belfast, Birmingham and Liverpool in addition to receiving the testimony of witnesses from Sheffield, Nottingham, Bolton and other centers, the committee made this very noteworthy and significant declaration: "We have come to the conclusion ... that the effect of street trading upon the character of those who engage in it is only too frequently disastrous. The youthful street trader is exposed to many of the worst of moral risks; he associates with, and acquires the habits of, the frequenters of the kerbstone and the gutter. If a match seller, he is likely to become a beggar—if a newspaper seller, a gambler; the evidence before us was extraordinarily strong as to the extent to which begging prevails among the boy vendors of evening papers. There was an almost equally strong body of testimony to the effect that, at any rate in crowded centres of population, street trading tends to produce a dislike or disability for more regular employment; the child finds that for a few years money is easily earned without discipline or special skill; and the occupation is one which sharpens the wits without developing the intelligence. It leads to nothing practically, and in no way helps him to a future career. There can be no doubt that large numbers of those who were once street traders drift into vagrancy and crime.... Much evidence was given to the effect that the practice of street trading, even though only carried on in the intervals of school attendance, tends to produce a restless disposition, and a dislike of restraint which makes children unwilling to settle down to any regular employment. So far as girls are concerned, there must be added to the above evils an unquestionable danger to morals in the narrower sense. The evidence presented to us on this point was unanimous and most emphatic. Again and again persons specially qualified to speak, assured us that, when a girl took up street trading, she almost invariably was taking a first step toward a life of immorality. The statement that the temptations are great, and the children practically defenseless, needs no amplification. An occupation entailing such perils is indisputably unfit for girls."^[161]

The need for *prohibition* of street trading was realized by this committee, the change being urged in the following epoch-making statement: "After carefully considering the operation of the by-laws adopted since 1903, and comparing the present state of affairs with that existing before the passing of the act, we have come to the conclusion that the difficulties of the situation cannot be said to have been met, or any substantial contribution to a solution of the problem made, by the existing law and the machinery set up for its enforcement. Regulation, however well organized and complete, will not turn a wasteful and uneconomic use of the energies of children into a system which is beneficial to the community. Consequently we feel that we have no choice but to recommend the complete statutory prohibition of street trading either by boys or by girls up to a specific age. In the case of boys we feel that it would be wise to name an age which would render it likely that they would have had full opportunities of taking to regular work before they could legally trade in the streets. We think the most suitable age

would be seventeen, which gives an interval of three or four years after the ordinary time of leaving an elementary school.... So far as girls are concerned, we feel that the arguments in favor of prohibiting trading increase rather than diminish in force as the age of the traders advances. The entire body of testimony laid before us has forced upon us the conclusion that street trading by girls is entirely indefensible, and that no system of regulation is sufficient to rid the employment of its risks and objections. On the other hand, we have not been able to discover any trace of hardship having resulted in any of those towns in which by-laws have prohibited trading by girls, or have restricted the ages during which trading is permitted. We think that the age of prohibition should be higher for girls than for boys, and, while we feel that it should, in any event, not be less than eighteen, we should be willing to see it fixed as high as twenty-one."^[162]

As to the administration of the law, the committee declared that this should be delivered into the hands of the education authorities who could charge the regular truant officers with the work of enforcement or employ special officers for the purpose. The placing of responsibility upon the parents of child offenders was indorsed, but the committee criticised administrators because of the small penalties imposed as fines, the amounts being easily covered by the earnings of the traders, and hence an increase of the maximum fine was recommended.

A minority report was submitted by four members of this committee who declined to support the recommendation of the majority that street trading should be immediately and universally prohibited in the case of boys up to the age of seventeen. These members held that the cause of street trading should first be removed by organizing employment bureaus for children, by giving the children the benefit of vocational direction, and by promoting industrial education for boys both while attending the elementary schools and after.

Liverpool

As to local efforts to regulate the street-trading evil, the first steps were taken in Liverpool. In this city the condition of child street traders was particularly bad; half of them were girls, and the stock in trade was usually newspapers and matches—the children were dirty, ragged and running the streets at all hours of the night, the apparent trade in newspapers and other articles being frequently used to cover up much worse things; in fact, many of the girls were practically prostitutes. Quite a number of these children were nothing more or less than beggars, and deliberately appeared in ragged clothing for the purpose of exciting sympathy. A local association undertook to supply them with clothing, but many refused this aid "because it would interfere with their trade." Commenting on similar practices among the street traders of Dublin, Sir Lambert H. Ormsby, M.D., said in 1904: "They sell other things besides ... matches principally. Of course the selling of matches is merely a means of evading being taken up by the police for begging. The matches are only humbug; they do not want to sell them ... they do it for begging purposes."^[163] In 1897 the Liverpool Watch Committee appointed a subcommittee to consider the question of children trading in streets, and this subcommittee reported that: "The practice is attended, first, with injury to the health of the children; second, with interference with the education of such as are of school age; third, with danger to the moral welfare of the children inasmuch as the practice frequently leads to street gambling, begging, sleeping out and other undesirable practices, and in some cases to crime." They were of opinion—in which the inspector of reformatories concurred—that much of the money earned by the children went to indulge the vicious and intemperate propensities of parents and guardians.

By the Liverpool Corporation Act, 1898, Parliament gave the city power to regulate street trading by children, and accordingly the following provisions were made by the city council: (1) no licenses to any child under eleven; (2) boys eleven to thirteen and girls eleven to fifteen inclusive, to be licensed if not mentally or physically deficient, with consent of parent or guardian; (3) licenses good one year; (4) badges also to be issued; (5) no charge for license or badge; (6) licenses may be revoked by Watch Committee for cause; (7) no licensed child to trade after 9 P.M., nor unless decently clothed, nor without badge, nor in streets during school hours unless exempted from school attendance, and no licensed child may alter or dispose of badge, or enter public houses to trade, or importune passengers. These regulations took effect May 31, 1899, and marked the formal beginning of the movement against street trading by children.

In 1901 the Liverpool subcommittee reported that it was "of opinion that the application of the powers conferred by the Act has had the effect of greatly reducing the number of children trading in the streets, especially during

school hours and late in the evenings, and of improving the condition, appearance, and behaviour of those children who still engage in street trading." This subcommittee recommended raising the boys' age limit for licenses from fourteen to sixteen years, and was inclined to advise the total prohibition of street trading by girls.^[164]

London

Under the powers conferred on local authorities by the Employment of Children Act 1903, the London County Council framed in February, 1905, a set of by-laws, the provisions of which seemed quite innocuous. Nevertheless a considerable outcry was raised by persons whom they would affect, and thereupon the Secretary of State withheld his confirmation and authorized Mr. Chester Jones to hold an inquiry at which complaints could be heard as well as arguments in favor of the by-laws. This inquiry was held in June and July of 1905, and schoolmasters, attendance officers, police inspectors, news agents and others testified. Mr. Jones held that it was his duty "to endeavour to discover where the line should be drawn, and that it was not open to argument either that child labour should entirely be prohibited or that it should be unregulated."^[165]

In his report Mr. Jones took up each by-law separately and discussed it, recommending that it be either confirmed or rejected in accordance with his findings. He also drafted a set of by-laws and submitted them with the recommendation that they be adopted instead of the ones originally passed by the London County Council. Referring to these, he says: "An important respect in which my suggested by-laws differ from the County Council by-laws is in differentiating between employment in connection with street stalls and other forms of street trading. It seemed to be the general opinion [of witnesses] that the former employment, being under the supervision of some adult person, probably the parent, is not so harmful in its effects on the morals of the child as the latter, and it must be remembered that the main objection to street trading was on the ground rather of its affecting the morality than the health and education of the children."^[166] The regulations drafted by Mr. Jones were not even so drastic as those proposed by the London County Council, and in recommending milder restrictions Mr. Jones says: "A set of by-laws should not err upon the side of overstringency, nor should they be in advance of public opinion; the first, because taking a step more or less in the dark might cause hardships impossible to avoid, and the second, because any by-laws of this sort, being most difficult of enforcement, will certainly be evaded unless backed up by the weight of public opinion."^[167]

The County Council, however, did not follow Mr. Jones's recommendations in their entirety, but adopted a more stringent set of by-laws which were put in force in October, 1906. In December, 1909, the County Council again amended the by-laws, and an inquiry relative to these changes was held by Mr. Stanley Owen Buckmaster in October, 1910. Mr. Buckmaster recommended a number of changes of minor importance which were adopted by the Council, and accordingly the new by-laws were adopted and took effect on June 3, 1911. This set of by-laws will be found in the Appendix, page 264. The most significant feature which they present is the raising of the age limit for boys to fourteen years and for girls to sixteen years without exemption. The old by-laws prohibited street trading by children under sixteen years between the hours of 9 P.M. and 6 A.M., and this provision was retained in the new by-laws, applying, however, only to boys, inasmuch as girls under that age are prohibited from trading in the streets at any time. These London by-laws on street trading are identical with the provisions of the most advanced American child labor laws on factory employment, and consequently they blaze the way for the application of these provisions in the United States to street trading as well as to employment in factories, mills and mines.

Manchester

Although the British departmental committee of 1910 was not favorably impressed by the results of regulation as a cure for the evils of street trading, nevertheless it gave due credit to the city of Manchester for what had been accomplished there under the license system. Referring to this city, the report says: "In Manchester such good results as can be arrived at by the method of regulation were, perhaps, more apparent than anywhere else. In that city the entire evidence testified to the fact that the regulation of street trading is very highly organized; a special

staff of selected, plain-clothes officers, giving their whole time to the work, knowing the traders personally, visiting the homes, advising the parents, clothing the children and apparently exerting a most beneficial influence. All that can be done through the instrument of regulation seems to be done there, the various authorities working together to that end."^[168]

An English writer says that regulation in Manchester "has greatly improved the conditions of the newspaper boys and others who earned their living by hawking goods in the streets. It is something to the good at any rate that a boy should be compelled to be decently dressed and so avoid the obvious temptation of appealing to the sympathies of the public by the picturesque raggedness of his clothing. At the same time one cannot help feeling that halfway legislation of this sort is only playing with the problem and that the only really satisfactory law would be one which prohibited street trading by children altogether."^[169]

New South Wales

The British Colony of New South Wales has adopted some mild restrictions under the Employment of Children Act, 1903, and the president of the State Children Relief Board for New South Wales states in his report for the year ending April 5, 1910, that "the Board is not favorably impressed with the principle of street trading by juveniles, realizing that even under the most careful administration children, when once licensed to engage in street trading, are exposed to great temptations."

Canada

The province of Manitoba, Canada, forbids children under twelve years from trading in the streets at any time; licenses are issued to boys twelve to sixteen years old, who are not allowed to sell after 9 P.M. Some boys have been denied licenses because of their poor school record, others because of lack of proof as to age, others on account of not being physically qualified, and still others because there was no need for their earning money in this way. The licensed boys are kept under supervision; their attendance at school is watched; and if they persist in selling after 9 P.M. or disobey instructions, their licenses are revoked.^[170]

Germany

The Industrial Code of Germany prohibits children under fourteen years from offering goods for sale on public roads, streets or places, and peddling them from house to house. In localities in which such sale or peddling is customary, the local police authorities may permit it for certain periods of time not exceeding a total of four weeks in any calendar year. "Under this provision there was considerable street trading, especially in the larger cities. In Berlin, for instance, during the weeks preceding Christmas, numerous children under fourteen were thus employed. Protests against the practice were made by the Consumers' League and similar organizations, and resulted in the passage of a police regulation, for its restriction; and in 1909 a further step was taken by providing that no exceptions of this sort be thereafter permitted, so that now the employment of children under fourteen years of age in street trading is absolutely forbidden in Berlin."^[171]

The Industrial Code forbids children under twelve years to deliver goods or perform other errands except for their own parents. Children over twelve years may so engage for not more than three hours daily between 8 A.M. and 8 P.M., but not before morning school nor during the noon recess nor until one hour after school has closed in the afternoon; on Sundays and holidays such children may do this work only for two hours between 8 A.M. and 1 P.M., but not during the principal church service or the half hour preceding it. Such children must first obtain the *Arbeitskarte* from the local police authority, which is issued upon request of the child's legal representative. Employers must notify the police authority in advance of the employment of such children.

France

The labor of children in France is regulated by the law of November 2, 1892, as amended by the act of March 30, 1900. This law applies to factories, workshops, mines and quarries, exempting home industries, agricultural work and purely mercantile establishments.^[172] The work of children in city streets is not even mentioned. New legislation has recently been proposed to regulate the employment of minors under 18 years of age and of women in the sale of merchandise from stands and tables on sidewalks outside of bazaars and large stores. According to its provisions, the work of such persons would be prohibited for more than two hours at a time and for more than six hours a day, while seats and heating facilities would have to be supplied the same as for employees inside the large establishments.^[173]

In Paris, newspapers are sold almost exclusively at kiosks on street corners, presided over by middle-aged women.

CONCLUSION

Many years ago Macaulay declared, "Intense labor, beginning too early in life, continued too long every day, stunting the growth of the mind, leaving no time for healthful exercise, no time for intellectual culture, must impair all those high qualities that have made our country great. Your overworked boys will become a feeble and ignoble race of men, the parents of a more feeble progeny; nor will it be long before the deterioration of the laborer will injuriously affect those very interests to which his physical and moral interests have been sacrificed. If ever we are forced to yield the foremost place among commercial nations, we shall yield it to some people preëminently vigorous in body and in mind." To-day these words seem to us a veritable prophecy—but we must not forget that they apply to America no less than to England. If our civilization is to continue and to improve with time, every child must have a proper opportunity to grow under conditions as nearly normal as possible; we must secure to the children their birthright—the right to play and to dream, the right to healthful sleep, the right to education and training, the right to grow into manhood and into womanhood with cleanness and strength both of body and of mind, the right of a chance to become useful citizens of the future. Eternal vigilance is the price of protection for childhood, and while "Women and children first" is a rigid law of the sea, "Children first" is the fundamental law both of Nature and civilization.

FOOTNOTES:

- [1] Wisconsin Statutes, Section 1728 p., Laws of 1911.
- [2] Report of Interdepartmental Committee on the Employment of Children during School Age in Ireland, 1902, Minutes of Evidence, Q. 71. Cf. also Great Britain—Employment of Children Act, 1903, Section 13.
- [3] *The Newsboy*, Pittsburgh, April, 1909.
- [4] Great Britain—Report of Interdepartmental Committee on Employment of School Children, 1901, pp. 18, 19.
- [5] Scott Nearing, "The Newsboy at Night in Philadelphia," *Charities and The Commons*, February 2, 1906.
- [6] "The Child in the City," Handbook of Chicago Child Welfare Exhibit, 1911, p. 25.
- [7] "A Plea to Take the Small Boy and Girl from the City Streets," a folder issued by Chicago Board of Education and a committee representing local organizations, 1911.
- [8] Pamphlet 114 of National Child Labor Committee, p. 8.
- [9] Elizabeth C. Watson, "New York Newsboys and their Work," 1911.
- [10] *The Survey*, April 22, 1911, p. 138.
- [11] "Studies of Boy Life in Our Cities (England)," edited by E. J. Urwick, 1904, p. 296.
- [12] Report of Interdepartmental Committee on the Employment of Children during School Age in Ireland, 1902, p. vii.
- [13] Twelfth Census of United States, Vol. II, Population, Part II, p. 506.
- [14] Twelfth Census of United States, Special Reports, Occupations, 1904, pp. xxiv, cxxxiii.
- [15] *Idem*, pp. xxiii, cxxxiii.
- [16] Twelfth Census of United States, 1900, Vol. VII, p. cxxv.
- [17] Instructions to Enumerators, Thirteenth Census of the United States, pp. 32-34.
- [18] These tables were copied from charts displayed at the Chicago Child Welfare Exhibit, May, 1911.
- [19] "The Child in the City," Handbook of the Child Welfare Exhibit, Chicago, May 11-25, 1911, p. 25.
- [20] *Idem*, p. 25.
- [21] "The Social Evil in Chicago," by the Vice Commission of Chicago, 1911, pp. 241-242.
- [22] "A Plea to take the Small Boy and the Girl from the City Streets," by the Chicago Board of Education and a committee representing local organizations, 1911.
- [23] Elizabeth C. Watson, "New York Newsboys and their Work," 1911.
- [24] Abstract of Immigration Commission's Report on the Greek Padrone System in the United States, 1911, p. 9.
- [25] A more detailed presentation of this matter will be found in [Chapter IV](#).
- [26] Immigration Commission's Report, p. 9.
- [27] Elementary Schools (Children working for Wages), House of Commons Papers, 1899, No. 205, p. 17.
- [28] *Idem*, p. 21.
- [29] *Idem*, p. 17.
- [30] Elementary Schools (Children working for Wages), House of Commons Papers, 1899, No. 205, p. 25.
- [31] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, p. 8.
- [32] *Idem*, p. 9.
- [33] *Idem*, p. 10.
- [34] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, p. 18.
- [35] *Idem*, p. 16.
- [36] Robert H. Sherard, "Child Slaves of Britain," 1905, p. 178.
- [37] Report of President of State Children Relief Board of New South Wales for year ending April 5, 1910, pp. 39-40.
- [38] Vierteljahrshäfte des Kaiserlichen Statistischen Amts, 1900, Heft III, p. 97. See also Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, App. 3, p. 294.
- [39] Bulletin 89 of United States Bureau of Labor, 1910, p. 84.
- [40] Bulletin 89 of United States Bureau of Labor, 1910, p. 56.
- [41] *Idem*, p. 63.
- [42] *Idem*, p. 65.
- [43] *The Hustler*, organ of Boston Newsboys' Club, February, 1911.
- [44] Report of the Newsboys' Home Association of Washington, D.C., 1863-1864, p. 7.
- [45] "The Education, Earnings and Social Condition of Boys Engaged in Street Trading in Manchester," by E. T. Campagnac and C. E. B. Russell; Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, App. 45, pp. 456-457.
- [46] Handbook of New York Child Welfare Exhibit, 1911, p. 33.
- [47] "Child Labor on the Street," *The Newsboy*, leaflet of New York Child Labor Committee, 1907.
- [48] Report of Newsboys' and Children's Aid Society of Washington, D.C., 1889, p. 10.
- [49] "The Education, Earnings and Social Condition of Boys Engaged in Street Trading in Manchester," by Campagnac and Russell, 1901.
- [50] Child Labor at the National Capital, an address delivered in Washington, December, 1905, Pamphlet 23 of National Child Labor Committee.
- [51] Mary E. McDowell, Pamphlet 114 of National Child Labor Committee, pp. 6-7.
- [52] "The Social Evil in Chicago" by the Vice Commission of Chicago, 1911, p. 242.
- [53] Miss Todd, Pamphlet 114 of National Child Labor Committee, p. 12.
- [54] National Child Labor Committee, Pamphlet 114, p. 12.
- [55] Great Britain, Minutes of Evidence Taken Before Departmental Committee on Employment of Children Act, 1903, 1910, Q. 9724.
- [56] Bulletin 89 of United States Bureau of Labor, 1910, p. 46.

- [57] *Charities and The Commons*, February 2, 1906.
- [58] "Some Ethical Gains through Legislation," 1905, p. 12.
- [59] "Child Labor on the Street," *The Newsboy*, leaflet of New York Child Labor Committee, 1907.
- [60] "Children in American Street Trades," 1905, Pamphlet 14 of National Child Labor Committee.
- [61] *Charities and The Commons*, February 2, 1906.
- [62] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, p. 23.
- [63] Great Britain, Minutes of Evidence Taken before Departmental Committee on Employment of Children Act, 1903, 1910, Q. 1837 *et seq.*
- [64] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 13.
- [65] George A. Hall, "The Newsboy," in Proceedings of Seventh Annual Meeting of National Child Labor Committee, 1911, p. 102.
- [66] School Document, No. 14, 1910, Boston Public Schools, pp. 42-44.
- [67] Report of New York-New Jersey Committee of the North American Civic League for Immigrants, December, 1909-March, 1911, pp. 33-34.
- [68] Abstract of Immigration Commission's Report on the Greek Padrone System in United States, 1911, p. 10.
- [69] Abstract of Report on Greek Padrone System in United States, by Immigration Commission, 1911, p. 22.
- [70] *Survey*, Vol. XXVI, p. 591.
- [71] School Document, No. 10, 1910, Boston Public Schools, p. 133.
- [72] "The Social Evil in Chicago," by the Vice Commission of Chicago, 1911, p. 242.
- [73] "Child Labor at the National Capital," an address delivered in Washington, December, 1905, Pamphlet 23 of National Child Labor Committee.
- [74] "The Social Evil in Chicago," by the Vice Commission of Chicago, 1911, p. 244.
- [75] Bulletin 69 of Bureau of Census, "Child Labor in the United States," 1907, p. 170.
- [76] Robert H. Sherard, "Child Slaves of Britain," p. 179.
- [77] Great Britain, Report of Interdepartmental Committee on Physical Deterioration, 1904, Vol. II, Q. 10,440.
- [78] J. G. Cloete, "The Boy and his Work" in "Studies of Boy Life in Our Cities," edited by E. J. Urwick (England), 1904, p. 121.
- [79] E. J. Urwick, "Studies of Boy Life in Our Cities" (England), 1904, p. 305.
- [80] "Some Ethical Gains through Legislation," 1905, p. 15.
- [81] Victor S. Clark, "Women and Child Wage Earners in Great Britain," Bulletin 80, United States Bureau of Labor, p. 28.
- [82] "Newsboy Life—What Superintendents of Reformatories and Others think about its Effects," Leaflet No. 32 of National Child Labor Committee, 1910.
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- [84] Elizabeth C. Watson, "New York Newsboys and their Work," 1911.
- [85] Scott Nearing, "The Newsboy at Night in Philadelphia," *Charities and The Commons*, February 2, 1906.
- [86] John Spargo, "Bitter Cry of the Children," 1906, p. 184.
- [87] James L. Fieser, "Causes of Truancy," Indiana Bulletin of Charities and Correction, June, 1910, p. 227.
- [88] James A. Britton, M.D., "Child Labor and the Juvenile Court," Pamphlet 95 of National Child Labor Committee, 1909.
- [89] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 12.
- [90] Mrs. Louise B. More, "Wage-Earners' Budgets," 1907, p. 148.
- [91] J. G. Cloete, "The Boy and his Work" in "Studies of Boy Life in Our Cities (England)," edited by E. J. Urwick, 1904, p. 131.
- [92] *Idem*, p. 135.
- [93] E. J. Urwick, "Studies of Boy Life in Our Cities," 1904, p. 307.
- [94] *Idem*, p. 309.
- [95] Robert H. Sherard, "Child Slaves of Britain," 1905, pp. 179-180.
- [96] Constance Smith, Report on the Employment of Children in the United Kingdom, 1909, p. 11.
- [97] Margaret Alden, M.D., "Child Life and Labour," 1908, p. 118.
- [98] Great Britain, Report of Interdepartmental Committee on Physical Deterioration, 1904, Vol. I, paragraph 68.
- [99] *Idem*, Vol. II, Q. 2453.
- [100] *Idem*, Vol. II, Q. 2479.
- [101] Great Britain, Minutes of Evidence taken before Departmental Committee on Employment of Children Act, 1903, 1910, Q. 9503 *et seq.*
- [102] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, App. 39, p. 418.
- [103] Copied from Charts in Child Labor Exhibit at National Conference of Charities and Correction, St. Louis, May, 1910.
- [104] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, p. 11.
- [105] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, 1910, p. 12.
- [106] Elizabeth C. Watson, "New York Newsboys and their Work," 1911.
- [107] "Child Labor on the Street," leaflet of New York Child Labor Committee, *The Newsboy*, 1907.
- [108] "The Education, Earnings and Social Condition of Boys Engaged in Street Trading in Manchester," by Campagnac and Russell, 1901.
- [109] Report of Interdepartmental Committee on Employment of Children during School Age in Ireland, 1902, Q. 3862.
- [110] Report of the Board of Education of the Toledo City School District, 1910-1911, p. 141.
- [111] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session.
- [112] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 39.
- [113] *Idem*, p. 42.
- [114] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 44.
- [115] *Idem*, p. 59.
- [116] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 62.

- [117] *Idem*, p. 69.
- [118] *Idem*, p. 71.
- [119] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 73.
- [120] *Idem*, p. 84.
- [121] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 86.
- [122] *Idem*, p. 87.
- [123] *Idem*, p. 90.
- [124] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 91.
- [125] *Idem*, p. 92.
- [126] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 105.
- [127] Includes 17 in bowling alleys and pool rooms and 23 in theaters and other places of amusement.
- [128] Includes 2 in boarding houses, 26 home workers (precise character of work not specified), 10 in restaurants, and 12 in private families.
- [129] Includes 26 bootblacks and 320 newsboys.
- [130] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 106.
- [131] *Idem*, pp. 106-107.
- [132] "Juvenile Delinquency and its Relation to Employment," Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, Senate Document No. 645, 61st Congress, 2d Session, p. 108.
- [133] *Idem*, pp. 116-117.
- [134] *Idem*, p. 134.
- [135] Davis Wasgatt Clark, "American Child and Moloch of To-day," 1907, p. 40.
- [136] George B. Mangold, "Child Problems," 1910, p. 232.
- [137] James A. Britton, M.D., "Child Labor and the Juvenile Court," Pamphlet 95 of National Child Labor Committee, 1909.
- [138] Vol. VIII of Report on Condition of Woman and Child Wage Earners in the United States, 1911, p. 22.
- [139] E. J. Urwick, "Studies of Boy Life in Our Cities (England)," 1904, p. 304.
- [140] Bulletin 81, United States Bureau of Labor, p. 416.
- [141] Great Britain, Report of Departmental Committee on the Employment of Children Act, 1903, submitted in 1910, p. 9.
- [142] "A Plea to take the Small Boy and the Girl from the City Streets," by the Chicago Board of Education and a committee representing local organizations, 1911.
- [143] Report on Bylaws made by London County Council under Employment of Children Act, 1903, by Chester Jones, 1906, pp. 24-27.
- [144] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, App. 33, p. 403.
- [145] Report of Interdepartmental Committee on the Employment of Children during School Age in Ireland, 1902, p. vii.
- [146] "Street Trades," in Proceedings of Seventh Annual Meeting of National Child Labor Committee, 1911, p. 108.
- [147] School Document No. 15, 1909, Boston Public Schools, pp. 34-35.
- [148] Committee on Work and Wages, Handbook of New York Child Welfare Exhibit, 1911, p. 33.
- [149] School Document No. 15, 1909, Boston Public Schools, p. 36.
- [150] Elementary Schools (Children Working for Wages), House of Commons Paper, 1899, No. 205, p. 14.
- [151] Elementary Schools (Children Working for Wages), House of Commons Paper, 1899, No. 205, pp. 26-27.
- [152] *Idem*, p. 16.
- [153] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, pp. 20-21.
- [154] *Idem*, p. 24.
- [155] *Idem*, p. 9.
- [156] *Idem*, Q. 1123.
- [157] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, Q. 7203.
- [158] Great Britain, Report of Interdepartmental Committee on the Employment of Children during School Age in Ireland, 1902, p. 6.
- [159] Great Britain, Return of Local Authorities which have made By-laws under the Employment of Children Act, 1903, 1907.
- [160] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 7.
- [161] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 11.
- [162] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 13.
- [163] Great Britain, Report of Interdepartmental Committee on Physical Deterioration, 1904, Vol. II, Q. 12757-12759.
- [164] Great Britain, Report of Interdepartmental Committee on Employment of School Children, 1901, App. 37, pp. 415-416.
- [165] Report on the By-laws made by the London County Council under the Employment of Children Act, 1903, by Chester Jones, 1906, p. 5.
- [166] *Idem*, p. 16.
- [167] *Idem*, p. 15.
- [168] Great Britain, Report of Departmental Committee on Employment of Children Act, 1903, submitted in 1910, p. 9.
- [169] J. G. Cloete, "The Boy and his Work" in "Studies of Boy Life in our Cities," 1904, p. 131.
- [170] "Citizens in the Making," Annual Report of Superintendent of Neglected Children for Province of Manitoba, Canada, 1910, pp. 31-34.
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APPENDICES

APPENDIX A LAWS

The law of Wisconsin relative to street trading, as amended in 1911, is given below in its entirety, because it is the most advanced law of its kind in the United States.

Wisconsin

SECTION 1728 p. The term "street trade," as used in this act, shall mean any business or occupation in which any street, alley, court, square or other public place is used for the sale, display or offering for sale of any articles, goods or merchandise. No boy under the age of twelve years, and no girl under the age of eighteen years, shall in any city of the first class distribute, sell or expose or offer for sale newspapers, magazines or periodicals in any street or public place.

SECTION 1728 q. No boy under fourteen years of age, shall, in any city of the first class, work at any time, or be employed or permitted to work at any time, as a bootblack or in any other street trade, or shall sell or offer any goods or merchandise for sale or distribute hand bills or circulars or any other articles, except newspapers, magazines or periodicals as hereinafter provided.

SECTION 1728 r. No girl under eighteen years of age shall, in any city of the first class, work at any time, or be employed or permitted to work at any time, as a bootblack or at any other street trades or in the sale or distribution of hand bills or circulars or any other articles upon the street or from house to house.

SECTION 1728 s. No boy under sixteen years of age shall, in any city of the first class, distribute, sell or expose or offer for sale any newspapers, magazines or periodicals in any street or public place or work as a bootblack, or in any other street or public trade or sell or offer for sale or distribute any hand bills or other articles, unless he complies with all the legal requirements concerning school attendance, and unless a permit and badge, as hereinafter provided, shall have been issued to him by the state factory inspector. No such permit and badge shall be issued until the officer issuing the same shall have received an application in writing therefor, signed by the parent or guardian or other person having the custody of the child, desiring such permit and badge, and until such officer shall have received, examined and placed on file the written statement of the principal or chief executive officer of the public, private or parochial school, which the said child is attending, stating that such child is an attendant at such school with the grade such child shall have attained, and provided that no such permit and badge shall be issued, unless such officer issuing it is satisfied that such child is mentally and physically able to do such work besides his regular school work as required by law.

SECTION 1728 t. Before any such permit is issued, the state factory inspector shall demand and be furnished with proof of such child's age by the production of a verified baptismal certificate or a duly attested birth certificate, or, in case such certificates cannot be secured, by the record of age stated in the first school enrollment of such child. Whenever it appears that a permit was obtained by wrong or false statements as to any child's age, the officer who granted such permit shall forthwith revoke the same. After having received, examined and placed on file such papers, the officer shall issue to the child a permit and badge. The principal or chief executive officer of schools, in which children under fourteen years of age are pupils, shall keep a complete list of all children in their school to whom a permit and badge has been issued, as herein provided.

SECTION 1728 u. Such permit shall state the place and date of birth of the child, the name and address of its parents, guardian, custodian or next friend, as the case may be, and describe the color of hair and eyes, the height and weight and any distinguishing facial marks of such child, and shall further state that the papers required by the preceding section have been duly examined and filed; and that the child named in such permit has appeared before the officer issuing the permit. The badge furnished by the officer issuing the permit shall bear on its face a number corresponding to the number of the permit, and the name of the child. Every such permit, and every such badge on its reverse side, shall be signed in the presence of the officer issuing the same by the child in whose name it is issued. Provided, that in case of carrier boys working on salary for newspaper publishers delivering papers, a card of identification shall be issued to such carriers by the factory inspector, which they shall carry on their person, and exhibit to any officer authorized under this act, who may accost them for a disclosure of their right to serve as such carriers.

SECTION 1728 v. The badge provided for herein shall be such as the state factory inspector shall designate, and shall be worn conspicuously in sight at all times in such position as may be designated by the said factory inspector by such child while so working. No child to whom such permit and badge or identification card are issued shall transfer the same to any other person.

SECTION 1728 w. No boy under fourteen years of age shall, in any city of the first class, sell, expose or offer for sale any newspapers, magazines or periodicals after the hour of six-thirty o'clock in the evening, between the first day of October and the first day of April, nor after seven-thirty o'clock in the evening between the first day of April and the first day of October, or before five o'clock in the morning; and no child under sixteen years of age shall distribute, sell, expose or offer for sale any newspapers, magazines or periodicals or shall work as a bootblack or in any street or public trades or distribute hand bills or shall be employed or permitted to work in the distribution or sale or exposing or offering for sale of any newspapers, magazines or periodicals or as a bootblack or in other street or public trades or in the distribution of hand bills during the hours when the public schools of the city where such child shall reside are in session. Provided, that any

boy between the ages of fourteen and sixteen years, who is complying and shall continue to comply with all the legal requirements concerning school attendance, and who is mentally and physically able to do such delivery besides his regular school work, shall be authorized to deliver newspapers between the hours of four and six in the morning.

SECTION 1728 x. The commissioner of labor or any factory inspector acting under his direction shall enforce the provisions of this law, and he is hereby vested with all powers requisite therefor.

SECTION 1728 y. The permit of any child, who in any city of the first class distributes, sells or offers for sale any newspapers, magazines or periodicals in any street or public place or works as a bootblack or in any other street trade, or sells or offers for sale or distributes any hand bills or other articles in violation of the provisions of this act, or who becomes delinquent or fails to comply with all the legal requirements concerning school attendances shall forthwith be revoked for a period of six months and his badge taken from said child. The refusal of any child to surrender such permit, and the distribution, sale or offering for sale of newspapers, magazines or periodicals or any goods or merchandise, or the working by such child as a bootblack or in any other street or public trade, or in distributing hand bills or other articles, after notice, by any officer authorized to grant permits under this law of the revocation of such permit and a demand for the return of the badge, shall be deemed a violation of this act. The permit of said child may also be revoked by the officer who issued such permit, and the badge taken from such child, upon the complaint of any police officer or other attendance officer or probation officer of a juvenile court, and such child shall surrender his permit and badge upon the demand of any police officer, truancy or other attendance officer or probation officer of a juvenile court or other officer charged with the duty of enforcing this act. In case of a second violation of this act by any child, he shall be brought before the juvenile court, if there shall be any juvenile court in the city where such child resides, or, if not, before any court or magistrate having jurisdiction of offenses committed by minors and be dealt with according to law.

SECTION 1728 z. Any parent or other person who employs a minor under the age of sixteen years in peddling without a license or who, having the

care or custody of such minor, suffers or permits the child to engage in such employment, or to violate sections 1728 p to 1728 za, inclusive, shall be punished by a fine not to exceed one hundred dollars nor less than twenty-five dollars, or by commitment to the county jail for not more than sixty days or less than ten days.

SECTION 1728 za. Providing that no badge shall be issued for a boy selling papers between the ages of twelve and sixteen years by the state factory inspector, except upon certificate of the principal of either public, parochial or other private school attended by said boy, stating and setting forth that said boy is a regular attendant upon said school. No boy under the age of sixteen years shall be permitted by any newspaper publisher or printer or persons having for sale newspapers or periodicals of any character, to loiter or remain around any salesroom, assembly room, circulation room or office for the sale of newspapers, between the hours of nine in the forenoon and three in the afternoon, on days when school is in session. Any newspaper publisher, printer, circulation agent or seller of newspapers shall upon conviction for permitting newsboys to loiter or hang around any assembly room, circulation room, salesroom or office where papers are distributed or sold, shall be punished by a fine not to exceed one hundred dollars nor less than twenty-five dollars, or by commitment to the county jail for not more than sixty days or less than ten days.

London, England

BY-LAWS ADOPTED BY THE LONDON COUNTY COUNCIL AND PUT IN FORCE ON JUNE
3, 1911

By-laws 1-9 concern the employment of children generally.

10. No girl under the age of 16 years shall be employed in or carry on street trading.

11. No boy under the age of 14 years shall be employed in or carry on street trading.

12. No boy under the age of 16 years shall be employed in or carry on street trading before 6 in the morning or after 9 in the evening.

13. No boy under the age of 16 years shall at any time be employed in or carry on street trading unless

(1) He is exempt from school attendance, and

(2) He first procures a badge from the London County Council, which he shall wear whilst engaged in street trading on the upper part of the right arm in such a manner as to be conspicuous.

The badge shall be deemed to be a license to trade, and may be withheld or withdrawn for such period as the London County Council think fit in any of the following cases—

(a) If the boy has, after the issue of the badge to him, been convicted of any offense.

(b) If it is proved to the satisfaction of the London County Council that the boy has used his badge for the purpose of begging or receiving alms, or for any immoral purpose, or for the purpose of imposition, or for any other improper purpose.

(c) If the boy fails to notify the London County Council within one week of any change in his place of residence.

(d) If the boy commits a breach of any of the conditions under which such badge is issued; such conditions to be stated on such badge or delivered to the boy in writing.

14. A boy to whom a badge has been issued by the London County Council shall in no way alter, lend, sell, pawn, transfer, or otherwise dispose of, or wilfully deface, or injure such badge, which shall remain the property of the London County Council, and he shall, on receiving notice in writing from the London County Council (which may be served by post) that the badge has been withdrawn, deliver up the same forthwith to the London County Council.

15. A boy under the age of 16 years, whilst engaged in street trading, shall not enter any premises used for public entertainment or licensed for the sale of intoxicating liquor for consumption on the premises for the purpose of trading.

16. A boy under the age of 16 years, whilst engaged in street trading, shall not annoy any person by importuning.

17. Nothing in these by-laws contained shall restrict the employment of children in the occupations specified in section 3 (a) of the Prevention of Cruelty to Children Act, 1904, further than such employment is already restricted by statute.

APPENDIX B TWO TYPES OF NEWSBOY BADGES.



APPENDIX C CARDS FOR INVESTIGATIONS

The cards used in the inquiries into the newsboy situations of Philadelphia and Milwaukee are reproduced here, in the hope that they will be of use in furnishing suggestions to any organization or individual who contemplates making such an investigation elsewhere. It will be observed that these cards are practically confined to questions affecting newsboys only, and would have to be considerably amplified, if intended for use in a general study of street work by children.

Cards used by Boston School Committee for Issuance of Licenses

APPLICATION FOR A LICENSE

To the School Committee of the City of Boston:
I hereby apply for a license for my son as NEWSBOY—PEDLER—BOOTBLACK.

 SIGNATURE OF PARENT

I promise to see that he lives up to the license rules. _____
 SIGNATURE OF BOY

I promise to live up to the license rules. _____

SCHOOL RECORD OF BOY TO BE FILLED OUT BY THE TEACHER AND PRINCIPAL

PLACE OF BIRTH		DATE OF BIRTH		RESIDENCE	
GRADE	SCHOLARSHIP	PHYSICAL DEFECT ?		SIGNATURE OF TEACHER	

I hereby certify that this Boy's attendance is _____ *His conduct is* _____
 SIGNATURE OF PRINCIPAL SCHOOL

GRANTED WITH THE APPROVAL OF THE SCHOOL COMMITTEE:
 _____ SUPERINTENDENT OF PUBLIC SCHOOLS.

(CARD RETURNED TO SCHOOL FOR FILE)

LICENSED MINORS

No. _____

Birth date _____

Teacher _____ Grade _____

School _____

Badge given _____ Expires and must be returned _____

READ AND COPY

LICENSE RULES OF THE BOSTON SCHOOL COMMITTEE

No boy can get a license unless he is eleven years of age and able to understand and COPY the following:

A LICENSED NEWSBOY

MUST	MUST NOT
1. Must ATTEND school regularly.	6. Must not sell before 6 A.M.
2. Must be "GOOD" in conduct.	7. Must not sell after 3 P.M. (3 P.M. in baseball season.)
3. Must have no UNLICENSED boy help him.	8. Must not sell in SCHOOL HOURS.
4. Must keep the badge TO HIMSELF.	9. Must not sell on CARS.
5. Must RETURN his badge to the Superintendent of Schools when ordered to do so.	10. Must not sell without wearing the badge IN PLAIN SIGHT ALL THE TIME.

Any boy who breaks any of the above rules is liable to have his license revoked or go to court and pay a maximum fine of TEN dollars.

Form of Application for License used in Hartford, Conn.

City of Hartford

TO THE SUPERINTENDENT OF PUBLIC SCHOOLS:—
I hereby make application for a Street-Sales Permit for

.....

Born in

Age Sex Complexion

Eyes Hair Figure

Living at Street

If such license is granted I agree that it shall be for this child and for no other.

..... Parent, Guardian, Next Friend

Hartford,

School Information

.....

Living at Street

is pupil in this School, is regular in attendance, and is a suitable child to have a Street-Sales Permit.

..... Principal.

..... Teacher.

..... School.

The age, sex, complexion, eyes, hair, and figure, should be as described above.

Form used in Obtaining Information before the Issuing of a Badge in Province of Manitoba, Canada.

LICENSED NEWSBOY

No. _____ Date _____

Child's name _____ Age _____

Father's name _____ Address _____

Mother's name _____

Father's occupation _____

School and Grade _____

Principal's name _____

Church _____ Clergyman _____

Address _____

Is child of apparently normal development? _____

What proof has been given that he is over twelve years of age? _____

Why do parents want him to sell papers? _____

Can child read? _____

Can child write? _____

Has badge been granted? _____ No. of badge _____

If badge has not been granted, state why _____

 Superintendent Neglected Children,
 Province of Manitoba.

Sample of Card used in Investigation of Street Trades in Philadelphia

Name _____ Address _____

Age _____ sells _____ at _____

From _____ to _____ every day. Works from _____ to _____ on Saturday.

How long in street trades _____ Income _____ per _____

Parents living _____ lives at home _____ contributes _____ per _____ to home.

If not living at home where does boy reside? Lodging house _____ Furnished room _____

Some relative _____ \$ _____ per _____ paid for board. Does boy gamble _____ drink _____ smoke _____

Habit acquired prior to engaging in street trades _____ Does vendor save part earnings _____

Where and with whom does boy spend non-working hours _____

At what hour does newsboy reach home _____ Has boy a route (exclusive) _____

General health of boy _____

Schooling _____

Is selling boy's own choice _____

How many nights so far this summer has boy stayed out all night _____ where _____

Investigator _____ Date _____

Philadelphia Investigation Card

Sample of Card used in Investigation of Newsboys in Milwaukee

NAME		ADDRESS		CITY	
I. FAMILY	Name of person he lives with	Guardian { Parent }	Nationality:	Religion:	Occupation:
	Number in family:	Mother	Father	Total Children	Others
	Age of boy, yr. mo.	Number of years selling papers		Papers handled Daily	Sunday Weekly
	Sells papers as Employer		Employee of		Individual
	Sells at (street)				
	Sells: Morning		Afternoon	Evening	After 9 p.m.
	Does he come home for supper?		Where else does he eat?		How often (elsewhere) per week?
	Arrives at home p.m. week nights		p.m. Saturday nights		Leaves to deliver (a.m.)
	Does he stay out all night?		How often per week?		Shoot "craps"?
	Does he like the work?		Family requires his working?		Why is he working?
II. SCHOOL	School attended:		Location:		
	Informant:		Grade:	Years in school:	
	Boy's standing in school work: Good Fair Poor		Conduct: Good Fair Poor		
	Is boy drowsy?		Is school work injured by selling papers? Yes No		
	Attendance: Regular Irregular		Number of days absent last month:		Absences excused

III. INCOME (AMOUNT RECEIVED BY FAMILY CARRIERS)					IV. TO BE OBTAINED FROM BOY
SOURCE	OCCUPATION	PER WEEK	NO. WEEKS PER YEAR	TOTAL PER YEAR	
Newsboy					What does boy earn per week? \$
Other Children					How much given to family? \$
Father					Why is he selling papers?
Mother					
Rents					
Lodgers (outside of family)					
Other Sources					
Total					
Remarks - Housing:					INSTRUCTIONS It is necessary to get answers to all questions, as there are a comparatively small number of cases being investigated. Divisions I and III are to be obtained from the family. Division II from school principal or teacher. Division IV from the boy himself, away from his family, if possible. Only boys under 14 are to be considered. If parent is dead, cross out line two, over. * Use check (✓) to mark what answer is. If there are several answers, check each.
Cleanliness:					
Other:					

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The following changes have been made to the text:

- In the table introduced as "Street traders and street employees may be classified by occupation as follows:—" Newspaper sellers was written as one word once.
- In the table detailing the occupation of children in Germany, introduced as "Seven divisions of these children were made according to occupation ..." the word Austragedienste was wrongly hyphenated.
- In the TABLE E. HOURS AND EARNINGS OF STREET WORKERS a header "OCCUPATIONS" was missing (compared to TABLE D before), and was added.
- In Footnote [172] the title of Mr. Ferrette's work was misspelled as "Manuel de Législation Industrielle", and was changed to "Manuel de législation industrielle" in accordance with its original title.
- In the Index entry "Great Britain ... Interdepartmental Committee of 1902 on Ireland ..." the reference to page 294 was changed to page 204.

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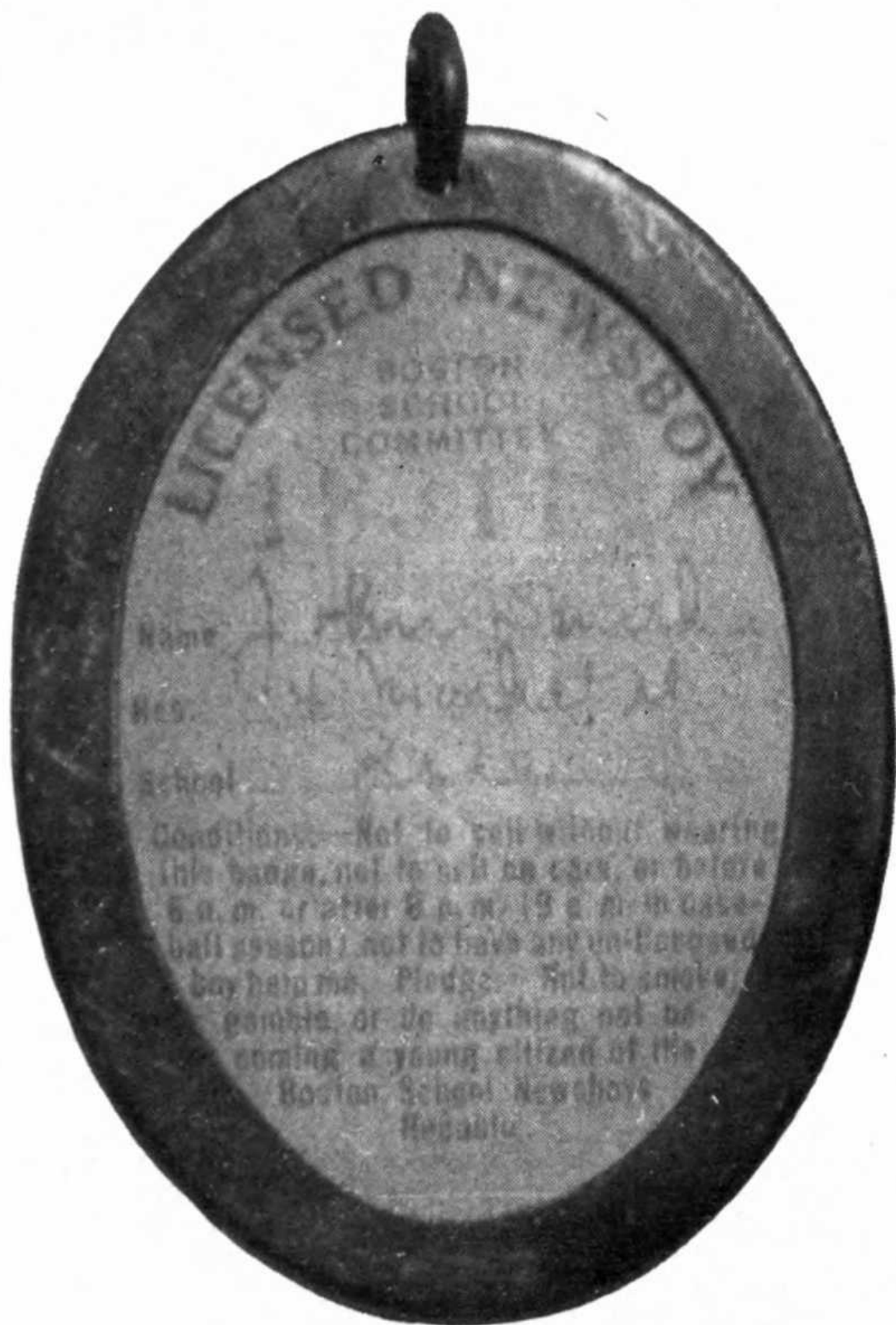
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SUPERINTENDENT OF PUBLIC SCHOOLS

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(CARD RETURNED TO SCHOOL FOR FILE)

LICENSED MINORS

_____ No. _____

Birth date _____

Teacher _____ Grade _____

School _____

Badge given _____ Expires and must be returned _____

READ AND COPY

LICENSE RULES OF THE BOSTON SCHOOL COMMITTEE

No boy can get a license unless he is eleven years of age and able to understand and COPY the following:

A LICENSED NEWSBOY

MUST

1. Must ATTEND school regularly.
2. Must be "GOOD" in conduct.
3. Must have no UNLICENSED boy help him.
4. Must keep the badge TO HIMSELF.
5. Must RETURN his badge to the Superintendent of Schools when ordered to do so.

MUST NOT

6. Must not sell before 6 A.M.
7. Must not sell after 8 P.M. (9 P.M. in baseball season.)
8. Must not sell in SCHOOL HOURS.
9. Must not sell on CARS.
10. Must not sell without wearing the badge IN PLAIN SIGHT ALL THE TIME.

Any boy who breaks any of the above rules is liable to have his license revoked or go to court and pay a maximum fine of TEN dollars.

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City of Hartford

TO THE SUPERINTENDENT OF PUBLIC SCHOOLS:—

I hereby make application for a Street-Sales Permit for

Born in-----

Age----- *Sex*----- *Complexion*-----

Eyes----- *Hair*----- *Figure*-----

Living at----- *Street*

If such license is granted I agree that it shall be for this child and for no other.

----- *Parent, Guardian, Next Friend*
Hartford,-----

School Information

Living at----- *Street*

is pupil in this School, is regular in attendance, and is a suitable child to have a Street-Sales Permit.

----- *Principal.*

----- *Teacher.*

----- *School.*

The age, sex, complexion, eyes, hair, and figure, should be as described above.

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LICENSED NEWSBOY

No. _____ *Date* _____

Child's name _____ *Age* _____

Father's name _____ *Address* _____

Mother's name _____

Father's occupation _____

School and Grade _____

Principal's name _____

Church _____ *Clergyman* _____

Address _____

Is child of apparently normal development? _____

What proof has been given that he is over twelve years of age? _____

Why do parents want him to sell papers? _____

Can child read? _____

Can child write? _____

Has badge been granted? _____ *No. of badge* _____

If badge has not been granted, state why. _____

Superintendent Neglected Children,
Province of Manitoba.

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Name _____ Address _____
 Age _____ sells _____ at _____
 From _____ to _____ every day. Works from _____ to _____ on Saturday.
 How long in street trades _____ Income _____ per _____
 Parents living _____ lives at home _____ contributes _____ per _____ to home.
 If not living at home where does boy reside? Lodging house _____ Furnished room _____
 Some relative _____ \$ _____ per _____ paid for board. Does boy gamble _____ drink _____ smoke _____
 Habit acquired prior to engaging in street trades _____ Does vendor save part earnings _____
 Where and with whom does boy spend non-working hours _____
 At what hour does newsboy reach home _____ Has boy a route (exclusive) _____
 General health of boy _____
 Schooling _____
 Is selling boy's own choice _____
 How many nights so far this summer has boy stayed out all night _____ where _____
 Investigator _____ Date _____

Philadelphia Investigation Card

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NAME		ADDRESS				CITY	
I. FAMILY	Name of person he lives with { Guardian } Parent }	Nationality:			Religion:	Occupation:	
	Number in family:	Mother	Father	Total Children	Others	Number contributing to family support	
	Age of Boy, yr. mo.	Number of years selling papers			Papers handled Daily	Sunday	Weekly *
	Sells papers as Employer		Employee of			Individual *	
	Sells at (street)						
	Sells: Morning	Afternoon	Evening	After 9 P.M. *	Permit Number	Has none *	
	Does he come home for supper ?		Where else does he eat ?		How often (elsewhere) per week ?		
	Arrives at home	P.M. week nights	P.M. Saturday nights		Leaves to { deliver { sell {	A.M. *	
	Does he stay out all night ?		How often per week ?		Shoot "craps" ?	Go into { Saloons Tenderloin }	
	Does he like the work ?		Family require his working ?			Why is he working ?	
II. SCHOOL	School attended:			Location:			
	Informant:		Grade:		Years in school:		
	Boy's standing in school work: Good		Fair	Poor *	Conduct: Good	Fair	Poor *
	Is Boy drowsy ?		Is school work injured by selling papers ? Yes No *				
	Attendance: Regular		Irregular *	Number of days absent last month:		Absences excused	

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III. INCOME (AMOUNT RECEIVED BY FAMILY CASHIER)					IV. TO BE OBTAINED FROM BOY	
SOURCE	OCCUPATION	PER WEEK	NO. WEEKS PER YEAR	TOTAL PER YEAR		
Newsboy					What does boy earn per week ? \$	
Other Children					How much given to family ? \$	
Father					Why is he selling papers ?	
Mother						
Rents						
Lodgers (outside of family)						
Other Sources						
Total						
Remarks — Housing:					INSTRUCTIONS It is necessary to get answers to all questions, as there are a comparatively small number of cases being investigated. Divisions I and III are to be obtained from the family. Division II from school principal or teacher. Division IV from the boy himself, away from his family, if possible. Only boys under 14 are to be considered. If parent is dead, cross out line two, over. * Use check (✓) to mark what answer is. If there are several answers, check each.	
Cleanliness:						
Other:						

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